Microsoft Forms

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Forms-specific support statements are included alongside the broader Microsoft Privacy Statement and the Products and Services DPA. Scope depends on the account and customer agreement.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Microsoft Privacy Statement
02. Forms Security and Privacy
03. Forms Data Storage
04. Forms GDPR Information
05. Microsoft Products and Services Data Protection Addendum - May 2026
06. Microsoft Products and Services DPA download page

Competitor website

01 | Microsoft Privacy Statement

https://privacy.microsoft.com/en-us/privacystatement

Webpage text snapshot | Retrieved 10 October 2026

Resolved page: https://www.microsoft.com/en-us/privacy/privacystatement

Microsoft Privacy Statement

Last Updated: September 2026

What's New?

Print

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Cookies

Most Microsoft sites use cookies, small text files placed on your device which web servers utilize in the domain that placed the cookie can retrieve later. We use cookies to store your preferences and settings, help with sign-in, provide personalized ads, and analyze site operations. For more information, see the Cookies and similar technologies section of this privacy statement.

EU-U.S., UK Extension, and Swiss-U.S. Data Privacy Frameworks

Microsoft complies with the EU-U.S., UK Extension to the EU-U.S., and Swiss-U.S. Data Privacy Frameworks. To learn more, see the Storage and processing of personal data section, and visit the U.S. Department of Commerce's Data Privacy Framework website.

Contact us

If you have a privacy concern, complaint, or question for the Microsoft privacy team or Data Protection Officer, please visit our privacy support and requests page and click on "Contact the Microsoft privacy team or the Microsoft Data Protection Officer" menu. For more information about contacting Microsoft, including Microsoft Ireland Operations Limited, see the How to contact us section of this privacy statement.

Your privacy is important to Microsoft. This privacy statement explains the personal data we process, how we process it, and for what purposes.

Microsoft offers a wide range of products, including server products used to help operate enterprises worldwide, devices customers use in their homes, software that students use at school, and services developers use to create and host new products. References to Microsoft products in this statement include Microsoft services, websites, apps, software, servers, and devices.

Please read the product-specific details in this privacy statement, which provide additional relevant information. This statement applies to the interactions Microsoft has with you and the Microsoft products listed below, as well as other Microsoft products that display this statement.

You can find details about personal data collected from children in the Collection of data from children section. Young people may find it helpful to start with the Privacy for young people page.

For individuals in the United States, please refer to our U.S. State Data Privacy Notice (including notice at collection details) and the Consumer Health Data Privacy Policy for additional information about your rights and the processing of your personal data.

Please see the Enterprise and developer products section of this privacy statement for more information about how we process data from organizations that use our products and services, like businesses and schools. If you use a Microsoft product or a Microsoft account provided by your organization, please see the Products provided by your organization and the Microsoft account sections for more information.

Personal data we collect

Microsoft collects data from users, through your interactions with us and your use of our products. You provide some of this data directly, and we get other data by collecting information about your interactions, use, and experiences with our products. The data we collect depends on the context of your interactions with Microsoft and the choices you make, including your privacy settings and the products and features you use. We also obtain data about users from Microsoft affiliates, subsidiaries, and third parties.

You have choices when it comes to the data you share. When we ask you to provide personal data, you can decline. You can also use in-product controls, including those in your web browser or operating system to limit or prevent certain types of data collection. Many of our products require some personal data to provide you with a service. If you choose not to provide or allow us to collect required data, you cannot use the related product or feature. Likewise, where we need to collect personal data by law or to enter into or carry out a contract with you, and you do not provide the data, we will not be able to enter into or carry out the contract. Where providing the data is optional, and you choose not to share it, features like personalization that use such data will not work for you.

Microsoft collects data from users, through your interactions with us and through your use of our products. We collect data in order to operate, improve, and provide you with the best possible experiences. Some data is provided directly by you, while we collect other data based on how you use our products and communicate with us. The types and amount of data we collect depend on how you interact with Microsoft, your choices, privacy settings, and the features you use, as well as applicable law.

The data we collect can include the following:

Name and contact details. Your first and last name, email address, mailing address, phone number, and other similar contact details.

Account credentials. Information used to access your account, such as username, password, and password hints.

Demographic data. Details about you like your age, gender, country, and language preference.

Payment data. Details needed to process payments, including credit card numbers and security codes.

Subscription and licensing data. Details about your product subscriptions, licenses, and other entitlements.

Interactions. Information about your use of Microsoft products, including features you use, searches, commands given, error reports, and support requests.

Device and usage data. Data about your device and product features you use, hardware and software details, product performance, your interactions with our websites and apps, and your settings. For example:

Payment and account history.

Browsing history.

Device, connectivity, and configuration data. For example, IP addresses, device identifiers, nearby networks, and other information about the operating systems and other software installed on your device.

Error reports (“crash dumps”) and performance data. This usually includes software, hardware, and file content details related to an error, and other software on your device.

Troubleshooting and help data. Data you provide when you contact Microsoft for help. For example, contact or authentication data, the content of your communications with Microsoft, the condition of your device, the products at issue, and other details that help us provide support. Phone conversations or chat sessions with our representatives may be monitored and recorded.

Bot usage data. Interactions with bots and skills available through Microsoft products, including bots and skills provided by third parties.

Interests and favorites. Preferences and interests you share (like favorite sports teams, preferred programming languages, or cities for weather or traffic) or that we infer from your activity, such as your activity on sites that use our technology for ads purposes.

Content consumption. Information about the media content you access through our products like TV, video, music/audio, apps, and games.

Searches and commands. Search queries and commands you provide in Microsoft products, such as interactions with a chat bot.

Voice data. Also referred to as “voice clips,” this includes spoken queries commands, or dictation, and may include background sounds. Learn more about how Microsoft uses and protects voice data in its speech recognition technologies.

Text, inking, and typing data. Data and related information you provide by typing, inking, or using touch input in Microsoft products.

Images. Images and related data, like picture metadata. For example, we collect the image you provide when you use a Bing image-enabled service or upload an image to Microsoft Copilot.

Contacts and relationships. Data about your contacts and relationships if you use a product to manage contacts, share information or communicate with others, or improve your productivity.

Traffic data. Data about your use of Microsoft’s communication services, including whom you’ve contacted and when.

Social data. Information about your interactions and relationships with others, such as likes, events, and other types of engagement.

Location data. Data about your device’s location, which may be either precise (typically based on GPS, cell tower, or Wi-Fi hotspot location) or imprecise (for example, inferred from an IP address, or city or postal code in your account profile).

Biometric data. Unique data about you from specific technical processing related to your physical, physiological, or behavioral characteristics to verify or confirm your identity. For instance, you can use your fingerprint or facial recognition to sign in to your Windows device via Windows Hello (please see the Windows Hello section below for more information). Our collection and use of biometric data depends on the products and features you use and your consent.

Other input. Data generated from using devices or participating in events, like buttons you press on an XBOX controller or other activity data, or information you provide when registering or attending an in-person event.

Content. Information in files and messages, emails, chats, calls, meetings, photos, documents, and other media you create or share using Microsoft products.

Video and audio recordings at Microsoft locations. Recordings of events and activities at Microsoft buildings, retail spaces, and other locations, which may include your image and voice data.

Feedback and ratings. Information you provide in feedback, surveys, or product reviews.

Product-specific sections below describe data collection practices applicable to use of those products.

We also receive data from Microsoft affiliates, subsidiaries, and third parties. We protect data obtained from third parties according to the practices described in this statement, plus any additional restrictions imposed by the source of the data. These third-party sources vary over time and include:

Data brokers from which we purchase demographic data and contact information to supplement the data we collect.

Services that make user-generated content from their service available to others, such as reviews of local businesses or public social media posts.

Communication services, including email providers and social networks, when you give us permission to access your data on such third-party services or networks.

Service providers that help us determine your device’s location.

Partners with whom we engage in joint marketing activities.

Developers who create experiences through or for Microsoft products.

Third parties that deliver experiences through Microsoft products.

Publicly available sources, such as open public sector, academic, and commercial data sets.

You have choices when it comes to the data you share. When you are asked to provide personal data, you can decline. You can also use web browser, in-product, or operating system controls to limit or prevent certain types of automatic

data collection. Many of our products require some personal data to operate and provide you with a service. If you choose not to provide or allow us to collect required data, you cannot use the related product or feature. Likewise, where we need to collect personal data by law or to enter into or carry out a contract with you and you do not provide the data, we will not be able to enter into or carry out the contract. Where providing the data is optional, and you choose not to share personal data, features like personalization that use the data will not work for you.

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How we use personal data

Microsoft uses the data we collect to provide you with rich, interactive experiences. Specifically, we use data to:

Provide our products, which includes updating, securing, and troubleshooting, as well as providing support and making recommendations.

Improve and develop our products. As part of our efforts to improve and develop our products, we may use your data to develop and train our AI models. Learn more here.

Advertise and market to you, which includes sending promotional communications, personalized advertising, and presenting relevant offers.

We also use the data to operate our business, which includes analyzing our performance, meeting our legal obligations, developing our workforce, and doing research.

Microsoft uses the data we collect to provide you with rich, interactive experiences. We also use the data to operate our business, which includes analyzing our performance, meeting our legal obligations, developing our workforce, and doing research. Microsoft is committed to protecting the security of your personal data and uses a variety of security technologies and procedures to help protect your personal data from unauthorized access, use, or disclosure. For example, we store personal data you provide on computer systems that have limited access and are in controlled facilities. When we transmit highly confidential data (such as credit card number or password) over the internet, we protect it through the use of encryption.

Specifically, we use data to:

Provide our products. We use data to operate and deliver our products, such as processing files you upload to OneDrive so you can access, edit, and manage them. This also includes:

Communications. We may use your data to contact you for various reasons, such as to inform you about your subscriptions, tell you when product updates are available, or contact you about your account.

Personalization. Many products include personalized features and use automated processes to tailor your experience based on your data and inferences based on your activities, interests, and location. You can sync settings across devices via your Microsoft account, and many products allow you to turn off personalized features.

Product activation. We use data like device and application type, location, and unique identifiers to activate products.

Transactions. We use data like your payment and contact information to carry out your transactions with us and deliver your purchases.

Customer support. We use the data to help us troubleshoot and resolve issues, repair devices, investigate security incidents, and to provide, improve, and secure the quality of our products, services, and training. We may use voice data from support calls for authentication and security purposes.

Security and Safety. We use data to protect the security and safety of our products and customers, such as by detecting malware and malicious activities. We reserve the right to block communications or remove content that violates our terms of use. We use scanning technologies (like hash matching) to help prevent harm to our systems, our users, and others as described in our Code of Conduct, and to help prevent child exploitation. We may share information with the National Center for Missing and Exploited Children (NCMEC) and law enforcement authorities. We also use tools to detect and disrupt the misuse of video-calling capabilities to produce and share child sexual exploitation and abuse imagery by high-risk users. Learn more about our efforts to prevent and detect child exploitation here.

Providing Age Appropriate Experiences. We use information associated with your Microsoft account to provide more age-appropriate experiences across our services. This may include information you provide, such as your date of birth or settings you choose in your account, information from your use of Microsoft services, such as how you interact with features, content, and products, or information from partners or verification services, such as age range signals received from app stores. We use this information to help us apply age-appropriate protections, settings, and experiences. When we apply age-based protections, we generally apply them across Microsoft services connected to your account so that your experience is consistent. We may share age group information with Microsoft apps and services, as well as third-party apps, so that they can apply appropriate safeguards, tailor experiences, and comply with applicable laws and regulations.

Troubleshooting and Updates. We use data to troubleshoot and resolve performance issues, develop updates and security patches, and notify users of product updates. This may include using automated systems to detect security and safety issues.

Product Improvement and Development

Product improvement. We use data to improve our products, including adding new features and capabilities. For example, we use error reports to improve security features, queries and clicks in Bing to improve search results, and voice data to develop and improve speech recognition accuracy.

Product development. We use data to develop new products. For example, we use data, often de-identified, to better understand our customers' computing and productivity needs, and to train and fine-tune AI models, which can shape the development of new products. As part of our efforts to improve and develop our products, we may use your data to develop, train, and fine-tune our AI models, including large language models (LLMs). Learn more here.

Marketing, Advertising, and Promotions

Promotional communications. We use data to send you promotional messages. See the How to access and control your personal data section for information on managing your contact data, email subscriptions, and promotional messages.

Relevant offers. Microsoft uses data to provide you with product information and offers likely to interest you, such as new games based on your activity.

Advertising. We use data for advertising on Microsoft and third-party properties, sometimes using automated processes to make ads more relevant. Microsoft does not use what you say in emails, human-to-human chat, video calls or voice mail, or your personal files, photos, or documents to target ads to you. See the Advertising section for more details.

Prize promotions and events. We use your data to administer prize contests and events and to select winners. For example, if you enter into a prize promotion, we may use your data to select a winner and provide the prize to you if you win.

Business Operations

Reporting and business operations. We use data to analyze and improve our business, make informed decisions, and report on our business' performance.

Protecting rights and property. We use data to detect and prevent fraud, resolve disputes, enforce agreements, and protect our property. For example, we use data to confirm software licenses to reduce piracy and combat fraud. We may use automated processes to detect and prevent activities that violate our rights and the rights of others, such as fraud.

Legal compliance. We process data to comply with applicable laws. For example, we use the age of our customers to assist us in meeting our obligations to protect children's privacy.

Research. With appropriate safeguards for individuals' rights and freedoms, we use data for research, including AI and machine learning, for public interest and scientific purposes.

We combine data collected from different contexts or obtained from third parties to give you a more seamless, consistent, and personalized experience, to make informed business decisions, and for other legitimate purposes. For example, Microsoft Store uses information about the apps and services you use to make personalized app recommendations. We use technological and procedural safeguards to prevent certain data combinations; for example, we store data collected from unauthenticated users separately from account information that directly identifies you, such as your name, email address, or phone number.

Our processing of personal data involves both automated and manual (human) methods, which often work together. For example, to build, train, and improve the accuracy of our automated systems – such as AI - we manually review some of the results against the underlying data.

Legal bases for processing

We process your personal data with your consent and/or when it's necessary to provide the products you use, operate our business, meet our contractual and legal obligations, protect the security and safety of our systems and our customers, or pursue our legitimate interests or those of third parties. Our reasons for using your data are described here and in the Reasons we disclose personal data section. Our legal basis for processing may vary depending on how and across what products or services we process your data. When we rely on legitimate interests, we consider and balance those interests against your rights and freedoms and will only process your data if these interests are not outweighed by your own.

Our retention of personal data

Microsoft retains personal data for as long as necessary to provide the products and services you use and to fulfill the transactions you request. We also retain personal data for other legitimate purposes such as operating our business, meeting our contractual and legal obligations, improving and developing our products and services, protecting the safety and security of our systems and customers, and resolving disputes. Because these needs can vary for different data types and the context of our interactions with you or your use of our products, actual retention periods can vary significantly. See relevant product documentation for more information.

Criteria used to determine retention periods include:

The purposes for which we use the information. For example, when you store a document in OneDrive, we maintain the data until you actively delete it.

The nature and sensitivity of the information. For example, we maintain a shortened retention period for precise geolocation information.

Legal, contractual, and other similar obligations we are subject to, including data retention laws, government orders to preserve data relevant to an investigation, or data retained for the purposes of litigation. Conversely, we'll remove unlawful content where required by law.

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Reasons we disclose personal data

Microsoft discloses your personal data with your consent, to complete any transaction or provide any product you have requested or authorized, or as needed to carry out any other purpose described in the How we use personal data section. We also disclose personal data when required by law or to respond to legal process, and to protect customers, safety, security, and Microsoft and its customers' rights and property. We provide data to Microsoft-controlled affiliates and subsidiaries and to vendors working on our behalf.

We disclose your personal data with your consent, as necessary to complete any transaction or provide any product you have requested or authorized, or as needed to carry out any other purpose described in How we use personal data section. For example, we provide your content to third parties when you tell us to do so, such as when you send an email to a friend or link accounts with another service.

If you use a work or school account or use a Microsoft product provided by an organization you are affiliated with, such as an employer or school, we disclose certain data such as interaction data and diagnostic data to enable your organization to manage the products.

We will disclose payment data to banks and other payment transaction processors and financial services providers to fulfill your purchases with us, and for fraud prevention and credit risk reduction. If you save a payment method (such as a card) to an account used by you and other Microsoft account holders, your purchase receipts may be available to anyone else who uses and has access to the same payment method to make a purchase from Microsoft.

When you permit push notifications for Microsoft products or applications on a non-Windows device, we may send data to an external notification provider to deliver push notifications. Your device's push notification services are governed by

their own service-specific terms and privacy statements.

We also disclose personal data for digital advertising purposes. Please see the Advertising section for more information about how personal data is used for advertising.

In addition, we enable access to personal data among Microsoft-controlled affiliates and subsidiaries, including for the purposes described in this privacy statement. We also provide personal data to vendors or agents working on our behalf for the purposes described in this statement, such as companies we hire to provide customer service support. These companies must comply with our data privacy and security standards and may not use your data for other purposes. We may also disclose personal data as part of corporate transactions such as mergers or asset sales.

Finally, we retain, access, transfer, disclose, and preserve personal data, including your content (like the content of your emails in Outlook.com or files in OneDrive), when we have a good faith belief that it is necessary to do any of the following:

Comply with applicable law or respond to valid legal process, including from law enforcement or other government agencies.

Protect the safety of our customers, organizations, and the public — for example, to prevent spam; stop attempts to defraud or otherwise cause harm, or to detect, prevent, and combat harmful or illegal behavior including the creation and sharing of harmful or illegal content.

Operate and maintain the security of our products, including to prevent or stop an attack on our computer systems or networks.

Protect the rights or property of Microsoft, including enforcing the terms governing the use of our services. If we receive information indicating our services are used to traffic in stolen property, we may refer the matter to law enforcement.

For more information about data we disclose in response to requests from law enforcement and other government agencies, please see our Law Enforcement Requests Report.

Please note that some of our products include links to or otherwise enable you to access products of third parties whose privacy practices differ from those of Microsoft. For example, third party applications or extensions that run on Windows or Edge browser may collect personal data based on their own practices. If you provide personal data to any of those products, your data is governed by their privacy policies.

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How to access and control your personal data

You can make choices about the collection and use of your data by Microsoft. You can control your personal data that Microsoft has obtained and exercise your data protection rights by contacting Microsoft or using various tools we provide, such as the Microsoft privacy dashboard.

Not all personal data processed by Microsoft can be accessed or controlled via the tools described in this section. If you want to exercise your data protection rights for your personal data processed by Microsoft that is not available via the tools we provide or directly through the Microsoft products you use, you can always contact Microsoft as described in the How to contact us section or by visiting our privacy support and requests page.

We provide aggregate metrics about user requests to exercise their data protection rights via the Microsoft Privacy Report.

You can make choices about the collection and use of your data by Microsoft. You can control your personal data that Microsoft has obtained, and exercise your data protection rights, by contacting Microsoft or using various tools we provide (described below).

Microsoft provides you with the following data protection rights regardless of your location:

If Microsoft obtained your consent to use your personal data, you can withdraw that consent at any time.

You have the right to be informed about the collection and use of your personal data.

You can request access to, erasure of, and updates to your personal data.

If you'd like to port your data elsewhere, you can use tools Microsoft provides to do so, or if none are available, you can contact Microsoft for assistance.

You can also object to or restrict the use of your personal data by Microsoft. For example, you can object at any time to our use of your personal data for direct marketing purposes or where we are performing a task in the public interest or pursuing our legitimate interests or those of a third party.

In some cases, your ability to access or control your personal data will be limited, as required or permitted by applicable law. If your organization, such as your employer, school, or service provider, provides you with access to and is administering your use of Microsoft products, contact your organization to learn more about how to access and control your personal data.

The tools most useful to access and control your personal data that Microsoft has obtained depends on our interactions with you and your use of our products. The following is a general list of tools we provide to help you control your personal data; specific products may provide additional controls. Please refer to the product specific sections below for more information about how you can access your data through other in-product features.

Bing. If you are signed into Bing with your Microsoft account, you can view and clear your stored search and chat history on your privacy dashboard. If you are not signed in, you can view and clear stored search history associated with your device in your Bing settings.

Microsoft Copilot. If you are signed into Microsoft Copilot with your Microsoft account, you can view, access, export and delete Copilot activity history from your privacy dashboard. You can also use in-product controls to manage your data within the Microsoft Copilot website or app.

Microsoft account. You can visit the Microsoft account website if you want to access, edit, or remove your account's profile and payment information, change your password, add security information or close your account.

Microsoft privacy dashboard. You can control some of the data Microsoft processes via your Microsoft account on the Microsoft privacy dashboard. For example, you can view and clear the browsing, search, and location data associated with your Microsoft account.

Microsoft Store. You can access your Microsoft Store profile and account information by visiting Microsoft Store and selecting View account or Order history.

Microsoft Teams for personal use. You can find out how to export or delete Teams data relating to your personal Microsoft account by visiting this page.

OneDrive. You can view, download, and delete your files and photos in OneDrive by signing into your OneDrive.

Outlook.com. You can download your emails in Outlook.com by signing into your account and navigating to your Privacy and data settings.

Skype. If you wish to access, edit, or remove some profile information for Skype or change your password, sign in to your account. If you wish to export your Skype chat history and files shared on Skype, you can request a copy.

XBOX. If you use the XBOX network or XBOX.com, you can view or edit your personal data, including billing and account information, privacy settings, and online safety and data sharing preferences by accessing My XBOX on the XBOX console or on XBOX.com.

Not all personal data processed by Microsoft can be accessed or controlled via the tools above. If you want to access or control personal data processed by Microsoft that is not available via the tools above or directly through the Microsoft products you use, you can contact Microsoft at the address in the How to contact us section or by visiting our privacy support and requests page.

Your communications preferences

You can choose whether to receive promotional communications from Microsoft by email, SMS, mail, or phone. To opt out of promotional emails or SMS, follow the directions in the message. For more options – including managing contact info, Microsoft-wide contact preferences, email subscriptions, and sharing info with partners – sign in to your personal Microsoft account, and visit your communication permissions page. If you don't have a Microsoft account, you can manage your Microsoft email contact preferences by using this web form. These choices do not apply to mandatory service communications or other informational messages with their own unsubscribe method.

Your advertising choices

To opt out of receiving personalized advertising from Microsoft (including Xandr) visit our Personalized ads and offers page. You can also see our third party ad partners and opt out of data sharing for personalized ads at our Third-party ad settings page. When you're logged into your Microsoft account, your opt out choice will be associated with your account and applied across devices whenever you are signed in. If you are not signed in and choose to opt out, your preference is stored in a browser-specific cookie on your device, valid for five years; if you delete cookies, you must opt out again.

For Microsoft-controlled ads in Windows apps, use the opt-out linked to your personal Microsoft account, or turn off the advertising ID in Windows settings to opt out of personalized advertising.

Data used for personalized advertising is also used for other required purposes, such as product delivery, analytics, and fraud detection. You will still see ads even if you opt out of personalized ads, but they may be less relevant to you.

You can opt out of personalized advertising from third-party partners by visiting their sites. Please see our Advertising section below for more information.

Browser-based controls

When you use a browser, you can control your personal data using certain features. For example:

Cookie controls. You can control the data stored by cookies and withdraw consent to cookies by using the browser-based cookie controls described in the Cookies section.

Tracking protections. You can control the data third-party sites can collect about you using Tracking Protection in Microsoft Edge. This feature will block third-party content, including cookies, from any site that is listed in a Tracking Protection List you add.

Universal Opt-Outs. Microsoft receives and responds to the Global Privacy Control (GPC) browser opt-out signal in certain jurisdictions. Microsoft will turn off sharing your data with third parties for personalized ads and turn off the "Share my data with third parties for personalized ads" toggle if we receive a GPC signal from you when you visit our sites.

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Cookies and similar technologies

We use cookies and similar technologies, such as web beacons and pixels, for storing and honoring your preferences and settings, enabling you to sign in, providing personalized advertising, combating fraud, analyzing how our products perform, and fulfilling other legitimate purposes.

Our websites may include web beacons, cookies, or similar technologies from Microsoft affiliates and partners as well as third parties, such as service providers acting on our behalf.

Third party cookies may be used for required purposes to provide the website or service, to show you ads and content based on your social media profiles and activities on our websites, to better understand how you and others use our websites so that we can make them better and so the third parties can improve their own products and services, and to show you ads that are relevant to you.

You can control the data collected by cookies, web beacons, and similar technologies. For example, you can use controls in your internet browser to limit how the websites you visit are able to use or to clear or to block cookies. Where required, we obtain your consent prior to placing or using optional cookies that are not (i) strictly necessary to provide the website or service; or (ii) for the purpose of facilitating a communication. Where consent is required, you may withdraw consent to optional cookies by clicking "Manage cookies" in the footer of the website.

We use cookies and similar technologies to store and honor your preferences and settings, enable you to sign-in, provide personalized advertising, combat fraud, analyze how our products perform, and fulfill other legitimate purposes described below. Some cookies are placed by third parties acting on our behalf. Microsoft apps use additional identifiers, such as the Advertising ID in Windows, for similar purposes, and many of our websites and applications also contain web beacons or other similar technologies, as described below.

How we use cookies and similar technologies

Preferences and settings. We use cookies to store and save your choices – like language settings or your ad preferences – so you don’t need to set them again.

Sign-in and authentication. We use cookies to verify your identity and keep you signed in securely. When you sign in with a Microsoft account, we store a unique ID number and the time you signed in in an encrypted cookie on your device, so you don’t have to repeatedly sign in.

Security. We use cookies to protect our products and detect fraud and abuse.

Storing information. We use cookies to remember information you provide, such as items in your shopping cart.

Social media. Some of our websites include social media cookies, which may let you share content with social media services if you’re signed in with them.

Feedback. We use cookies so you can give feedback on our websites.

Personalized advertising. We use cookies to personalize ads based on your activity. You can opt out as described in the How to access and control your personal data section of this privacy statement. We also use web beacons and similar technologies to understand which Microsoft ads displayed on third-party websites and digital platforms drive visitors to our sites and apps. These tools also help us deliver ads on external sites and platforms. See below for more information about web beacons and analytics services.

Ad delivery and reporting. We use cookies to record ad views and clicks, such as which ads you have seen. This helps us, for example, avoid showing the same ad repeatedly.

Analytics. We use cookies to gather usage and performance data, such as visitor counts and other statistics about our websites and products.

Performance. We use cookies to help us understand and improve how our products and websites work, like gathering data to help with load balancing and uptime.

Where required, we obtain your consent prior to placing or using optional cookies. Please see the How to control cookies section below for more information.

Some of the cookies we commonly use and some of the purposes they may be used for are listed below. This list is not exhaustive, but it is intended to illustrate the primary purposes for which we typically set cookies. If you visit one of our websites, the site will set some or all of the following cookies:

MSCC. Contains user choices for most Microsoft properties.

MUID, MC1, MSFPC, and ai_user. Identifies unique web browsers visiting Microsoft sites. These cookies are used for necessary operational purposes. With consent, these cookies may also be used for advertising.

ESTSAUTH, ESTSAUTHLIGHT, ESTSAUTHPERSISTENT. Helps to authenticate you when you sign in with your Microsoft account.

MS0. Identifies a specific session.

NAP. Contains an encrypted version of your country, postal code, age, gender, language and occupation, if known, based on your Microsoft account profile.

MR. Resets or refreshes the MUID cookie.

x-ms-gateway-slice, ARRAffinity, ARRAffinitySameSite, ASLBSA, and ASLBSACORS. Identifies a gateway for load balancing.

TOptOut. Records your decision not to receive personalized advertising delivered by Microsoft. Where required, we place this cookie by default and remove it when you consent to personalized advertising.

ApplicationGatewayAffinity and ApplicationGatewayAffinityCORS. Used for load balancing purposes and to ensure requests for a user session are handled by the same server.

esctx, _RequestVerificationToken, .AspNetCore.Correlation, and .AspNetCore.Nonce. Assist with the security of your website visit and stability of the services provided to you by helping prevent fraud and malicious attacks.

We may also use the cookies of other Microsoft affiliates, companies, and partners, such as LinkedIn and Xandr.

Third-Party Cookies

In addition to the cookies Microsoft sets when you visit our websites, we also use cookies from third parties to enhance the services on our sites. Some third parties can also set cookies when you visit Microsoft sites. For example, when we hire companies to perform services on our behalf, like site analytics, and when companies deliver content on our sites, like videos, news, or ads.

These companies use the data they process in accordance with their privacy policies, which may enable them to collect and combine information about your activities across websites, apps, or online services.

The following types of third-party cookies may be used, depending on the context, service or product, as well as your settings and permissions:

Social media cookies. These cookies help us and third parties show you ads and content tailored to your interests, based on your social media profiles and activity on our websites.

Analytics cookies. Analytics cookies from third parties collect information on how you use our websites to help us improve them and allow third parties to develop and improve their own products. They may also be used for advertising purposes.

Advertising cookies. Advertising cookies record which ads you've seen, which ads you've clicked, or the purchases you've made after clicking. They show you ads relevant to you, like ads based on your social media interests and website browsing history.

Required cookies. Required cookies enable core website functions, such as login, preferences, shopping carts, performance, and security.

For a list of the third parties that set cookies on our websites, please visit our third party cookie inventory. On some of our websites, a list of third parties is available directly on the site and may not be included in our third party cookie inventory. Please consult the third party websites or privacy notices for more information on their privacy practices with respect to their cookies that may be set on our websites.

How to control cookies

Most web browsers automatically accept cookies but provide controls that allow you to block or delete them. For example, in Microsoft Edge, you can block or delete cookies by selecting Settings > Privacy and services > Clear Browsing data > Cookies and other site data. For more information about how to view, block, or delete your cookies in Microsoft Edge, please see our Manage cookies in Microsoft Edge page. If you use a different browser, refer to that browser's instructions. If you choose to block cookies, you cannot sign in or use some of those features, and preferences that are dependent on cookies will be lost. If you delete your cookies, any settings and preferences controlled by those cookies, including advertising preferences, are deleted and will need to be recreated.

Where required, we obtain your consent before placing or using optional cookies that are not (i) strictly necessary to provide the website; or (ii) for the purpose of facilitating a communication. We separate these optional cookies by purpose, including advertising, analytics, and social media purposes. Where consent is required, you can adjust your choices by clicking "Manage cookies" in the footer of the website or through the settings made available on the website. Certain features of Microsoft products depend on cookies.

Additional privacy controls that can impact cookies, including the tracking protections feature of Microsoft browsers, are described in the How to access and control your personal data section of this privacy statement.

Web beacons and analytics services

Some Microsoft webpages use electronic tags called web beacons to deliver cookies, count visitors, and deliver products. We also use web beacons or similar technologies in our communications to determine whether you open and act on them.

We sometimes place our web beacons on other companies' websites or ads to help us understand how interactions with Microsoft advertisements lead to actions, such as purchases, or to learn about your activity on partner sites in connection with Microsoft products or services.

Microsoft products often include web beacons or similar technologies from third-party analytics providers. These providers help us compile statistics about our campaigns and operations. They may set or read their own cookies or identifiers on your device to collect information about your online activities across websites and apps. However, we

prohibit these providers from using web beacons on our sites to collect or access information that directly identifies you, such as your name or email address. You can opt out of data collection or use by some of these analytics providers by visiting any of the following sites: Adjust, AppsFlyer, Clicktale, Flurry Analytics, Google Analytics (requires you to install a browser add-on), Kissmetrics, Mixpanel, Nielsen, Acuity Ads, WebTrends, or Optimizely.

Other similar technologies

Our products can also use other similar technologies to store and read data files on your computer. This is typically done to maintain your preferences or to improve speed and performance by storing certain files locally. These technologies can also store a unique identifier for your computer, which can then track behavior.

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Microsoft account

A Microsoft account lets you sign in to Microsoft products and certain Microsoft partner products. Personal data associated with your Microsoft account includes credentials, contact and payment data, device and usage data and activity-related information. Signing in to your Microsoft account enables personalization and consistent experiences across products and devices, and enables cloud storage use, payments with stored payment methods, and other features.

If you sign into a service offered by a third party with your Microsoft account, Microsoft shares account data with that third party according to the third party's privacy policy.

A Microsoft account is a personal account that lets you sign into Microsoft products and those of select partners. This account includes personal data such as your credentials, name and contact data, payment data, device and usage data, contacts, information about your activities, and interests and favorites. Signing into your Microsoft account helps personalize your experience, provides consistent experiences across products and devices, enables cloud storage, lets you make payments with stored payment methods, and enables other features.

A work or school account, also known as a Microsoft Entra ID account, is an account that is provided and managed by your organization, such as your employer or school. You can use it to sign in to Microsoft products and third-party products that your organization provides. If you sign into Microsoft products with a work or school account, please note:

Your organization controls your account and can access and process your data, including your communications, files, and content in products you use with your account.

Your use of these products is subject to your organization's policies. Review your organization's privacy and security policies before using your work or school account for personal use.

If you lose access to your work or school account (for example, if you change employers), you may also lose access to products or content purchased or accessed with that account.

If you use a work or school email address to create a Microsoft account, your organization may access your data associated with your Microsoft account.

Microsoft is not responsible for your organization's privacy or security practices, which may differ from our own standards.

Direct any privacy questions or requests (such as to access, correct, or delete your data) to your administrator. See the Products provided by your organization – Notice to end users section for more information about your rights.

Contact your organization if you're unsure if your account is a work or school account.

A third-party account is a Microsoft account that you or your service provider (such as a cable or internet service provider) create that is tied to your email address with your service provider's domain. Your service provider has control over your account, including the ability to access or delete your account. You should carefully review the terms the third party provided to you to help you understand what the service provider can do with your account and data.

Your Microsoft account. The data associated with your Microsoft account, and how that data is used, depends on how you use the account.

Creating your Microsoft account. When you create a Microsoft account, you'll be asked to provide certain personal data and we'll assign you a unique ID. For some products, like those involving payments, a real name is required, but many products can be used without it. Data such as your display name, email address, and phone number can help others find you on Microsoft products (for example, on Microsoft Teams for personal use). In some cases, you may need to switch to a personal email address to continue accessing consumer-oriented products like the XBOX network.

Signing in to your Microsoft account. When you sign in to your Microsoft account, we log details like the date and time, product accessed, sign-in name, account and device identifiers, IP address, and operating system and browser information.

Signing in to Microsoft products. Signing in to Microsoft products enables improved personalization, provides consistent experiences across products, permits cloud storage access, and lets you make payments using information stored in your account, along with other settings and features. Information saved to your account may be available across Microsoft products. If you add your account to a Windows device (version 8 or higher), Windows will automatically sign you in to Microsoft products on that device. When signed in, some products will show your name or username and profile photo (if you have one) in Microsoft products, communications, and public posts. Learn more about your Microsoft account, your data, and your choices.

Signing in to third-party products. If you sign in to a third-party product or make payments to third-party merchants using your Microsoft account, Microsoft shares data with the third party as needed, including your account version number and whether your account has been deactivated. Third parties may use or share your data per their own privacy policies. You should carefully review the privacy policies for each product or merchant you use to understand how your data will be handled.

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Collection of data from children

Microsoft offers many products and services that children and teens can use, though child and teen users will not always have access to all the features and services that adult users do. Some of these features will be off by default or unavailable to younger users. When a child is under 13-or a higher age if required in their region-the child will need consent from their parent or guardian to create a Microsoft account. Parents can change or revoke consent at any time.

Microsoft offers Family Safety tools that allow parents to connect their children’s accounts to a family group. Microsoft accounts created using parental consent are automatically added to the parent’s family group. As the organizer of a Microsoft family group, the parent or guardian can manage their child’s information and settings on their Family Safety page and view and delete a child’s data on their privacy dashboard. Parents of XBOX users have additional controls through the XBOX Family Settings app.

For users under the age of 13 or as specified by law in their jurisdiction, certain Microsoft products and services will either block users under that age or require parental or guardian consent or authorization before use, including when creating an account. See the How we use personal data section for more information about how we provide age appropriate experiences.

When we receive parental consent or authorization, the child's account is treated much like any other account, and the child will be able to use Microsoft services such as Outlook, Bing, and XBOX, and communicate or share data with other users. We will not knowingly ask children under the age of consent to provide more data than is necessary to provide the product.

As mentioned in the Advertising section, we do not deliver personalized advertising to children whose birthdate in their Microsoft account identifies them as under 18 years of age. For more details, see the Microsoft account section of this privacy statement and Learn more about parental consent and Microsoft child accounts.

Parents or guardians (“parents”) can change or revoke consent at any time. As the organizer of a Microsoft family group, parents can manage their child’s information and settings on the Family Safety page and view or delete a child’s data on the privacy dashboard. Accounts created with parental consent are automatically added to consenting adult’s family group. For child accounts that don’t need parental consent to be created, parents can add the child account to their family group after account creation. See the Microsoft Family Safety section for more information.

Accessing and deleting child data. For Microsoft products and services that require parental consent, parents can view and delete certain data about their child, such as browsing history, search history, location activity, and app usage by signing into the parent's privacy dashboard.

Some Microsoft products, including XBOX, also have their own in-product controls. Please note that a parent's ability to access and/or delete their child's personal information may vary depending on the laws where they're located. For more details on controlling data within Microsoft products, visit our Privacy Frequently Asked Questions (FAQs).

If your child's account is not part of your Microsoft Family group and you do not have access to their activity on your privacy dashboard, submit a request related to your child's data through the privacy support form. The privacy team will ask for account verification before fulfilling the request. We process authenticated deletion requests within 30 days of receipt.

To delete all your child's personal information, request deletion of the child's account using the close your account form. Sign in to your child's account, ensure the correct account is shown, and follow the instructions. See Learn more about how to close a Microsoft account.

After requesting account closure, the account is marked for deletion, but we will wait 60 days before permanently deleting the account in case you change your mind or need to access information. After 60 days, the account will be permanently deleted.

For more information on XBOX features, in-product controls, and the associated personal data collection, use, and disclosure, please see the XBOX section of this privacy statement.

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Storage and processing of personal data

Microsoft may store and process your personal data in your region, the United States, and any other jurisdiction where Microsoft or its affiliates, subsidiaries, or service providers operate facilities. When we transfer personal data internationally, we implement appropriate legal safeguards – to help protect your rights and ensure your data remains protected.

Personal data collected by Microsoft may be stored and processed in your region, in the United States, and in any other jurisdiction where Microsoft or its affiliates, subsidiaries, or service providers operate facilities. Microsoft maintains major data centers in Australia, Austria, Brazil, Canada, Finland, France, Germany, Hong Kong, India, Ireland, Japan, Korea, Luxembourg, Malaysia, the Netherlands, Singapore, South Africa, the United Kingdom, and the United States. Typically, the primary storage location is in your region or in the United States, often with a backup to a data center in another region. Storage location(s) are chosen in order to operate and provide our services efficiently, improve performance, and create redundancies in order to protect the data in the event of an outage or other problem.

We transfer personal data from the country of origin to other countries, including those that may not offer the same level of data protection as determined by the European Commission or your local data protection authority. In such cases, we implement legal safeguards-such as standard contractual clauses approved by the European Commission – to help protect your rights and ensure your data remains protected. The EU has also determined that certain non-EU countries have an "adequate" level of personal data protection, similar to EU law. For more information on the EU's adequacy decisions and other methods of protecting personal data in countries where Microsoft processes data, please visit the European Commission website.

Please refer to the Reasons we share personal data section for more information on Microsoft's sharing of data, which include when we transfer data to another country.

Microsoft Corporation complies with the EU-U.S. Data Privacy Framework (EU-U.S. DPF), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-U.S. DPF) as set forth by the U.S. Department of Commerce. Microsoft Corporation has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles (EU-U.S. DPF Principles) with regard to the processing of personal data received from the European Union in reliance on the EU-U.S. DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-U.S. DPF. Microsoft Corporation has certified to the U.S. Department of Commerce that it adheres to the Swiss-U.S. Data Privacy Framework Principles (Swiss-U.S. DPF Principles) with regard to the processing of personal data received from Switzerland in reliance on the Swiss-U.S. DPF.

In the context of an onward transfer, Microsoft Corporation has responsibility for the processing of personal data it receives under the DPF and subsequently transfers to a third party acting as an agent on our behalf. Microsoft Corporation remains liable under the DPF if our agent processes such personal data in a manner inconsistent with the DPF, unless Microsoft Corporation can prove that we are not responsible for the event giving rise to the damage. If there is any conflict between the terms in this privacy statement and the EU-U.S. DPF Principles and/or the Swiss-U.S. DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework (DPF) program, and to view our certification, please visit the U.S. Department of Commerce's Data Privacy Framework website. The controlled U.S. subsidiaries of Microsoft Corporation, as identified in our self-certification submission, also adhere to the DPF Principles—for more info, see the list of Microsoft U.S. Entities Covered by Data Privacy Framework Certification.

If you have a question or complaint related to participation by Microsoft in the DPF Frameworks, we encourage you to contact us via our privacy support and requests page. For any complaints related to the DPF Frameworks that Microsoft cannot resolve directly, we have chosen to cooperate with the relevant EU Data Protection Authority, or a panel established by the European data protection authorities, for resolving disputes with EU individuals, the UK Information Commissioner for resolving disputes with UK individuals, and the Swiss Federal Data Protection and Information Commissioner (FDPIC) for resolving disputes with Swiss individuals. Please contact us if you'd like us to direct you to your data protection authority contacts. As further explained in the DPF Principles, binding arbitration is available to address residual complaints not resolved by other means. Microsoft is subject to the investigatory and enforcement powers of the U.S. Federal Trade Commission (FTC).

Individuals whose personal data is protected by Japan's Act on the Protection of Personal Information should refer to the article on the Japanese Personal Information Protection Commission's website (only published in Japanese) for more information on the commission's review of certain countries' personal data protection systems. For individuals in Japan, please click here for additional information on the processing of information under the Telecommunications Business Act (in Japanese only).

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Advertising

Advertising helps us provide, support, and improve some of our products. Ads may be shown based on your current interactions with us, as well as personalized using information about you over time. You can opt out of receiving personalized ads through our personalized ads and offers page and can opt out of sharing data with third parties for personalized ads by visiting our third-party ad settings page. Microsoft receives and responds to the Global Privacy Control (GPC) browser opt-out signal.

Advertising helps us provide, support, and improve some of our products. Microsoft does not use what you say in email, human-to-human chat, video calls or voice mail, or your documents, photos, or other personal files stored on your device or cloud storage to target ads to you. We use other data for advertising on Microsoft and third-party properties.

Ads may be shown that relate to the current interaction you are having with us, such as your Copilot conversations (including files you share); your current location; transactions; product usage; search queries; or the content you're viewing. For example, if you search "pizza places in Seattle" on Bing, you may see ads for local restaurants in Seattle in your search results.

Where permitted, ads can also be personalized using information about you collected over time, like demographic data, location, search queries, interests, purchase history, favorites, usage of our products and sites, and information from advertisers and partners. We call these kinds of ads "personalized advertising." For example, viewing gaming content on XBOX.com may result in you later seeing game ads on MSN.

Personalized ads use cookies combined with information we collect when your browser interacts with our sites (like your IP address.) Data from cookies will not be used for personalized ads if you opt-out of receiving such ads. To learn more about Microsoft's use of data to deliver personalized advertising and to opt out of receiving personalized advertising from Microsoft, please visit our personalized ads & offers settings page, and see our Opting Out section below.

Certain products have their own personalized ads settings. For example, if you're signed in with your Microsoft account, subject to your privacy settings, we use your online activity in Microsoft Edge to show you personalized ads. You can adjust your Edge privacy settings under Microsoft Edge > Settings > Privacy and Services. In Windows, if the advertising

ID is enabled in your Windows privacy settings, third parties can access and use it to deliver ads in apps.

Further details regarding our advertising-related uses of data:

Advertising industry best practices and commitments. Microsoft participates in industry self-regulatory programs and adheres to the NAI Self-Regulatory Framework. We also adhere to the following self-regulatory programs:

In the US: Digital Advertising Alliance (DAA)

In Europe: European Interactive Digital Advertising Alliance (EDAA)

In Canada: Ad Choices: Digital Advertising Alliance of Canada (DAAC) / Choix de Pub: l'Alliance de la publicité numérique du Canada (DAAC)

Children and advertising. We do not deliver personalized advertising to children whose birthdate in their Microsoft account identifies them as under 18 years of age.

Sensitive Data: Microsoft Advertising does not collect, process, or disclose personal data that qualifies as “sensitive data” under applicable U.S. state data privacy laws for the purposes of providing personalized advertising.

Opting Out. To opt out of receiving personalized advertising from Microsoft, visit our personalized ads and offers page. To opt out of sharing data with third parties for personalized ads, please visit our third-party ad settings page. When you’re logged into your Microsoft account, your opt out choice will be associated with your account and applied across devices whenever you are signed in. If you are not signed in and choose to opt out, your preference is stored in a browser-specific cookie on your device, valid for five years; if you delete cookies, you must opt out again.

Microsoft receives and responds to the Global Privacy Control (GPC) browser opt-out signal in certain jurisdictions. Microsoft will turn off sharing your data with third parties for personalized ads and turn off the “Share my data with third parties for personalized ads” toggle if we receive a GPC signal from you when you visit our sites.

Data collected by or disclosed to other advertising companies. Advertisers sometimes include their own or other advertising partners’ web beacons within their ads that we display, enabling them to set and read their own cookies. In some cases, we share reports with advertisers about the data we have collected on their sites or ads. Additionally, Microsoft partners with Xandr (a Microsoft Company) and third-party ad companies to help provide some of our advertising services, and we also allow other third-party ad companies to display advertisements on our sites. These third parties may place cookies on your devices and collect data about your online activities across websites or online services. These companies currently include, but are not limited to: Facebook, Media.net, Outbrain, Taboola and Yahoo. See our Cookies and similar technologies section for more information.

We may provide collected data to internal and external partners, including Xandr, other subsidiaries and affiliates, Yahoo, Facebook, or Trade Desk to help make sure the ads you see in our products and theirs, or on other sites, are more relevant to you. Individuals in the United Kingdom can learn more about The Trade Desk’s advertising practices in the U.K. and opt out of The Trade Desk’s processing of their data here. Many of these companies participate in the DAA (U.S.), EDAA (Europe) or DAAC (Canada), which provide industry-wide choice tools to opt out of ad targeting from participating companies.

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Other important privacy information

Below you will find additional privacy information, such as how we use diagnostic data, how and when we update our privacy statement, and how to contact us. You can find more information on Microsoft and our commitment to protecting your privacy at Microsoft Privacy.

Diagnostic data

Many Microsoft products collect diagnostic data to keep our services secure and up-to-date; help ensure they work as expected; detect, diagnose, and fix problems; and improve our products. Diagnostic data can include information about crashes, performance, and your usage of our products.

There are two levels of diagnostic data: required diagnostic data and optional diagnostic data. Products that collect diagnostic data will always collect required diagnostic data, but you can control whether to send us optional diagnostic

data.

Required diagnostic data. The minimum data necessary to help keep our products, apps and services secure, up to date, and performing as expected. This includes information about your device, the Microsoft software you are using, settings, capabilities, and performance.

Optional diagnostic data. Additional diagnostic data about your use of a device, application, accessories, or other products and services, which helps us improve our products and detect and fix issues. This may also include data about the websites you browse, device activity (also sometimes referred to as usage), and enhanced error reporting.

See the Microsoft Privacy Report for more information about how we use diagnostic data.

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Preview or free-of-charge releases

Microsoft offers preview, insider, beta or other free-of-charge products and features ("previews") to enable you to evaluate them while providing data about your use of the product, including feedback and device and usage data. As a result, previews can automatically collect additional data, provide fewer controls, and otherwise employ different privacy and security measures than those typically present in our products.

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Changes to this privacy statement

We update this privacy statement when necessary and to provide greater transparency, such as in response to feedback from customers, regulators, industry, or other stakeholders; changes in our products; changes in our data processing activities or policies; or changes in applicable laws.

When we post changes to this statement, we will revise the "last updated" date at the top of the statement and describe the changes on the Change history page. If there are material changes to the statement, such as a change to the purposes of processing personal data that is not consistent with the original purpose for collection, we will provide prominent notice of the change before it takes effect. We encourage you to periodically review this privacy statement for updates.

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How to contact us

If you have a privacy concern, complaint, or question for the Microsoft privacy team or the Data Protection Officer for your region, please visit our privacy support and requests page and click on the “Contact the Microsoft privacy team or the Microsoft Data Protection Officer” menu. We will respond to questions or concerns within a period of no longer than 30 days or where otherwise required by law. You can also raise a concern or lodge a complaint with a data protection authority or other official with jurisdiction.

When Microsoft is a controller, unless otherwise stated, Microsoft Corporation and, for those in the European Economic Area, the United Kingdom, and Switzerland, Microsoft Ireland Operations Limited are the data controllers for personal data we collect through the products subject to this statement. Our addresses are:

Microsoft Privacy, Microsoft Corporation, One Microsoft Way, Redmond, Washington 98052, USA. Telephone: +1 (425) 882 8080.

Microsoft Ireland Operations Limited, Attn: Data Protection Officer, One Microsoft Place, South County Business Park, Leopardstown, Dublin 18, Ireland. Telephone: +353 1 706 3117.

To find the Microsoft subsidiary in your country or region, see the list of Microsoft office locations around the world.

The representative of Microsoft Ireland Operations Limited within the meaning of Art. 14 of the Swiss Federal Act on Data Protection is Microsoft Schweiz GmbH, The Circle 02, 8058 Zürich-Flughafen, Switzerland.

If you would like to exercise your rights under applicable U.S. state data privacy law, you may contact Microsoft at the U.S. address listed above, use our privacy support and requests page, or call our U.S. toll free number +1 (844) 931 2038.

If you are located in Brazil, you may contact us under the LGPD here.

If you are a next of kin, more information about managing your deceased loved one's Microsoft accounts is available on our privacy support and requests page.

If you have a technical or support question, please visit Microsoft Support to learn more about Microsoft Support offerings. If you have a personal Microsoft account password question, please visit Microsoft account support.

We offer various means for you to control your personal data that Microsoft has obtained, and to exercise your data protection rights. You can do so by contacting Microsoft at our privacy support and requests page or the information above, or by using the various tools we provide. Please see the How to access and control your personal data section for additional details.

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Artificial Intelligence and Copilot capabilities

Microsoft leverages artificial intelligence (AI) in many of our products and services, including by incorporating generative AI features. "Copilot" is a family of services, products, and solutions that leverage generative AI technologies to generate outputs.

Our use of AI is subject to Microsoft's AI Principles and Microsoft's Responsible AI Standard, and our collection and use of personal data in developing and deploying our AI features is consistent with our commitments outlined throughout our privacy statement. You can find out more about the tools, practices, and policies Microsoft has created to uphold our responsible AI principles here.

The Microsoft Copilot family of services, products, and solutions leverages generative AI technologies to generate outputs. Microsoft's collection and use of data may differ depending on the service and the intended functionality in a given scenario.

Our use of AI is subject to Microsoft's AI Principles and Microsoft's Responsible AI Standard, and our collection and use of personal data in developing and deploying our AI features is consistent with our commitments outlined throughout our privacy statement. You can find out more about the tools, practices, and policies Microsoft has created to uphold our responsible AI principles here.

The Microsoft Copilot website and app (on Windows, Mac, iOS, and Android) are the core of the consumer Copilot experience, where you can search the web, create content, and interact with features like Copilot Vision, as well as let Microsoft Copilot interact with other apps, services, and websites to take actions on your behalf. When you use Microsoft Copilot, it will use your prompts, location, language, and related settings to provide helpful responses and improve services.

For users in some markets, Microsoft Copilot can use your conversation history (including any memories you save) to personalize your experience. We may also offer you the ability to personalize your Microsoft Copilot experience using your interactions with our other products and services, like Bing, Edge, and MSN. You can manage your memories and control personalization features using the settings in Microsoft Copilot at any time.

Microsoft Copilot also uses prompts and related data to provide and improve services, including relevant advertising. You can manage your prompt history in product and on the Microsoft Privacy Dashboard, and can adjust your location, language, and other additional privacy settings in product. For more information about these capabilities and your choices, see Microsoft Copilot for individuals: your privacy controls and choices.

We also use your conversation data to monitor performance, troubleshoot and fix bugs and issues, prevent abuse, and to provide and improve Microsoft Copilot. Please review the Transparency Note for Microsoft Copilot for information on our safety practices and our efforts to ensure that Microsoft Copilot is consistent with our Responsible AI principles.

Microsoft Copilot also appears in other Microsoft products like Microsoft Edge and XBOX. In these cases, data is generally used according to each product's primary uses. For more information, see the Microsoft Edge and XBOX sections of this privacy statement.

If you use Microsoft Copilot in third-party products and services, such as messaging platforms, Microsoft processes your data as described here, but the third party's privacy policies and data processing activities may also apply.

For enterprise customers, Microsoft Copilot offers enhanced data protection and customization. Data is collected and used as described in the Enterprise and Developer Products section.

The Microsoft Copilot features that appear in Microsoft 365 apps as part of a Microsoft 365 Personal, Microsoft 365 Family, or Microsoft 365 Premium subscription provide AI-powered productivity capabilities through real-time conversational experiences. We do so by applying large language model (LLM) processing on the content you choose to provide in Microsoft 365 apps including Word, Excel, OneNote, Outlook, and PowerPoint. Microsoft Copilot in Microsoft 365 is not available for use in Office desktop licenses. When used with available Microsoft 365 apps, Microsoft Copilot will use the content in your files only when you ask it to perform a specific action on that specific content – for example, when you ask Microsoft Copilot to help you rewrite a paragraph in a Word document or ask Microsoft Copilot to generate a to-do list from your notes in OneNote. Similar to connected experiences, required service data is collected during your use of Microsoft Copilot which includes information related to its operation that is needed to keep the underlying service secure, up to date, and performing as expected. If you use Microsoft Copilot features in Microsoft 365 apps, Microsoft Copilot handles data as described in the Productivity and Communications section of this privacy statement.

See the Microsoft Copilot Privacy Center and Frequently asked questions about Copilot in Microsoft 365 subscriptions for more information.

Copilot Health is a consumer Copilot offering specifically developed to provide personalized assistance focused on health and wellness. Copilot Health allows you to upload health-related data including your personal health records and data from wearable devices. Copilot Health can use that data, along with your prompts and chat history, to provide you with personalized information and recommendations.

The information you choose to submit to Copilot Health is used to provide and operate the Copilot Health service. It is not used to develop or train generative AI models, and it is not used for advertising or marketing purposes. Please see the Copilot Health FAQs for more information.

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Enterprise and developer products, and products provided by your organization

Enterprise and Developer Products are Microsoft products and related software offered to and designed primarily for use by organizations and developers. These include our enterprise online services; other enterprise and developer cloud-based services; other enterprise and developer software; applications and hardware used for storage infrastructure; and professional services available with our online services.

In the event of a conflict between our privacy statement and the terms of any agreement(s) between a customer and Microsoft for Enterprise and Developer Products, the terms of those agreement(s) will control.

You can also learn more about our Enterprise and Developer Products' features and settings, including choices that impact your privacy or your end users' privacy, in product documentation.

Enterprise and Developer Products are Microsoft products and related software offered to and designed primarily for use by organizations and developers. For example:

Enterprise Online Services (referred to as "Online Services" in the Product Terms) that our enterprise customers contract with us for, such as Microsoft 365, Microsoft Azure, Microsoft Dynamics 365, and Microsoft Intune.

Other enterprise and developer cloud-based services, such as Azure PlayFab Services (to learn more see Azure PlayFab Terms of Service).

Other enterprise and developer software, such as Windows Server, SQL Server, Visual Studio, System Center, Azure Stack and open-source software like Bot Framework solutions ("Developer Software").

Appliances and hardware used for storage infrastructure ("Enterprise Appliances").

Professional services referred to in the Product Terms that are available with Enterprise Online Services, such as onboarding services, data migration services, data science services, or services to supplement existing features in the Enterprise Online Services. To learn more, see Microsoft Professional Services.

In the event of a conflict between this Microsoft privacy statement and the terms of any agreement(s) between a customer and Microsoft for Enterprise and Developer Products, the terms of those agreement(s) will control.

You can also learn more about our Enterprise and Developer Products' features and settings, including choices that impact your privacy or your end users' privacy, in product documentation.

When a customer like your employer or school uses, purchases, or subscribes to Enterprise and Developer Products, or obtains support for our professional services with such products, Microsoft collects and generates data to provide the service, conduct our business operations, and communicate with the customer. For example:

When a customer engages with a Microsoft sales representative, we collect the customer's name and contact data, along with information about the customer's organization, to support that engagement.

When a customer interacts with a Microsoft support professional, we collect device and usage data or error reports to diagnose and resolve problems.

When Microsoft sends communications to a customer, we use data to personalize the content of the communication.

The Enterprise and Developer Products enable our customers to purchase, subscribe to, or use other products and online services from Microsoft or third parties with different privacy practices. Those products and online services are governed by their respective privacy statements and policies.

Products provided by your organization—notice to end users

If you use a Microsoft product with a work or school account, that organization can:

Control and administer your Microsoft product and product account, including controlling your access to, and the privacy-related settings of, the product or your account.

Access and process your data, including the interaction data, diagnostic data, and the contents of your communications and files associated with your Microsoft product and accounts.

If your organization provides you with access to Microsoft products, your use of those products is subject to your organization's policies. For privacy questions or to exercise your data protection rights, please contact your organization's administrator. Microsoft is not responsible for the privacy or security practices of our customers, including your work or school, which may differ from this privacy statement.

When you use a Microsoft product provided by your organization, Microsoft processes your personal data as described in the contract with your organization and as needed to provide the product and Microsoft's related business operations. For questions about Microsoft's processing of your data for your organization, contact your organization. If you have questions about Microsoft's business operations in connection with providing products to your organization as provided in the Product Terms, contact Microsoft as described in the How to contact us section.

For Microsoft products provided by your K-12 school, including Microsoft 365 Education, Microsoft will:

not collect or use student personal data beyond that needed for authorized educational or school purposes;

not sell or rent student personal data;

not use or share student personal data for advertising or similar commercial purposes, such as providing personalized advertising to students;

not build a personal profile of a student, other than for supporting authorized educational or school purposes or as authorized by the parent, guardian, or student of appropriate age; and

require that our vendors who receive student personal data in order to provide our educational services to implement these same commitments for student personal data.

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Applicable Terms for Enterprise online services

To provide our Enterprise Online Services, Microsoft processes, uses, and stores data as described in the Product Terms, Microsoft Products and Services Data Protection Addendum (Products and Services DPA), and the Microsoft Trust Center.

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Enterprise and developer software and enterprise appliances

Enterprise and developer software and enterprise appliances collect data to operate effectively and provide the best experiences. The types of data collected depend on the features you use and your organization’s configuration and settings but is generally limited to device and usage data. Customers and, where applicable, end users may have choices about the data provided. Examples include:

Device and usage data collected during installation or upgrade to address technical issues.

Device and usage data from product usage to improve security and functionality.

Optional error reports sent to Microsoft to help diagnose problems and deliver support.

Microsoft uses this data to provide and improve our products, deliver customer support, activate products, communicate with users, and operate our business in compliance with applicable data protection laws.

HoloLens. HoloLens headsets are self-contained Windows computers with Wi-Fi connectivity that enable a mixed reality experience for apps and solutions. Microsoft collects diagnostic data to solve problems and to keep Windows running on HoloLens up to date, secure, and operating properly. Diagnostic data also helps us improve HoloLens and related Microsoft products and services depending on the diagnostic data settings you’ve chosen for your device. See the Diagnostic Data section for more information.

HoloLens also processes and collects data related to the HoloLens experience and device, which include cameras, microphones, and infrared sensors that enable motions and voice to navigate.

If you choose, cameras can be used to sign you in automatically using your iris. To do this, HoloLens takes an image of your iris and measures distances between key points to create and store a numeric value that represents only you. This data stays on the HoloLens and is not shared with anyone, and you can choose to delete this data from your HoloLens at any time.

HoloLens also detects hand gestures intended for system interactions (such as menu navigation, pan/zoom, and scroll). This data is processed on your HoloLens device and is not stored.

HoloLens derives tracking points based on your environment which allows it to understand surfaces in space and allows you to place digital assets on them. There are no images associated with this environmental data and it is stored locally on the HoloLens device. You can choose to delete this data from your HoloLens at any time.

The headset's microphones enable voice commands for navigation, controlling apps, or to enter search terms. Learn more about voice data collection.

View Summary Learn more

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Productivity and communications products

Productivity and communications products are applications, software, and services like Microsoft 365, Microsoft Teams, OneDrive and others that you can use to create, store, and share documents, as well as communicate with others. These services will use your data depending on their features and how you use them – for example, we will collect usage data as well as information about your communications when you use Microsoft Teams, including the time and date and users that are part of the communication. Please see below for more details about these services, their features, and how they use data.

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Microsoft 365, Office, and other productivity apps

Microsoft 365 is a collection of subscription productivity services and applications including Word, Excel, PowerPoint, Outlook, and OneNote, among others. Office is the one-time purchase version of these applications available on PC or Mac and includes Access and Publisher. Both Microsoft 365 and Office are comprised of client software applications and connected online services (or web apps in the case of Microsoft 365 for the web) that span many platforms and have numerous interdependent experiences. For more details about Outlook, see the Outlook section of this privacy statement.

You can manage your privacy by accessing the privacy controls within your Microsoft 365 and Office apps. For more information, see Account Privacy Settings.

Office Roaming Service. The Office Roaming Service helps keep your settings, including your privacy settings, up to date across your devices running Microsoft 365 or Office apps. When you sign in to your apps with either your Microsoft account or an account issued by your organization, the service syncs some of your customized settings to Microsoft servers. When you sign in to another device with the same account, the Office Roaming Service downloads your settings from Microsoft servers and applies them to the additional device. When you sign out of your apps, the service removes your settings from your device. Any changes you make to your customized settings are sent to Microsoft servers.

Diagnostic Data. Diagnostic data is used to (i) keep your Microsoft 365 or Office apps secure and up to date; (ii) detect, diagnose, and remediate problems; and (iii) make product improvements. This data does not include a user's name or email address, the content of the user's files, or information about apps unrelated to Microsoft 365 or Office.

Please see the Diagnostic Data section and Diagnostic Data in Microsoft 365 for more information.

Connected Experiences. Microsoft 365 and Office provide more experiences that are connected to and backed by cloud-based services.

Working with others on a document stored on OneDrive or translating the contents of a Word document into a different language are examples of connected experiences. There are two types of connected experiences.

Experiences that analyze your content. Experiences that use your file content to provide you with design recommendations, editing suggestions, data insights, and similar features. For example, PowerPoint Designer or Editor in Word.

Experiences that download online content. Experiences that allow you to search and download online content including templates, images, 3D models, videos, and reference materials to enhance your documents. For example, templates or PowerPoint QuickStarter.

If you choose to use connected experiences, we will collect required service data to help keep these connected experiences reliable, up to date, secure, and performing as expected.

Privacy controls within your Microsoft 365 and Office client apps allow you to configure your connected experiences. But even if you turn off connected experiences, certain functionality will remain available, such as syncing your mailbox in Outlook, as well as essential services described below. These controls are not available when using Microsoft 365 for the web since you will already be cloud-connected. For more information about accessing these controls, see Account Privacy Settings.

Essential services. There are a set of services that are essential to how Microsoft 365 and Office function and cannot be disabled. For example, the licensing service that confirms that you are properly licensed to use Microsoft 365 is essential. Required service data is collected and sent to Microsoft, regardless of any other settings that you have configured. See Essential Services for more information.

Required service data for connected experiences. As you use a connected experience, required service data necessary to deliver our cloud-based connected experiences is sent to and processed by Microsoft.

Required service data can include information related to the operation of the connected experience that is needed to keep the underlying service secure, up to date, and performing as expected. If you choose to use a connected experience that analyzes your content — for example Translate in Word — the text you typed and selected to translate is also sent and processed to provide you with the connected experience. Your text and the translation are not stored by our service. See Required service data for more information.

Using device capabilities. Some Microsoft 365 applications make use of your device capabilities using certain features. In PowerPoint, for example, the presentation recording feature can access your device microphone and camera to record presentations with audio and video. Your device microphone is also accessed via the Record audio feature and when using Speaker Coach. When creating a PowerPoint presentation, you can also use the Screenshot and Screen clipping features to capture screen contents. When using the Screenshot feature in the Sticky Notes experience, you can capture content from the active window of other apps on your device and insert it into your note. You can then view, edit, and annotate the captured content within Sticky Notes. Some Microsoft 365 applications, including PowerPoint, Word, and OneNote, provide Dictate, a connected experience which lets you use speech-to-text to draft content using your microphone. In Word and OneNote, the Transcribe connected experience converts speech recorded directly in the app using your microphone or using a speech audio recording to a text transcript with each speaker individually separated. OneNote can also insert photos or record video using your camera. All Microsoft 365 apps along with To Do and Whiteboard have sharing functionality that accesses your contacts to allow you to share your documents with others in your contacts list. Applications will not access your device capabilities until you begin using the feature.

You can manage your microphone and camera access settings in the Windows Privacy Settings menu. Go to Start > Settings > Privacy or Privacy & Security. To learn more about how to control your privacy settings in apps, see Windows privacy settings that apps use.

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Microsoft Family Safety

The Microsoft Family Safety M365 product allows a family group to connect through the Microsoft Family Safety app on their Windows, XBOX, or mobile devices. Please carefully review the information at Microsoft Family Safety if choosing to create or join a family group.

Microsoft Family Safety can help parents and guardians through tools such as digital content filtering, screen time limits, spending for Microsoft and XBOX stores, setting age limits for apps and games, and location sharing. To learn about how Microsoft collects and uses children’s data, see the Collection of data from children section of the Privacy Statement. If you are using Microsoft Family Safety in Windows, see the Windows security and safety features section of the Privacy Statement for more information.

To enable Family Safety controls on a child account, the child account must be part of a family group. Accounts that require parental consent to be created are automatically included as part of the family group of the individual who consented to the child account’s creation. For accounts that do not require parental consent to be created, the parent or guardian must add the account to their family group in order to use Family Safety controls.

When you have enabled family activity reporting for a child, Microsoft will collect details about how the child uses their devices, such as search, web, app, and game activity, and provide parents with reports of that child's online activities. Activity reports are routinely deleted from Microsoft servers.

Certain Family Safety features, such as Location Sharing, Drive Safety, Share Drives, Places, and Location Alerts, will use your location information when enabled. When you have enabled Location Sharing, for instance, your device will upload location data to the cloud and share it with others in your family group. Microsoft retains only your last known location as part of the Location Sharing feature. When you enable Drive Safety, your location will be used to record your driving habits, such as whether you are driving within the speed limits, if you’re using your phone while driving, and if you accelerate or brake suddenly. These reports will be uploaded to the cloud, and you can choose to share your drive reports with your family group. You can turn off these location features at any time in the Family Safety settings. You can manage your device’s location data on the Microsoft Privacy Dashboard. Learn more about Family Safety and your location data.

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Microsoft Launcher

Microsoft Launcher is an Android app that offers a highly customizable app launcher experience on Android devices.

Microsoft Launcher lets you log in with your personal Microsoft account or work account or use it without any account. However, some functions may be limited if you do not grant certain permissions.

To use Microsoft Launcher, the application must be installed on your Android device, and permissions are required to enable the following features:

Microsoft Copilot. When signed in with your personal Microsoft account, you can seamlessly use Copilot features like chat, web search, voice search, and image search. Certain Copilot features require access to your device capabilities, such as your device camera, microphone, photos, and videos. Please see our Artificial Intelligence and Copilot capabilities section for more information.

Glance. Glance helps you organize daily activities, such as Outlook calendar, To Do list, Sticky Notes, and recent documents in your M365 apps. After signing-in with your personal Microsoft account or your work account, your data will be synced across devices signed into the same account to give you personalized experiences. It also lets you review recent activities, like recent photos and app usage, if you have given Glance permission to access that data.

News Feed. When you sign in with your Microsoft account, you can enjoy a personalized news feed and advertisements in Launcher’s News Feed, synchronized across all your devices. You can also receive local curated news when you grant Microsoft Launcher permission to access your location information. You can manage your ad preferences through the Microsoft privacy dashboard.

Weather Notifications. Microsoft Launcher allows you to receive the latest weather information on your home screen with MSN Weather. You can receive up-to-date local weather information when you allow Launcher to access your location or provide your zip code.

Backup and Restore. Microsoft Launcher's backup and restore feature lets you easily transfer between phones or try different home screen setups. Backups can be stored locally on your device or saved to your OneDrive account associated with your Microsoft account for easy access.

Microsoft Launcher supports Android work profile features, enabling you to maintain a clear boundary between personal and work data on your device. This means you can securely access work resources without mixing them with your personal apps and data.

To learn more about Microsoft Launcher and its supported features, please visit here.

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Microsoft Teams

This section applies to the consumer offering of Teams; if you are using Teams with a school or work account, see the Enterprise and developer products section of this privacy statement.

Teams is an all-in-one collaboration and communication hub. As part of providing Teams features, Microsoft collects usage data as well as information about your communications, including the time and date of the communication and users that are part of the communication. With your consent, you can share your location with friends and family.

Your Teams profile includes information you provided when you set up a Microsoft account, including your display name, email, and/or phone number. Your Teams profile information may become visible to other users through your interactions with them or through your use of other apps or services, including Loop. Microsoft may also share this information with enterprise customers when you interact through meetings and chats with end users who are using their school or work account. For instance, if you engage in a Teams chat with a user who is using Teams associated with their school account, Microsoft may share your information with that user's school as part of providing the Teams service.

Finding Teams contacts. To enable other people to find you on Teams (or products that interact with Teams for personal use, including Teams for enterprise), your Teams profile is included in the Teams public search directories, and may be displayed on Teams. Depending on your settings, Teams users can find you by your display name, email, and/or phone number. Your profile includes your username, profile photo, and any other data you choose to add to your profile or display to others. Your Teams profile may be visible to enterprise customers and their end users when you engage with an end user of an organization in chats and meetings.

Syncing Teams contacts. With your permission, Teams will sync your device and Outlook contacts periodically and check for other Teams users that match contacts in your device or Outlook address books. If you choose to stop syncing your device or Outlook contacts, or if you are inactive on your device, any contacts that have not been matched during the synchronization process will be deleted from Teams. If you wish to invite any of your device or Outlook contacts to

join a conversation, you can invite users to a 1:1 directly, or Microsoft can send an invitation on your behalf via SMS or email for invitations to group conversations.

Notice to non-user contacts. If your information appears in the device or Outlook address books of a Teams user who chooses to sync their device or Outlook contacts with their Teams contacts, Microsoft may process your data in order to determine whether you are a current Teams user and to allow Teams users to invite you to the service, including via SMS and email. As long as the Teams user continues to be active on Teams on their device and continues to enable contact syncing with the applicable device or service, your information will be stored on our servers, and we will periodically process your information as a part of the Teams user's contact syncing experience to check whether you have subsequently joined Teams.

Learn more about contact sync in Teams.

If you do choose to join Teams, you will appear as a suggested new Teams contact for any Teams users with your information in their device or Outlook address books.

Third-party contacts. You can also choose to sync contacts from third-party providers. You can choose to unsync your third-party contacts on Teams or remove third-party contacts from all Microsoft apps and services. Please note that removing a third-party account from Teams may impact your experiences on other Microsoft apps and services that also use that account.

Teams calendar. You can also choose to sync your Teams calendar with calendars from third-party providers. You can stop syncing your Teams calendar anytime by removing a third-party account from Teams. If you have consented to use third-party data on other Microsoft apps and services, please note that removing this third-party account data in Teams may impact your experiences on other Microsoft apps and services.

Push notifications. Teams uses the notification service on your device to let you know of incoming calls, chats, and other messages. For many devices, these services are provided by another company. To tell you who is calling, for example, or to give you the first few words of the new chat, Teams has to tell the notification service so that they can provide the notification to you. The company providing the notification service on your device will use this information in accordance with their own terms and privacy policy. Microsoft is not responsible for the data collected by the company providing the notification service.

If you do not want to use the notification services for incoming Teams calls and messages, turn it off in the settings found on your device.

Chats and meetings with Enterprise customer end users. Many Microsoft products are intended for use by organizations, such as schools and businesses, as well as individual users. Please see the Enterprise and developer products section of this privacy statement if you are using Teams with a work or school account. If you engage in Teams meetings or chats with end users of organizations, the data you share with the end users is subject to their organization's policies, if any. You should direct your privacy inquiries related to your data shared through chats and meetings with an organization's end users, including any requests to exercise your data protection rights, to the organization's administrator. Microsoft is not responsible for the privacy or security practices of our customers, which may differ from those set forth in this privacy statement.

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Microsoft Translator

Microsoft Translator is a machine translation system and service designed to automatically translate between numerous supported languages. Microsoft Translator is available as a stand-alone consumer app for Android, iOS, and Windows and is also integrated into a variety of Microsoft products and services, such as Translator Hub, Translator for Bing, and Translator for Microsoft Edge. Microsoft Translator processes the text, image, and voice data you submit, as well as device and usage data, to provide translations, personalize your experiences, and improve our products and services. Microsoft uses business and technical measures designed to help de-identify submitted data — such as deleting identifiers and certain text like email addresses and some number sequences that could contain personal data — when randomly sampling text and audio for product improvement. To learn more about how Microsoft manages your voice data, see Speech recognition technologies.

Separate Microsoft translation services are available as features in other Microsoft products and services that have different privacy practices than Microsoft Translator. For more information on the Microsoft Azure Cognitive Services

Translator Text API, Custom Translator, and Translator Speech API, see the Enterprise and developer products section of this privacy statement. For the Translate feature in Microsoft 365 apps, see the Productivity and communications products section of this privacy statement.

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OneDrive

OneDrive lets you store and access your files on virtually any device as well as share and collaborate on your files with others. Some versions of the OneDrive application enable you to access both your personal OneDrive (by signing in with your personal Microsoft account) and your OneDrive for Business (by signing in with your work or school Microsoft account).

When you use OneDrive, we collect data about your usage of the service, as well as the content you store, to provide, improve, and protect the services. For example, we index the contents of your OneDrive documents so that you can search for them later. We also collect device information so we can deliver personalized experiences, like enabling you to sync content across devices.

When you store content in OneDrive, your content will inherit the sharing permissions of the folder it's stored in. For example, if you store content in a public folder, the content will be public and available to anyone who can find the folder.

When you share content from your OneDrive account to a social network like Facebook, either your content is uploaded directly to that social network, or a link to that content is posted to that service. Doing this makes the content accessible to anyone on that social network. To delete the content, delete it from both the social network (if it was uploaded there) and from OneDrive.

When you share your OneDrive content with others via a link, an email with the link is sent to them, and allows anyone with the link to access your content. If one of the people who received the link sends it to other people, they will also be able to access your content, even if you did not choose to share the content with them. You can revoke access to your content on OneDrive by signing in to your account and then selecting the specific content to manage the permission levels. Once permissions are revoked, the link is deactivated and no longer usable unless you reshare it.

Files managed with OneDrive for Business are stored separately from files stored with your personal OneDrive. OneDrive for Business collects and transmits personal data for authentication, such as your email address and password, which will be transmitted to Microsoft and/or to the provider of your Microsoft 365 service.

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Outlook

Outlook.com. Outlook.com is the primary consumer email service from Microsoft and includes email accounts with addresses that end in outlook.com, live.com, hotmail.com, and msn.com. Outlook.com provides features that let you connect with your friends on social networks. You will need to create a Microsoft account to use Outlook.com.

When you delete an email or item from a mailbox in Outlook.com, the item generally goes into your Deleted Items folder where it remains for approximately 7 days unless you move it back to your inbox, you empty the folder, or the service empties the folder automatically, whichever comes first. When the Deleted Items folder is emptied, those items remain in our system for up to 30 days before final deletion, unless we are legally required to retain the data for longer.

Outlook applications. Outlook client applications are software you install on your device that permits you to manage email, calendar items, files, contacts, and other data from email, file storage, and other services, like Exchange Online or Outlook.com, or servers, like Microsoft Exchange. You can use Outlook applications like the Outlook for Windows app across multiple accounts, even accounts from third-party providers. To add an account to your Outlook applications, you must provide permission for Outlook to access data from the email or file storage services.

When you add an account to Outlook, your emails, calendar, files, contacts, settings, and other data automatically sync to your device. On the mobile Outlook app, this data also syncs to Microsoft servers to enable enhanced features like improved search and personalized mail filtering. On desktop, you can choose whether to sync your data to Microsoft servers. You can remove accounts or change sync settings at any time.

If you add a work or school account, your organization can set rules and controls — like requiring multi-factor authentication or remotely erasing data on your device — that can affect how you use Outlook.

Using device capabilities. For Outlook clients that support it, you can use the Dictate feature to dictate the contents of and send an email. You can Dictate with your device's microphone or any other microphone you connect to your device. Outlook may also use your device location information to provide you with weather information for your current location as well as provide the ability to search for nearby locations.

To learn more about the data the Outlook applications collect and process, please see the Microsoft 365 section of this privacy statement.

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Skype

The Skype Dial Pad allows you to make and receive calls to landlines or mobile numbers. This section applies to the consumer version of Skype; if you are using Skype for Business, see the Enterprise and developer products section of this privacy statement.

As part of providing these features, Microsoft collects usage data about your calls, including the time and date and the numbers or user names that are part of the calls.

Compatibility with Teams. As a Skype user, you can also log into Teams using your Skype account. If you log into Teams via your Skype credentials, you can use Teams to chat with and call other Teams users. For more information about Teams, see the Microsoft Teams section of this privacy statement.

Emergency calling from the Skype Dial Pad in the United States. If you enable location sharing for emergency calling, your location will be periodically collected to enable Microsoft to share your location with emergency calling service providers if you dial 911. Your location information is only shared if you enable location sharing for emergency calling and you initiate a 911 call.

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Surface

Microsoft offers its family of Surface devices and accessories to provide a great computing experience, including surfing the web, watching and streaming videos, playing games, running apps like Excel, Word, and OneNote, and more. These include devices and accessories like Surface Laptops, Surface Studios, Surface Book, Surface Pro, Surface Headphones, Surface Earbuds, Surface Dock, Surface Keyboard, and more.

Diagnostic data. Microsoft collects diagnostic data as you use your Surface devices, Surface accessories, and Surface applications. For more information, see the Diagnostic data section of this privacy statement, Diagnostic data for Surface products and Diagnostic data in the Surface app. For a list of Surface required diagnostic data collected, see Required diagnostic data for Surface products.

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Surface Duo

Surface Duo supports cellular and Wi-Fi connectivity and can be used for email, internet browsing, games, and business connectivity.

Microsoft provides a core Surface Duo experience that runs on the Google Android operating system. The core Surface Duo experience includes apps such as the Microsoft Launcher, Setup Wizard, and Your Phone Companion. You can sign in with a Google ID and enable various Google services; you can then also sign in with your Microsoft account and enable Microsoft services. Microsoft apps and services may rely on information provided by Google. Some features, such as location, require that you enable this functionality for Google and separately allow Microsoft to leverage this information.

Diagnostic data. Surface Duo collects diagnostic data to solve problems and to keep the core Surface Duo experience up to date, secure, and operating properly. This data also helps us improve Surface Duo and related Microsoft products and services. The data does not include your user name, email address, or the content of your files. See the Diagnostic data section of this privacy statement for more information.

Learn more in Surface Duo Privacy Settings.

Surface Duo location settings. Surface Duo uses Google location services for determining your device's precise geographic location to provide you with enhanced experiences such as to show you your local weather. To allow Microsoft apps to access location-based features, you must enable location services for both Google and Microsoft . Some apps may require you to enable these settings separately within the Surface Duo's Settings. The Google Privacy Policy provides details about Google's location service and related data privacy practices. See Surface Duo Location Settings for more information.

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SwiftKey

The Microsoft SwiftKey keyboard and related cloud-based services (collectively, "SwiftKey") process data about words you use and how you type. Microsoft uses this data to learn your writing style, and to provide personalized autocorrection and predictive text that adapts to you. We also use this data to offer a range of other features, such as emoji predictions.

SwiftKey prediction technology learns and reflects your writing style by analyzing the words and phrases you use most often across various apps and websites creating a personalized language model to optimize text predictions. The keyboard avoids collecting sensitive information by excluding data from certain fields like passwords or payment details.

When you opt in to share with us, SwiftKey collects device and usage data and uses de-identified device data, usage data, and model data to analyze service performance and improve products. You can also choose to share your SwiftKey language and typing data to help improve Microsoft products and services. If you opt in, SwiftKey may send short, de-identified snippets of what and how you type, along with related correction data to our servers for processing. These text snippets are used in automated processes to validate prediction services and enhance product features. To protect your privacy, these snippets are never linked to your SwiftKey account. You can manage your choices at any time in SwiftKey Settings.

SwiftKey includes an optional OneDrive backup component. If you turn on backup and sync, SwiftKey saves your language model and related data to OneDrive, allowing you to use your personalized prediction synchronization, additional services, and settings across all your devices. You must sign in with a Microsoft account to enable OneDrive backup and sync. Data in OneDrive is protected by OneDrive's security controls, including encryption in transit and at rest. You can turn backup off at any time in SwiftKey Settings and manage or delete SwiftKey data in your OneDrive.

When you use the camera feature in SwiftKey, you can choose to apply Augmented Reality (AR) effects to your selfies through third-party lens services. The lens feature processes your video and images to extract information about the location of your face and hands, solely for the purpose of transforming your appearance with AR effects. This session-based data is processed only on your device, is not used to personally identify you, is deleted immediately after use, and is never sent to SwiftKey or any third party.

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LinkedIn

To learn about the data LinkedIn collects and how it is used and shared, please see LinkedIn's Privacy Policy.

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Search and browse

Search and browse products connect you with information and intelligently sense, process, and act on information—learning and adapting over time. For more information on artificial intelligence and Copilot capabilities in Microsoft's search and browse products, please see Artificial Intelligence and Microsoft Copilot capabilities above.

Search and browse products connect you with information and intelligently sense, process, and act on information—learning and adapting over time. For more information on artificial intelligence and Copilot capabilities in Microsoft's search and browse products, please see Artificial Intelligence and Microsoft Copilot capabilities above.

Bing

Bing services include search and mapping services, as well as other apps and programs described in this section. Bing services collect and process data in many forms, including text that has been inked or typed, voice data, and images. Bing services are also included within other Microsoft services, such as Microsoft 365, and certain features in Windows – we refer to these as Bing-powered experiences.

When you conduct a search, or use a feature of a Bing-powered experience that involves you conducting a search or entering a command, we will use that data (which could take the form of text, voice data, or an image), along with your IP address, location, the unique identifiers contained in our cookies or similar technologies, the time and date of your search, and your browser configuration to complete the task you've requested. If you use Bing voice-enabled services, your voice input and the performance data associated with the speech functionality will be sent to Microsoft. Learn more about how we use and protect voice data in speech recognition technologies.

Copilot Search. Bing now includes an AI-enhanced web search functionality, Copilot Search, which supports users by reviewing and summarizing search results from across the web, and sparking creativity by helping users create content. Copilot Search's use and collection of personal data is consistent with Bing's core web search offering as described in this section. Learn more about Copilot Search here.

Search suggestions. The search suggestions feature allows us to provide you with relevant suggestions as you type your searches. To provide this feature, Microsoft collects the characters that you type and what you click on. To turn this feature on or off in Bing, go to Bing Settings. In the Microsoft Edge browser, go to Edge Settings to turn off search suggestions. Search suggestions cannot be turned off in the search box in Windows 10 and Windows 11.

Bing experience improvement program for Bing Desktop and Bing Toolbar. If you are using Bing Desktop or Bing Toolbar and choose to participate in the Bing Experience Improvement Program, we also collect additional data about how you use these specific Bing apps, including the addresses of the websites you visit, to help improve search ranking and relevance. We do not use the data collected through the Bing Experience Improvement Program to identify or contact you or to personalize advertising. You can turn off the Bing Experience Improvement Program at any time in the Bing Desktop or Bing Toolbar settings. We delete the information collected through the Bing Experience Improvement Program after 18 months.

Personalization through Microsoft account. Bing provides you with an enhanced experience when you sign in with your personal Microsoft account, including syncing your search history across devices, customizing your interests, favorites, and settings, and connecting your account with third-party services. Visit Bing Settings to manage your personalization settings.

Managing search history. When you're signed in with your personal Microsoft account, you can manage your Bing search history on the Microsoft privacy dashboard or through Bing Settings. These tools allow you to review and clear your search terms and clicked results from Bing. Clearing your history in Bing removes it from your search history, but does not delete information from our search logs, which are retained and de-identified as described above or based on your privacy dashboard instructions.

Third-party services that use Bing. You may also access Bing-powered experiences when using third-party services. In order to provide these services, Bing receives data from these and other partners, including your search query and related data (such as date, time, IP address, and a unique identifier). We will use this data as described in this statement or as further limited by our contractual obligations with our partners. Please refer to the privacy policies of the third-party services for any questions about how these third parties collect and use your data.

Data passed to destination website. When you select a search result or advertisement from a Bing search results page and go to the destination website, the destination website will receive the standard data your browser sends to every web site you visit—such as your IP address, browser type and language, and the host name of the site you came from.

Sharing data from Bing and Bing-powered experiences with third parties. We share some de-identified data from Bing and Bing-powered experiences with selected third parties. Before we do so, we run the data through a process designed to remove certain sensitive data that users may have included in the search terms themselves (such as social security numbers or credit card numbers). We require these third parties to keep the data secure and to not use the data for purposes other than for which it is provided.

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Microsoft Edge

Microsoft Edge is the default web browser for Windows and is also available on other supported versions of Linux, macOS, iOS, and Android. Microsoft collects data that is necessary to provide features you request in Microsoft Edge. Data about how you use your browser, such as your browsing history, web form data, temporary internet files, and cookies, are stored on your device. Edge can also store your passwords on your device in Password Manager. You can delete this data from your device in Edge settings.

Keep in mind that whenever you use a web browser to access the internet, standard data about your device—like your IP address, browser type and language, access times, and referring website addresses—is sent to the websites you visit and online services you use. Those websites and services may log that data on their servers. Which data they log and how they use that data depends on the privacy practices of the websites you visit and web services you use.

Microsoft Edge collects diagnostic data to keep the service up to date, secure, and operating properly. You can also choose to send optional diagnostic data—including usage information, browsing history, information about websites you visit, and search terms—to help enhance Microsoft Edge and other Microsoft products and services. The diagnostic data collected by Microsoft Edge is stored with one or more unique identifiers that help us recognize an individual browser installation on a device and understand the browser's service issues and use patterns. Please see the Diagnostic data section of the privacy statement for more.

When you allow it, Microsoft Edge collects and uses data from your search activity across the web, including websites Microsoft does not own or operate, to improve Microsoft services. This data may include your search queries, the search results and your interactions with those results (like the links you click), and demographic information that is part of the search results. Microsoft Edge de-identifies this data and retains it for one year. Microsoft does not use this collected data to personalize or provide ads to you. You can turn off this data collection in your Edge settings.

Syncing across devices. When you sign into Microsoft Edge using your Microsoft account, Microsoft Edge will store your privacy preferences and apply these settings across your signed-in devices, including during Windows device setup or when you sign into Microsoft Edge with your account on a new device.

Microsoft Edge can sync your browser data—including your favorites, browsing history, extensions and associated data, settings, open tabs, autofill form entries (like your name, address, and phone number), passwords, and payment information—across your signed in devices. You can control which data to sync in Edge settings. If you delete browser data while synced, you will delete the data across all signed-in devices. If you choose to sync extensions that you acquired from third-party web stores, a copy of those extensions will be downloaded directly to your synced device(s).

Personalization. You may also choose to share your Microsoft Edge browsing activity with us to allow us to personalize Microsoft Edge and other Microsoft services like ads, Bing, Shopping, MSN, and Copilot. Browsing activity includes your browse history, favorites, usage data, and web content. You can stop sharing your Microsoft Edge browsing activity within Edge settings. The See ads that interest you setting on the Microsoft privacy dashboard lets you control the use of your browsing activity for personalized ads. For more information about our advertising practices, see the Advertising section of this privacy statement.

If you have turned on Microsoft's Password Monitor, your saved credentials are hashed, encrypted, and sent to the Password Monitor service so that we can warn you if your credentials were detected in a malicious attack or a breach. We do not retain this data after the check is complete.

Microsoft Edge's Search and site suggestions feature uses your search queries and browsing history to provide faster and more relevant browse recommendations. As you type in the address bar, Microsoft Edge sends your search queries, standard device data, and location (if enabled) to your default search provider for real-time suggestions and search results. You can disable these features in Edge settings. If Bing is your default search provider, we use this data as described in the Bing section of this privacy statement.

Copilot in Edge collects and processes data in order to provide the services requested, including text that has been typed, voice data, and uploaded files. When using Copilot features in Microsoft Edge, you can choose to allow Microsoft Copilot in Edge to access your browsing activity, including screenshots of webpages you visit, open tabs, and browsing history to provide better answers and enable advanced Copilot features. You can manage Copilot in Edge choices in Edge settings. If you choose to use features that perform tasks on your behalf, Copilot will capture visual snapshots of the pages it visits to interact with and complete the action. Microsoft Edge's use of data connected with Copilot experiences is consistent with the Copilot data use described in the Artificial Intelligence and Microsoft Copilot

capabilities section of this privacy statement.

Certain features in Microsoft Edge connect you to MSN content, such as when you open a new tab in the browser. Data use in MSN is covered by the MSN section of this privacy statement.

Learn more about Microsoft Edge, browsing data, and privacy.

View Summary Learn more

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Windows

Windows is a personalized computing environment that enables you to seamlessly roam and access services, preferences, and content. In order to provide this cloud-based computing experience, and keep it secure and up to date, we collect data about you, your device, and the way you use Windows. We also provide you with optional features like personalized tips, ads, and recommendations. Windows gives you choices about the personal data we collect and how we use it. If your device is managed by an organization (such as your employer or school), your organization may use centralized management tools to access and process your data, and to control device settings, devices, software updates, and data collection.

For more details about Windows features and how Windows uses data — including privacy controls, Windows Search, speech recognition, location services, sync and backup, security, Windows apps, AI, and more — see Learn More below. This statement discusses Windows 10 and Windows 11; earlier versions of Windows are subject to their own privacy statements.

Windows is a personalized computing environment that enables you to seamlessly roam and access services, preferences, and content across your computing devices. Key components of Windows are cloud-based, and both cloud and local elements of Windows are updated regularly, providing you with the latest improvements and features. To provide this computing experience, we collect data about you, your device, and the way you use Windows. And because Windows is personal to you, we give you choices about the personal data we collect and how we use it. If your Windows device is managed by your organization, your organization may use centralized management tools provided by Microsoft or others to access and process your data (including your interaction data, diagnostic data, and the contents of your communications and files), and to control device settings (including privacy settings), device policies, software updates, data collection by us or the organization, or other aspects of your device.

Windows Settings, formerly known as PC Settings, is an essential component of Microsoft Windows, and offers a convenient interface for adjusting user preferences, configuring the operating system, and managing connected devices so that you can manage user accounts, adjust network settings, and personalize various aspects of Windows. Windows Settings also allows you to manage which apps can access various device capabilities such as the device’s camera, microphone, location, calendar, contacts, call history, messages and more, while controlling access to your personal data. Each capability has its own privacy settings page in Windows Settings, so you can control which apps can use each capability.

Key features of Settings include:

Customization: Personalize Windows appearance, language, and privacy settings, including using device features like the microphone, camera, and location.

Peripheral Management: Install and manage devices such as printers, monitors, and external drives.

Network Configuration: Adjust Wi-Fi, Ethernet, cellular and VPN settings, using relevant device identifiers.

Account Management: Add or remove user accounts and manage sign-in options.

System-Level Options: Configure display, notifications, power, and manage installed apps and more.

Privacy & Security Management: Set privacy preferences such as location and collection of diagnostic data. Fine-tune which individual apps and services can access device capabilities by turning them on or off.

For more information about data collection in Windows, see Data collection summary for Windows. This statement discusses Windows 10 and Windows 11 and references to Windows in this section relate to those product versions. Earlier versions of Windows are subject to their own privacy statements.

Activation

When you activate Windows, a specific product key is associated with the device on which your software is installed. The product key and data about the software and your device are sent to Microsoft to help validate your license to the software. This data may be sent again if there is a need to re-activate or validate your license. On phones running Windows, device and network identifiers, as well as device location at the time of the first power-up of the device, are also sent to Microsoft for the purpose of warranty registration, stock replenishment, and fraud prevention.

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Advertising ID

Windows generates an advertising ID for each user on a device, which Microsoft, third-party apps, and advertising networks can use to provide relevant ads and personalized experiences on apps and across the web, similar to how websites use cookies. App developers and advertising networks can also use it for their own purposes, subject to their own privacy policies and the controls described below.

The advertising ID setting applies to Windows apps using the Windows advertising identifier. You can turn off use of the advertising ID in the Windows Settings app. Learn more about advertising ID in Windows.

The advertising ID setting does not apply to other methods of personalized advertising delivered by Microsoft or third parties, such as cookies used to provide personalized display ads on websites. Third-party products accessed through or installed on Windows may also deliver other forms of personalized advertising subject to their own privacy policies. For more information on how Microsoft uses data for advertising, see the How we use personal data and Advertising sections of this privacy statement.

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Cellular plan activation from Mobile Operator website

When you seek to activate a cellular data plan from a third-party mobile operator for your Windows device through the Settings app in Windows, the mobile operator's website may request access to your device and SIM card identifiers. With your consent, the Settings app may share the specific identifiers with the operator’s website.

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Diagnostics

As we mention in the Diagnostic data section above, Microsoft collects diagnostic data to solve problems and to keep its products like Windows up to date, secure, and operating properly, and to improve Windows and related Microsoft products and services. This data is periodically collected from your device and stored with unique identifiers to help Microsoft recognize individual users on a device and identify issues and usage patterns.

Certain product documentation and other materials refer to required diagnostic data as “Basic diagnostic data” and to optional diagnostic data as “Full diagnostic data.” Please see the Data collection summary for Windows for more information about how Windows uses diagnostic data. For a current list of required diagnostic data and optional diagnostic data collected, see Windows Required (Basic level) diagnostic events and fields or Windows Optional (Full level) diagnostic data.

If you use a work or school account, your organization may enroll your device in the Windows diagnostic data processor configuration. Microsoft processes Windows diagnostic data based on a contract with the organization. If an organization uses Microsoft management tools or engages Microsoft to manage your device, Microsoft and your organization can process and use diagnostic and error data from your device for device management, monitoring, troubleshooting, and other organizational purposes.

Required diagnostic data includes information about your device, its settings and capabilities, and whether it is performing properly. We collect the following required diagnostic data:

Device, connectivity, and configuration data:

Data about the device such as the processor type, OEM manufacturer, type of battery and capacity, number and type of cameras, firmware, and memory attributes.

Network capabilities and connection data such as the device's IP address, mobile network, and whether the device is connected to a free or paid network.

Data about the operating system and its configuration such as the OS version and build number, region and language settings, diagnostics data settings, and whether the device is part of the Windows Insider program.

Data about connected peripherals such as model, manufacturer, drivers, and compatibility data.

Data about the applications installed on the device such as application name, version, and publisher.

Whether a device is ready for and can receive an update based on factors like low battery, limited disk space, or connectivity through a paid network.

Whether updates complete successfully or fail.

Data about the reliability of the diagnostics collection system itself.

Basic error reporting, which is health data about the operating system and applications running on your device.

Optional diagnostic data includes more detailed information about your device and its settings, capabilities, and device health. When you choose to send optional diagnostic data, required diagnostic data will always be included, and we collect the following additional information:

Additional data about the device, connectivity, and configuration, beyond that collected as part of required diagnostic data.

Status and logging information about the health of operating system and other system components beyond that collected about the update and diagnostics systems under required diagnostic data.

App activity, such as which programs are launched on a device, how long they run, and how quickly they respond to input.

Browser activity, including browsing history and search terms, in Microsoft Edge.

Enhanced error reporting, including the memory state of the device when a system or app crash occurs (which may unintentionally contain user content, such as parts of a file you were using when the problem occurred).

Even if you choose to send us optional diagnostic data, some of the data described above might not be collected from your device. Microsoft minimizes the amount of data it collects by collecting some of the data from only a subset of devices (sample). The Diagnostic Data Viewer tool shows if your device is part of a sample and what specific data is collected from your device. You can find download instructions for the Diagnostic Data Viewer tool in the Windows settings app under Diagnostics & feedback.

The specific data collected through Windows diagnostics may change as needed to address new issues or support recently released devices. For example, Microsoft may collect new types of data to troubleshoot performance problems or update devices. We provide limited portions of error report information to partners, like device manufacturers, solely to help them repair or improve their products and services, which work with Windows and other Microsoft products and services. We may also share aggregated, de-identified diagnostic data, such as general usage trends for Windows apps and features, with select third parties. Learn more about diagnostic data in Windows.

Inking and typing recognition. You can choose to help Microsoft improve inking and typing recognition by sending inking and typing diagnostic data. If enabled, Microsoft collects samples of what you type or write to enhance features like handwriting recognition, autocompletion, next word prediction, and spelling correction across languages. The collected data is divided into small samples and processed to remove information that could identify you or reconstruct the original content, such as unique identifiers, sequencing details, email addresses, and numeric values. Performance data, including text changes you make manually and words you add to the dictionary, is also included. Learn more about improving inking and typing in Windows.

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Personalized offers

If you choose to turn on Personalized offers, we will use information about your device and how you use it, including Windows diagnostic data, in combination with your account info and data collected by other Microsoft products and services to offer you personalized tips, ads, and recommendations to enhance your Windows experiences. Personalized offers include suggestions on how to customize and optimize Windows, as well as ads and recommendations for Microsoft and third-party products and services, features, apps, and hardware to enhance your Windows experiences. For example, Windows might tell you about new features to help you get the most out of your device. If you stream movies in your browser, Windows might recommend an app from the Microsoft Store that streams more efficiently. Or, if you are running out of space on your hard drive, Windows might recommend you try OneDrive or purchase hardware to add more storage.

When Personalized offers is on, Windows may use your required diagnostic data to personalize offers. This data may include information about your device, its settings and capabilities, and whether it is performing properly. If you have decided to share optional diagnostic data, the data used to personalize offers may also include information about how you use apps and features, plus additional information about the health of your device. We may also use information about your device and your activity to personalize offers locally on your device, even when the data does not leave your device. We do not use the content of crash dumps, speech, typing, or inking input data for personalizing offers.

In addition to information about your device and how you use it, including Windows diagnostic data, we may use or combine the following data from other Microsoft products and your account with Windows diagnostic data to personalize offers:

Web activity, if you give Microsoft Edge permission to collect your web activity for personalized search, ads, and news.

Info about your use of other Microsoft products and services, including Microsoft Bing, Microsoft 365, XBOX, and Microsoft websites, such as MSN.com.

Subscription and purchase history.

Data from third-party websites which may be shared with Microsoft.

We may also use information about your interactions with tips, recommendations, and promotions to provide and improve the personalized offers and similar messages in other Microsoft products.

To manage how data collected by other Microsoft products is used to personalize offers, you can visit your Personalized ads and offers page. In some regions such as the European Economic Area, turning off Personalized offers on Windows also stops the use of data from other Microsoft products to personalize tips, ads, and recommendations in Windows. In other regions, you can manage how data collected by other Microsoft products is used to personalize offers by visiting your Personalized ads and offers page.

Contextual data from your device and some basic account data are used to show you appropriate messaging in Windows regardless of whether the Personalized offers setting in Windows or the settings to use data from other Microsoft products to personalize offers are turned off. For example, this data is used to make sure content is in the correct language and appropriate for your age group.

Personalized offers applies to tips, offers, ads, and recommendations you see in Windows. Changing this setting will not impact the kinds of offers you may see in other Microsoft products. You can change this setting at any time by searching for Personalized offers in the Windows Settings app. Learn more about personalized offers.

Tailored experiences

Tailored experiences is being replaced by Personalized offers in more recent versions of Windows. If you have not installed the latest Windows Update, you may still see Tailored experiences on your device.

If you choose to turn on Tailored experiences, we will use your Windows diagnostic data (Required or Optional as you have selected) to offer you personalized tips, ads, and recommendations to enhance Microsoft experiences. If you have selected Required as your diagnostic data setting, personalization is based on information about your device, its settings and capabilities, and whether it is performing properly. If you have selected Optional, personalization is also based on information about how you use apps and features, plus additional information about the health of your device. However, we do not use information about the websites you browse, the content of crash dumps, speech, typing, or inking input data for personalization when we receive such data from customers who have selected Optional. Tailored experiences

data is transmitted to Microsoft and stored with one or more unique identifiers that can help us recognize an individual user on an individual device and understand the device's service issues and use patterns.

Tailored experiences include suggestions on how to customize and optimize Windows, as well as ads and recommendations for Microsoft and third-party products and services, features, apps, and hardware for your Windows experiences. For example, to help you get the most out of your device, we may tell you about features you may not know about or that are new. If you are having a problem with your Windows device, you may be offered a solution. You may be offered a chance to customize your lock screen with pictures, or to be shown more pictures of the kind you like, or fewer of the ones you do not. If you stream movies in your browser, you may be recommended an app from the Microsoft Store that streams more efficiently. Or, if you are running out of space on your hard drive, Windows may recommend you try OneDrive or purchase hardware to gain more space. Learn more about tailored experiences in Windows.

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Feedback Hub

Feedback Hub gives you a way to provide feedback on Microsoft products and installed first party apps and in some cases third-party apps. It determines the apps installed on your device through public APIs. For HoloLens users, Feedback Hub can access your camera and microphone when you choose to share surroundings or audio input and uses your picture and document libraries to attach screenshots and screen recordings for feedback submissions.

You can sign into Feedback Hub with either your personal Microsoft account or a work or school account. When you use a work or school account your feedback may be associated with your organization and viewable by its administrators through Feedback Hub or the admin center. Regardless of which account you use, your feedback may be publicly accessible depending on your organization's settings.

When you submit feedback about a problem to Microsoft, diagnostic data is sent to help improve Microsoft products and services. The Feedback Hub will either send this data automatically or give you the option to send it, depending on your diagnostic data settings in the Diagnostics & feedback section of Windows settings. Additional personal data may be collected based on the type of feedback you provide to better troubleshoot specific issues – for example, location data when providing feedback about location services. Microsoft may also share your feedback and related data with partners, like device manufacturers or firmware developers to assist in resolving issues with products and services that work with Windows. Learn more about diagnostic data in Windows.

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Get Help

Get Help enables Windows users to get technical support on Windows and other Microsoft applications. It provides you with self-service support (such as links to help articles or directions on how you can solve problems on your own), recommends Diagnostics, and helps connect you to a live Microsoft agent if needed. If you choose to run a Diagnostic, any diagnostic data collected is handled according to the Windows Diagnostics section above. You can sign in with your Microsoft account to create a support case, and enterprise account users may also be able to do the same based on their organization's support contract and administrator settings.

If enabled by system settings, you can use the system microphone in Get Help to voice your support question instead of typing, with controls available in the "Microphone Privacy Settings" in the Windows Settings app. Get Help does not use your location for its services.

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Live captions

Live captions transcribe audio to help with the comprehension of spoken content. Live captions can generate captions from any audio containing speech, whether the audio is online, downloaded to your device, or received from your microphone. By default, transcribing microphone audio is disabled.

Voice data that is captioned is only processed on your device and is not shared to the cloud or with Microsoft. Learn more about live captions.

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Location services

Windows location service. Microsoft's location service helps determine the precise geographic location of your Windows device using a combination of GPS, nearby wireless access points and routers, cell towers, IP address, or default location.

Location services give you control over which apps are allowed to access your precise location. When location services are turned off, Windows and apps will not have access to device location, and some apps may not be able to access information about Wi-Fi networks. With location services turned on, apps can access approximate location and can request permission to use precise location. You can manage these permissions in Windows Settings. When location is enabled, data about cell towers and Wi-Fi access points and their locations are collected, de-identified, and used to improve location services. Learn more about location in Windows.

If an app or feature accesses your device's location and you are signed in with your Microsoft account, your last known location information is also saved to the cloud. This information is available across your devices to other apps or services that use your Microsoft account and to which you've granted permission. This location information can be viewed or deleted from your Microsoft account privacy dashboard.

There are some exceptions to how your device's location can be determined that are not directly managed by the location settings. For example, desktop apps are a type of app that do not support per-app control over precise location access. Desktop apps are usually downloaded from the internet or installed from media (such as a CD, DVD, or USB storage device).

Even when you've turned off location services in Windows, some third-party apps and services could use other technologies (such as Bluetooth, IP address, cellular modem, etc.) or cloud-based location services to determine your device's location with varying degrees of accuracy.

To facilitate getting help in an emergency, whenever you make an emergency call, Windows will attempt to determine and share your precise location, regardless of your location settings. In addition, your mobile operator will have access to your device's location if your device is using a cellular service.

General location. If you turn on Location services in Windows Settings, apps that cannot use your precise location may still have access to your general or coarse location, such as your city, postal code, or region.

A limited set of features in Windows will use your IP address to provide you with contextual information for your area if location services are turned off, such as weather on the taskbar. For information about certain Windows apps that use the device's location, see the Windows apps section of this privacy statement.

Find my device. The Find my device feature allows an administrator of a Windows device to find the location of that device from account.microsoft.com/devices. To enable Find my device, an administrator needs to be signed in with a Microsoft account and have the location setting enabled. This feature will work even if other users have denied access to location for all their apps. When the administrator attempts to locate the device, users will see a notification in the notification area. Learn more about Find my device in Windows.

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Narrator

Narrator is a built-in Windows screen reader that enables you to navigate your device without a screen. When you use features such as image descriptions or page title descriptions (by pressing Narrator + Ctrl + D), or popular links lists (Narrator + double press of S), the image or URL of the web page you're visiting is sent to Microsoft. This data is used only to generate the requested descriptions or summaries and to improve Microsoft services, such as Bing. Images are not retained by Microsoft after analysis.

You can disable these features at any time by going to Narrator>Get image descriptions, page titles and popular links in Settings in Windows.

You can also send feedback about Narrator to help Microsoft diagnose and resolve problems with Narrator and improve Microsoft products and services, such as Windows. Verbal feedback can be submitted at any time in Narrator by using Narrator Key + Alt + F. The Feedback Hub app will launch when you use this command and give you the opportunity to submit verbal feedback. If you enable the setting "Help Make Narrator Better" in the Windows settings app and submit verbal feedback through Feedback Hub, recent device and usage data, including event trace log (ETL) data, will be

submitted along with your verbal feedback to improve Microsoft products and services, such as Windows.

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Linked mobile experiences on Windows

The Phone Link feature lets you link your mobile phone to your Windows PC, enabling a variety of cross-device experiences across all your Windows devices.

Some Phone Link features, and the resulting data that is synced between your phone and Windows devices, differs for Android devices and iPhones and is described separately below.

As part of providing Phone Link's features, Microsoft collects performance, usage, and device data that includes, for example, the hardware capabilities of your mobile phone and Windows device, the number and duration of your sessions on Phone Link, and the amount of time you spent during setup.

Android Devices

You can use Phone Link to see recent photos, view and send text messages, and make and receive live calls from your Android phone on your Windows device. You can also view, dismiss, or perform other actions to your Android phone notifications and instantly access and use Android apps installed on your Android phone from your Windows device and share your phone screen on your Windows device through Phone Link's mirroring function.

To use Phone Link, you must install the Link to Windows app on your Android device and grant the requested app permissions. You must log into your Microsoft account on the Phone Link feature on your Windows device and on Link to Windows on your Android phone. Both devices must be connected to the internet. Some features require Bluetooth and pairing your phone with your PC.

We never store your texts, call history, photos, or what apps you have or information displayed by the apps on our servers or change them on your phone.

You can unlink your Android phone from your Windows device at any time by going into your Phone Link settings and choosing to remove your Android phone, or from the settings in Link to Windows on your Android phone. For detailed information, see our support page.

Text Messages. Phone Link allows you to view text messages delivered to your Android phone on your Windows device and send text messages from your Windows device. Phone Link accesses the content of your text messages and the sender's or recipient's contact information. These text messages are temporarily stored on your device and only those messages received and sent within the last 30 days are visible on your Windows device.

Calls. Phone Link allows you to make, receive, and view your recent calls from your Android phone on your Windows device. To activate this feature, you must enable certain permissions on both the Phone Link Settings page on your Windows device and Android phone's settings, such as call logs access and permission to make phone calls from your PC. These call details are temporarily stored on your Windows device and only calls received and dialed within the last 30 days are visible under call logs on your Windows device.

Photos. Phone Link allows you to copy, share, edit, save, or delete a limited number of your most recent photos from your Android phone on your Windows device. These photos are temporarily stored on your Windows device.

Notifications. Phone Link allows you to view, read, dismiss, or perform other actions related to your Android phone's notifications on your Windows device. To activate this Phone Link feature, you must enable certain permissions, such as sync notifications, on both your Windows device and Android phone.

Apps mirroring. On supported devices, Phone Link allows you to use the Android apps that are installed on your Android phone on your Windows device. Microsoft collects a list of your installed Android apps and recent activity to provide the service and show you your most recently used apps but does not retain further information.

Instant Hotspot. On supported Android devices, Link to Windows enables users to share mobile hotspot information with their paired PC over secure Bluetooth communication. Your PC can then be connected to the internet. Please note mobile data charges may apply depending on your mobile data plan.

Contacts. Link to Windows allows you to sync your Android contacts into the Microsoft cloud. You can access them in other Microsoft products and services by going into Link to Windows settings and enabling "Contacts sync" feature. Your contacts information is stored online and associated with your Microsoft account. Learn more.

iPhones

You can use Phone Link to make and receive calls from your iPhone, view and send text messages, and view, dismiss, or perform other actions on your iPhone notification from your Windows device.

To use Phone Link, you must have Bluetooth enabled on your iPhone. You may also optionally install the Link to Windows app on your iPhone.

You can unlink your iPhone from your Windows device at any time by going into Phone Link settings and choosing to remove your iPhone. You can do the same from your iPhone by going into Settings > Bluetooth > Selecting your PC name > click on the (i) icon > and choosing Forget This Device.

We never store your texts or call history on our servers or change them on your iPhone.

Text Messages. Phone Link allows you to view text (SMS) messages delivered to your iPhone on your Windows devices and send text messages from your Windows device. Phone Link accesses the content of your text messages and the sender's or recipient's contact information. These text messages are temporarily stored on your Windows device and only text messages received and sent within your Bluetooth session or iMessage are visible on your Windows devices.

Calls. Phone Link allows you to make, receive, and view your recent calls from your iPhone on your Windows device. To activate this feature, you must enable the Sync Contacts feature under Bluetooth settings on your iPhone. These call details are temporarily stored on your Windows device.

Notifications. Phone Link allows you to view, read, dismiss, or perform other actions related to your iPhone's notifications on your Windows device. To activate this Phone Link feature, you must enable certain permissions such as sync notifications, on both your Windows device and iPhone.

Contacts. Phone Link allows you to sync your contacts from your iPhone to access them for messaging and calling by going into Bluetooth settings on your iPhone and toggle on Sync Contacts under your PC name after connecting your iPhone to Phone Link.

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Cross-device experiences

Cross-device experiences in Windows enable access to a linked mobile device from your PC through your Microsoft account. By linking your mobile device and enabling these experiences, Windows may make certain mobile device content available across Windows to deliver features and services that support integrated cross-device functionality. These can be managed under "Mobile Devices" in the Bluetooth & Devices section in your Windows PC Settings. As part of providing these features, Microsoft collects performance usage and device data, including information about the hardware capabilities of your mobile and Windows devices. You can turn this feature on or off at any time in your Windows PC Settings.

Use your mobile device as a connected camera. This feature allows you to use your mobile device's camera in apps or products on Windows that support camera functionality. You can enable this feature under "Mobile Devices" in the Bluetooth & Devices section in the Settings on your PC. Microsoft does not record or store your camera sessions or any of the information displayed by your camera in any of the applications or products.

Get new photo notifications from your mobile device. This feature allows you to receive notifications from your linked mobile device on your Windows PC. These photos are temporarily stored on your Windows PC while you are editing or opening those photos. You will need to initiate saving to your PC to store those photos until you decide to delete them. We never store your photos on our servers or change or delete any photos on your mobile device.

Show your mobile device in File Explorer and device name in Windows Share. This feature allows you to access your mobile device's files in File Explorer. You can enable this feature under "Mobile Devices" in the Bluetooth & Devices section in the Settings on your PC. Microsoft will not store your file contents in its services.

You can also enable access to your linked mobile device through Windows Share. You can turn on this feature in Settings > Bluetooth & devices > Mobile devices. Once enabled, your linked devices are visible in Windows, allowing you to share files and folders between your PC and your mobile device.

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Recording

Some Windows devices have a recording feature that allows you to capture audio and video clips of your activity on the device, including your communications with others. If you choose to record a session, the recording will be saved locally on your device. In some cases, you may have the option to transmit the recording to a Microsoft product or service that broadcasts the recording publicly. Important: You should understand your legal responsibilities before recording and/or transmitting any communication. This may include obtaining the prior consent of everyone participating in the conversation or any other authorizations as required. Microsoft is not responsible for how you use recording features or your recordings.

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Security and safety features

Device encryption. Device encryption helps protect the data stored on your device by encrypting it using BitLocker Drive Encryption technology. When device encryption is on, Windows encrypts the drive Windows is installed on and generates a recovery key. The BitLocker recovery key for your personal device is automatically backed up online and associated with your personal Microsoft account. Microsoft doesn't use your individual recovery keys for any purpose.

Malicious Software Removal Tool (MSRT). MSRT runs on your device at least once per month as part of Windows Update, and checks for infections by specific, prevalent malicious software ("malware") and helps remove any infections found. When MSRT runs, it will remove the malware listed on the Microsoft Support website if the malware is on your device. During a malware check, a report will be sent to Microsoft with specific data about malware detected, errors, and other data about your device. You can turn off MSRT's reporting feature if you do not want to send this data to Microsoft.

Microsoft Family. Parents can use Microsoft Family Safety to understand and set boundaries on how their child is using their device. Please carefully review the information at Microsoft Family Safety if choosing to create or join a family group. For users under the age of 13 or as specified by law in their jurisdiction, certain Microsoft products and services will either block users under that age or will ask them to obtain consent or authorization from a parent or guardian before they can use it, including when creating an account to access Microsoft services. If you are under the statutory age in your region, during the registration process you'll be prompted to request consent from a parent or guardian by entering an adult’s email. When Family activity reporting is turned on for a child, Microsoft will collect details about how the child uses their device and provide parents with reports of that child's activities. Activity reports are routinely deleted from Microsoft servers.

Microsoft Defender SmartScreen and Smart App Control. Microsoft strives to help protect your device and passwords from unsafe apps, files, and web content.

Microsoft Defender SmartScreen helps protect you and your device by identifying threats from unsafe websites, apps, and files. When checking content, it sends relevant data—including web addresses and, if needed, details about suspicious sites or apps—to Microsoft for security analysis. This data will only be used for security purposes in detecting, protecting against, and responding to security incidents, identity theft, fraud, or other malicious, deceptive, or illegal activities. If a threat is found, you'll receive a warning instead of the content. You can turn this feature on or off in the Windows Security app.

Where supported, Smart App Control checks software installed on your device to identify potential threats. On supported devices, it begins in evaluation mode using data collected by Microsoft Defender SmartScreen—such as file names, hashes, download locations, and digital certificates—to determine if Smart App Control is suitable for your device. If your device qualifies, Smart App Control is automatically enabled for added protection; otherwise, it remains permanently off. For unsupported or unsuitable devices, Microsoft Defender SmartScreen continues to provide protection. When Smart App Control is active, it blocks and alerts you about apps identified as malicious, potentially unwanted, or unknown and unsigned before they open, run or install. Learn more about Smart App Control.

When either Microsoft Defender SmartScreen or Smart App Control checks a file, data about that file is sent to Microsoft, including the file name, a hash of the file’s contents, the download location, and the file’s digital certificates. You can turn Smart App Control on or off in the Windows Security app.

Microsoft Defender Antivirus. Microsoft Defender Antivirus automatically activates to protect your device when no other antimalware software is running and monitors your device’s security status and scans for malware, unwanted software, and potentially harmful apps. When Microsoft Defender Antivirus is turned on or otherwise running, it automatically

sends reports to Microsoft with data about suspected malware and other unwanted software, potentially unwanted apps, and other malicious content. It may also send files that could contain malicious content, such as malware or unknown files for further inspection. If a report may contain personal data, you'll be asked for permission before it’s sent. You can choose to disable reporting and file sharing with Microsoft.

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Speech, Voice Activation, Inking, and Typing

Speech. Microsoft provides both a device-based speech recognition feature and cloud-based (online) speech recognition technologies.

Turning on the Online speech recognition setting lets apps use Microsoft cloud-based speech recognition. Additionally, in Windows 10, the Online speech recognition setting enables your ability to use dictation within Windows.

Turning on speech while setting up a HoloLens device or installing Windows Mixed Reality allows you to use your voice for commands, dictation, and app interactions. Both device-based speech recognition and online speech recognition settings will be enabled. With both settings enabled, while your headset is turned on the device will always be listening to your voice input and will send your voice data to Microsoft’s cloud-based speech recognition technologies.

When you use our cloud-based speech recognition technologies, we collect and use your voice recordings and create a text transcription of the spoken words in the voice data. Microsoft will not store, sample, or listen to your voice recordings without your permission. Learn more about Microsoft and your voice data.

You can turn off online speech recognition at any time and stop any apps that rely on the online speech recognition setting from sending your voice data to Microsoft. You can still use device-based speech recognition services that do not rely on the cloud and only use device-based recognition—like captions, Narrator, or voice access—without sending your voice data to Microsoft. However, Microsoft cloud-based speech recognition technologies provide more accurate recognition than the device-based speech recognition.

If you are using a HoloLens or Windows Mixed Reality headset, you can also turn off device-based speech recognition at any time. This will stop the device from listening for your voice input. Learn more about speech recognition in Windows.

Voice activation. Windows provides supported apps with the ability to respond and take action based on voice keywords that are specific to that app.

If you’ve given permission for an app to listen for voice keywords, Windows will actively monitor the microphone for those keywords. Each app needs to ask for your permission before accessing your microphone. When a keyword is detected, the app will access and process your voice recording, take action, and respond, such as with a spoken answer. The app may send your voice recording to its own cloud services to process commands and collect the recordings for other purposes, such as improving its services.

Voice activation functionality can be enabled when the device is locked and the screen is off. Once an app is activated with a voice keyword, it may continue listening to the microphone. The app may be activated by anyone who speaks near the device and have access to the same set of capabilities and information as when the device is unlocked.

You can turn off voice activation at any time. Learn more about voice activation in Windows.

Even when you’ve turned off voice activation, some third-party desktop apps and services could still be listening to the microphone and collect your voice input. Learn more about third-party desktop apps and how they may still be able to access your microphone even with these settings turned off.

Voice typing. In Windows 11, dictation is now voice typing. Voice typing may use both device-based and online speech recognition technologies to power its speech-to-text transcription service. You can also choose to contribute voice clips to help improve voice typing. If you choose not to contribute voice clips, you can still use voice typing. You can change your selection anytime in the voice typing settings. Microsoft will not store, sample, or listen to your voice recordings without your permission. Learn more about Microsoft and your voice data.

Voice access. Windows enables everyone, including people with mobility disabilities, to control their PC and author text using their voice. For example, voice access supports scenarios like opening and switching between apps, browsing the web, and reading and authoring mail. Voice access leverages modern, on-device speech recognition to accurately recognize speech and is supported without an internet connection. When a user invokes voice access it uses the device microphone. Learn more about voice access.

Inking & Typing Personalization. Your typed and handwritten words are collected to provide you with a custom word list, better character recognition to help you type and write on your device and text suggestions that appear as you type or write.

You can turn off inking & typing personalization at any time. This will delete your custom word list stored on your device. If you turn it back on, you'll need to recreate your custom word list. Learn more about inking & typing personalization in Windows.

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Sync and backup settings

When you sign into Windows with your Microsoft account, Windows can store your settings, files, and device configuration data in Microsoft's servers. Windows will only use the stored settings, files, and device configuration data to make it easier for you to migrate your experience on a different device.

You can turn off this feature and stop Windows from storing your settings, files, and configuration data from the Windows settings. You can delete the data that has been backed up previously to your Microsoft account, by visiting your Microsoft Account Devices page.

Learn more about Windows backup and sync settings.

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Update Services

Update Services for Windows includes Windows Update and Microsoft Update. Windows Update is a service that provides you with software updates for Windows software and other supporting software, such as drivers and firmware supplied by device manufacturers. Microsoft Update is a service that provides you with software updates for other Microsoft software such as Microsoft 365.

Windows Update automatically downloads Windows software updates to your device. You can configure Windows Update to automatically install these updates as they become available (recommended) or have Windows notify you when a restart is required to finish installing updates. Apps available through the Microsoft Store are automatically updated through the Microsoft Store, as described in the Microsoft Store section of this privacy statement.

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Windows AI Features

Click to Do

Click to Do can operate as a stand-alone feature or in partnership with Windows Recall. Once started, Click to Do enables you to capture and analyze screenshots, identify the presence of text and images, and offers relevant actions for each—such as editing a screenshot or revising captured text. Click to Do cannot identify the content within screenshots, but you can use local AI or other tools to modify that content if you wish. All activity remains on your local device unless you explicitly choose, like sending an image for a Bing search, requesting a summary of selected text (which is processed by Microsoft's Azure AI cloud service), or using another tool to modify a screenshot.

Additionally, Click to Do allows you to use your microphone to search for text within a captured screenshot: when you click the microphone button, it listens to what's said, enters it into the Search box, and highlights all matching results. The audio captured by the microphone is not transmitted off your device.

Windows Recall

Recall is a Windows feature available exclusively on Copilot+ PCs that helps users find previously viewed content using remembered text or visual clues. To use Recall, users must opt-in to save snapshots — screen images with metadata like app name and time stamp — which are securely stored locally and protected with Windows Hello Enhanced Sign-in Security (ESS). Each time Recall is opened, users must authenticate using Windows Hello biometric sign-in or PIN to decrypt snapshot contents. Analysis and processing of snapshots occur only on the device. Click to Do runs on top of snapshots in Recall to help you to take actions with your images or text on the screen.

Recall lets you search for text within captured snapshots using your Copilot+ PC's microphone. When you click on the microphone button inside the Search box within the Recall window, it enters what you said in the Search box. The microphone remains active until you pause your speech, and all audio captured stays on your device.

Recall securely stores all captured data—including personal data like snapshots, metadata, processing results, and user queries—locally on your Copilot+ PC and within your signed-in account. This information is never transmitted off your device unless you take action, such as copying a snapshot to another app or submitting feedback through the Windows Feedback Hub with a snapshot attached. The only way Recall content can be shared is by explicit user action on the device.

You can control your content (such as snapshots, metadata, search queries, and history) by pausing or deleting snapshots, filtering content, or using a supported browser in privacy mode. Learn more about your privacy and control over your Recall experience.

In addition to the Recall search feature, Recall also has a timeline feature that organizes snapshots chronologically in a timeline, displayed via a horizontal scrollbar, making it easy to review and utilize your past PC activities. Within the timeline view, you can delete snapshots individually, by website domain, or by app.

Recall also has a Sensitive Content filter that is on by default to help prevent the retention of information that might be more delicate in nature (e.g., credit card numbers, state issued ID numbers, etc.). Users can turn this filter off if they wish in Windows Settings.

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Windows apps

A number of Microsoft apps are included with Windows and others are available in Microsoft Store. Please visit Microsoft Store to learn more about each of these apps, including:

Camera app. If you allow the Camera app to use your location, location data is embedded in the photos and videos you take with your device. Other descriptive data, such as camera model and the date that the picture or video was taken, is also embedded in photos and videos. If you choose to share a photo or video, any embedded data will be accessible to the people and services you share with. Once enabled, you can always disable the Camera app's access to your location by turning off all access to the location service in your device's Settings menu or turning off the Camera app's access to the location service.

When the Camera app is open, it shows rectangles detected by the selected camera for areas in the image that are potentially used for image enhancement. The Camera app does not retain any image enhancing data. You can always change your camera access settings in the Windows Settings menu. The Camera app uses various device capabilities such as location, camera, microphone, video, and picture library.

Photos app. There are two versions of the Photos app available. The updated Photos app includes features like iCloud integration and local and cloud folder views. The previous legacy version of the Photos app includes features like Video Editor, the People tab, and Albums. You are using the updated Photos app if the "About" section in the Photos app settings indicates the app is the "Updated" Photos app.

The updated Photos app lets you organize, view, and share photos and videos by grouping them through options such as name, date taken or modified, and storage location, whether locally or synced from cloud services like OneDrive and iCloud. You can move, copy, or upload files to your computer or OneDrive, and quickly access all photos by date, favorites, folders, and cloud service tabs for easy navigation and management.

The Photos legacy app lets you organize, view, and share your photos and videos, offering features not available in the updated Photos app, such as Collections, Albums, Video Editor, and the People setting. Collections display photos and videos by date taken. Albums help organize by location and tags and the Video Editor provides tools for editing, creating, and sharing videos.

The People setting in the Photos legacy app, when enabled, uses face grouping technology to organize your local photos and videos by detecting faces and grouping visually similar ones. You can associate these facial groupings with contacts from your People app. You can enable this feature either from the Settings page or the People tab.

When People settings are enabled in the legacy app, your groupings will be stored on your device for as long as you keep groupings, or the related photos or videos themselves. If you haven't interacted with the Photos legacy app for

three years, you'll be prompted to allow continued facial grouping. You can turn the People setting on or off at any time in the Settings page; turning it off removes facial grouping data from the app but does not delete your photos or videos. Learn more about the Photos legacy app and facial grouping.

If you choose to share a photo or video using the Photos app or the Photos legacy app, any embedded data (such as location, camera model, and date) will be accessible to the people and services you share the photo or video with.

People app. The People app centralizes your contacts in one place by automatically importing them when you add accounts, including email and social network accounts. When you add an account, we tell you what data the People app can import or sync with the particular service and let you choose what you want to add. Other apps you install may also sync data to the People app, including providing additional details to existing contacts. When viewing a contact, recent interactions such as emails and calendar events from synced apps are displayed. You can remove accounts from the People app at any time.

Mail and Calendar app. The Mail and Calendar app allows you to connect all your email, calendars, and files in one place, including those from third-party email and file storage providers. When you add an account to the Mail and Calendar app, your email, calendar items, files, contacts, and other settings from your account will automatically sync to your device and to Microsoft servers. To configure an account, you must provide the app with your account credentials (such as username and password), which will be sent to the third-party provider's server. If your account is provided by an organization (like a work account), the account owner can implement certain policies and controls that may affect your use of the app — for example, multi-factor authentication or the ability to remotely wipe data from your device. The app also provides location-based services, such as weather information in your calendar. You can remove an account, make changes to the data that's synced from your account, or disable access to your device's capabilities like your location and camera at any time.

Windows operator messages (previously Microsoft Messaging) app. The Windows Operator Messages app receives and shows account-related SMS texts from your mobile operator about your data plan (such as your billing and data limits) on your PC or device. These messages are stored locally on your device. From your device, you can also access, view, and delete these messages. This app uses your device capabilities such as Contacts.

The Clock app. The Clock app is your hub for time management and focus on Windows. When users sign in with their Microsoft account, they can enable Microsoft To Do, a cloud connected experience. When the user turns on Focus Session in Microsoft To Do, session data is stored locally, which you can clear by going to the Clock settings page. Additionally, Focus Sessions supports connecting to Spotify accounts to listen to ambient audio.

Microsoft Journal. Microsoft Journal is a Windows application specifically designed for touch-focused, pen-capable devices such as tablets and 2-in-1 devices. It provides users with freeform personal note-taking experience. The app leverages AI and machine learning to better recognize your handwriting that processes data locally on your device. Users with a Microsoft 365 subscription can access their M365 calendar and contacts within the app. Journal lets you access photos library and the device camera and microphone so that you can add them to a workbook. Learn about Journal app here.

Microsoft PC Manager. Available in select regions, PC Manager is a desktop tool aimed at boosting your PC's performance. Based on your request, PC Manager will scan your device, and allow you to delete unneeded or temporary documents, optimize cache, stop or recover from unauthorized changes, or use other features to improve your PC's performance.

PC Manager will block pop-ups based on ad-block rules and the pop-up windows selected by you through custom block. If you agree to join the "Microsoft PC Manager Pop-up Plan," when you block pop-up windows through custom block, you can help us optimize Microsoft PC Manager's pop-up management feature by taking screenshots of the pop-up and sending them to Microsoft. Microsoft does not collect information other than screenshots, Windows title, and the class of Windows. Screenshots are only retained for a short period of time and regularly deleted. You can manage your Pop-Up Plan preferences through the PC Manager settings. The feedback feature in PC Manager may also process personal data if you include it in the feedback you provide to Microsoft. The feedback from users is regularly deleted after processing.

Circle to Act. Circle to Act is a service offered by PC Manager for selected markets, featuring tools such as Screenshot Tool, Text Extraction, Translation, and Smart Copy. To enable the Smart Copy feature, screenshots you upload during use may be processed by Microsoft in data centers located outside of your location. For the Text Extraction and Translation features, screenshots captured during use will be transmitted to Microsoft Azure, operated and maintained

by Microsoft or our local operation partners within your region. These screenshots are processed locally, and the results are returned to you upon completion. Microsoft does not retain any image or text data you submit or the results provided, except where required to comply with legal obligations.

Snipping Tool. The Snipping Tool uses your microphone and pictures library to capture and store screenshots and screen recordings. The Snipping Tool includes a Text Action feature, which uses built-in optical character recognition (OCR) support. You can select and copy text directly from images using OCR. With clipboard integration items copied from the Snipping Tool are also copied to your clipboard. If you enable clipboard history across devices, the copied content can be used seamlessly across different devices. Users can manage their clipboard and snipping preferences through the Windows settings.

Sound Recorder app. The Sound Recorder app is designed for capturing audio via your microphone in various scenarios. While recording, you can mark key moments to easily locate important sections later. You can also trim, adjust volume levels, or apply other modifications as needed, and playback your recordings. Your recordings are autosaved and stored in your Documents folder for easy access, and you can share your recorded audio with friends and family.

Microsoft Clipchamp. Microsoft Clipchamp is a video editor that allows you to combine videos, images, and audio files, as well as add text and effects, and then save the finished video to your device or personal OneDrive via your Microsoft account. You can allow Clipchamp to access your camera and microphone to record videos directly from your device. Clipchamp will collect your imprecise location to provide a better experience, such as choosing which language to display to you.

Media Player. Media Player is Windows' default built-in multimedia player. When you open a multimedia file, Media Player will read the contents of that file. When you open Media Player, it will read the contents of your Music library and Video library folders to populate its own Music library and Video library pages inside the Media Player to help you organize, view, and play multimedia content.

To enrich your experience when playing music, Media Player will automatically attempt to display artist art and album art for the content you play and the content in your music library. To provide this information, Media Player sends an information request to Microsoft containing standard device data, such as your device IP address, device software version, your regional and language settings, and an identifier for the content. You can disable this feature on the app's Settings page.

Movies & TV. Microsoft Movies & TV allows you to rent or buy movies and TV episodes, and play them on your device.

To help you discover content that may interest you, Movies & TV will collect data about what movies and TV shows you watch, including the length of play and any ratings you give.

Movies & TV can also display and play local video files stored on your PC. To do this, it needs access to the video library on your device.

Windows Media Player Legacy. You can use Windows Media Player Legacy to play CDs and other digital content such as video, audio, and picture files, rip CDs, and manage your media library. To enhance your experience, the player displays related media information like album titles, song titles, album art, artist, and composer. To provide additional media details, Windows Media Player Legacy may send a request to Microsoft that includes standard computer information, a media content identifier, and your library's existing media information (including any edits or entries you've made) so Microsoft can recognize the track and return other available information.

Windows Media Player Legacy also allows you to play back content streamed over a network by communicating with streaming media servers, which are usually operated by non-Microsoft content providers. During playback of streaming media, the player may send a log to the streaming media or web server containing details such as connection time, IP address, operating system version, Windows Media Player Legacy version, Player ID number, date, and protocol. To help protect your privacy, the Player ID sent by Windows Media Player Legacy is unique to each session.

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Windows Hello

Windows Hello provides instant access to your devices through biometric authentication. If you turn it on, Windows Hello uses unique points or features that are extracted from your face, fingerprint, or iris and stored on your device as a template to identify you—but it does not store the actual image of your face, fingerprint, or iris. Biometric verification data that's used when you sign in doesn't leave your device and remains on your device until you remove it. After a significant period of Windows Hello inactivity, you will be prompted to confirm that you want to continue to store your biometric verification data. You can delete your biometric verification data from within Settings. Learn more about Windows Hello.

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Windows Search

Windows Search lets you search your stuff and the web from one place. If you choose to use Windows Search to search "your stuff," it will provide results for items on your personal OneDrive, your OneDrive for Business if so enabled, other supported third-party cloud storage providers and on your device. If you choose to use Windows Search to search the web, or get search suggestions with Windows Search, your search results will be powered by Bing and we will use your search query as described in the Bing section of this privacy statement. Learn more about search in Windows.

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Entertainment and related services

Entertainment and related services like XBOX, Microsoft Store, and MSN power rich experiences and enable you to access a variety of content, applications and games. We collect and use your information depending on how you use these services to fuel your experience – for example, we collect your unique identifiers, information about how you interact with in these services, who you chat with, what content you upload, and products you search for and buy. See below for more details about these services, their features, and how they use data.

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XBOX

The XBOX network is the online gaming and entertainment service from Microsoft that consists of software and enables online experiences across different platforms. This service lets you find and play games, view content, and connect with friends on XBOX and other gaming and social networks.

When you sign up for an XBOX profile, we assign you a gamertag (a public nickname) and a unique identifier. When you sign in on XBOX devices, apps, and services, the data we collect about your use is stored using your identifiers. Depending on your jurisdiction, you may need to verify your age or identity to access some services or features. If we ask you to verify your age or identity, please refer to the accompanying notice for details about what data is collected and how it is used, and for information about our third-party verification provider. In some cases, we reference the length of your account as well as age signals we receive from operating systems or app stores to better understand your age. If we are unable to verify your age or identity it may cause us to change your settings or access to certain features.

Children under 13 years old or as otherwise specified in your jurisdiction need parental or guardian consent to create an XBOX profile and use the XBOX network. When setting up an XBOX profile for your child, you'll sign in with your own Microsoft account to confirm you're an adult organizer in your family group.

XBOX consoles are devices you can use to find and play games, movies, music, and other digital entertainment. When you sign in to XBOX experiences—in apps or on a console—we also assign a unique identifier to your device. When your XBOX console is connected to the internet, for instance, and you sign in to the console, we identify which console and which version of the console's operating system you're using.

Data we collect about your use of XBOX services, games, apps, and consoles includes:

When you sign in and sign out of XBOX, any purchases you make, and content you obtain.

Which games you play and apps you use, your game progress, achievements, play time per game, and other play statistics.

Performance data about XBOX consoles, XBOX Game Pass and other XBOX apps, the XBOX network, connected accessories, and your network connection, including any software or hardware errors.

Content you add, upload, or share through the XBOX network, including text, pictures, and video you capture in games and apps.

Social activity, including chat data and interactions with other gamers, and connections you make (friends you add and people who follow you) on the XBOX network.

If you sign in to use XBOX on another device capable of accessing the XBOX network, and that device includes a storage device (hard drive or memory unit), usage data will be stored on the storage device and sent to Microsoft the next time you sign in to XBOX, even if you've been playing offline.

Data we collect enables us to provide you with our services and with curated experiences. This includes connecting you to games, content, and services, as well as presenting you with offers, discounts, and recommendations. To change your settings for these recommendations, visit the XBOX online safety and privacy settings page.

We collect limited information about children, including their name, birthdate, email address, and region. When you create your child's XBOX profile, you consent to Microsoft collecting, using, and sharing their information, including their personal data, based on their XBOX network privacy and communication settings. Your child's privacy settings start at the most restrictive level by default.

Camera and Microphone. While using XBOX, you can use the device's capabilities such as the microphone, camera, and screen recording to improve your gaming experience.

XBOX diagnostic data. Diagnostic data has two categories: required and optional. Required diagnostic data for XBOX includes information about your device, service performance, how you use our products, apps and services, game activity, and your settings and capabilities.

If your child uses an XBOX console, only the minimum required diagnostic data is sent to Microsoft to help keep XBOX safe, secure, and performing as expected. Optional diagnostic data collection is turned off for child accounts. Please see the Diagnostic data section for more information.

Learn more at Manage settings for optional data sharing.

Game captures. Any player in a multiplayer game session can record video (game clips) and capture screenshots of their view of the game play. Other players' game clips and screenshots can capture your in-game character and gamertag during that session. If a player captures game clips, they might also capture audio chat, depending on their settings.

Captioning. During XBOX real-time ("party") chat, players may activate a voice-to-text feature that lets them view that chat as text. If a player activates this feature, all voice communication in the party is captioned for the player. Microsoft uses the resulting text data to provide captioning of chat for players who need it. This data may also be used to provide a safe gaming environment and enforce the Community Standards for XBOX as well as the other purposes described in this statement.

XBOX data viewable by others. Your gamertag, game and play statistics, achievements, presence (whether you are currently signed in to XBOX), content you share, and other data about your activity on XBOX can be seen by:

Other players signed in to XBOX.

Customers of third-party services you've linked your profile to.

Other services associated with XBOX (including those of partner companies).

Your gamertag and scores that show on game leaderboards are considered public and cannot be hidden. For other data, you can adjust your privacy settings on consoles and at XBOX.com to limit or block what is shared with the public or with friends.

On the XBOX network, your child's online presence (defaulted to "friends"), gamertag, gameplay statistics, and achievements are visible to other players. Depending on your child's safety settings, they might share information when playing or communicating with others on the XBOX network. You can manage these settings to control what is shared.

Learn more at XBOX online safety and privacy settings.

XBOX data shared with game and apps publishers and developers. When you use an XBOX online game or any network-connected app on your XBOX console, PC, or mobile device, the publisher of that game or app has access to data to help the publisher deliver, support, and improve its product. This data includes: your XBOX user identifier; gamertag; limited account info such as country and age range; data about your in-game communications; any XBOX enforcement activity; game-play sessions (for example, moves made in-game, types of vehicles used in-game); your presence on the XBOX network; the time you spend playing the game or app; rankings, statistics, gamer profiles, avatars, or gamerpics; friends lists; activity feeds for official clubs you belong to; official club memberships; and any content you create or submit in the game or app. To stop sharing game or app data with a publisher, remove its games or app from all devices where you have installed them. Some publisher access to your data may be revoked at https://microsoft.com/consent.

Third-party publishers and developers of games and apps have their own distinct and independent relationship with users and their collection and usage of personal data is subject to their specific privacy policies. You should carefully review their policies to determine how they use your data. You may find their policies linked from game or app detail pages in the Microsoft Store.

Learn more at Data Sharing with Games and Apps.

AI-enhanced features. XBOX offers optional AI-enhanced features, including our Support Virtual Agents and Game assist. To provide a response, these AI-enhanced features use your voice or text-based prompt, publicly-available support articles, and other relevant data described in the "Personal data we collect" section or within the feature. Additional privacy settings are available within certain XBOX AI-enhanced features, including Game assist. You can view, export, or delete your chats with Game assist in the Copilot section on the Microsoft privacy dashboard.

Family settings. You can use the XBOX Family Settings app to manage your child's experience on the XBOX Network such as spending for the Microsoft and XBOX stores, viewing your child's XBOX activity, and setting age ratings and screen time limits. XBOX-specific Family Safety settings will apply on XBOX console or via XBOX on PC or mobile device but may not be applied on other platforms.

Learn more about managing XBOX profiles at XBOX online safety and privacy settings.

For more information about Microsoft's collection of data from children, including XBOX, please see the Collection of data from children section of this privacy statement.

Safety. In order to help make the XBOX network a safe gaming environment and enforce the Community Standards for XBOX, we may collect and review voice, text, images, videos and in-game content (such as game clips you upload, conversations you have, and things you post in clubs and games).

Anti-cheat and fraud prevention. Providing a fair gameplay environment is important to us. We prohibit cheating, hacking, account stealing, and any other unauthorized or fraudulent activity when you use an XBOX online game or any network-connected app on your XBOX console, PC, or mobile device. In order to detect and prevent fraud and cheating, we may use anti-cheat and fraud prevention tools, applications, and other technologies. Such technologies may create digital signatures (known as "hashes") using certain information collected from your XBOX console, PC, or mobile device, and how you use that device. This can include information about the browser, device, activities, game identifiers, and operating system.

Legacy.

XBOX 360. This XBOX console collects limited required diagnostic data to keep your console functioning as expected while using a console connected to the XBOX network.

Kinect. The Kinect sensor is a combination of camera, microphone, and infrared sensor that can enable motions and voice to be used to control gameplay for titles that support it. Learn more about Kinect at XBOX Kinect and Privacy.

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Microsoft Store

Microsoft Store is an online service, accessible via digital storefronts on the web, PC, XBOX consoles, and the XBOX App, that enables you to browse, download, purchase, rate, and review apps, games, subscriptions, in-app extras and add-ons, and other digital content for devices such as PCs, tablets, XBOX consoles, mobile devices, and others.

We collect information about your interactions with Microsoft Store, including: the products you browse, search for, view, add to wish lists or shopping carts, acquire, subscribe to, purchase, install, update, use, delete, uninstall, or for which you request customer support; your product-viewing settings and preferences; and any ratings, reviews, or problem reports you submit. Your Microsoft account is linked to your ratings and reviews, and the name and/or picture associated with your Microsoft account may be shown with any review you post. Microsoft Store also uses your device's region settings to present relevant content and merchandising, and your device identifier to manage product rights tied to your device. Depending on your jurisdiction, you may need to verify your age to allow you to view or acquire certain age-restricted content on Microsoft Store. If we ask you to verify your age, please refer to the accompanying notice for details about what data is collected and how it is used, and for information about our third-party verification provider.

Permission for Microsoft Store apps. Many apps you install from Microsoft Store use specific hardware and software features of your device, which can require access to your data. For example, a photo editing app might access your device's camera to let you take or access photos or videos stored on your device, and a restaurant guide might use your location to provide nearby recommendations. Information about the features that an app uses is provided in its product description page in Microsoft Store.

Many of the features used by apps installed from Microsoft Store can be turned on or off through your device's privacy settings. On Windows, in many cases, you can choose which apps can use a particular feature. Go to Start > Settings > Privacy or Privacy & Security, select the feature, and then adjust your app permissions.

App updates. For security and safety purposes, Microsoft Store will automatically check for, download, and install app updates to ensure you have the latest versions. You can pause this feature in your Microsoft Store settings. Microsoft Store only updates apps that were installed from Microsoft Store, and not apps installed from other sources. If an updated app seeks new access to certain features—such as your location—you will be prompted for consent. You can review the hardware and software features an app uses by viewing its product description page in Microsoft Store.

Any personal data that an app collects and uses is subject to the app developer's privacy policy, which the app developer must provide via a link on the app's product description page in Microsoft Store.

Acquiring content from sources other than Microsoft Store. Some Microsoft computing environments, such as Windows, may enable you to use third-party sources, such as third-party apps, app stores, or websites, to browse, search for, acquire, purchase, download, or install apps, games, and other digital content. The privacy information described here does not apply to your use of or acquisitions from those third-party sources.

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MSN

MSN (formerly known as Microsoft Start or Microsoft News) is a content service that includes news, weather, sports, and finance. The MSN app is available on various platforms, including iOS and Android. The MSN service is also included within other Microsoft services, including the Microsoft Edge browser and widgets on Windows.

When you install the MSN app, MSN Weather, or Microsoft News apps, we collect data that tells us if the app was installed properly, the installation date, the app version, and other data about your device such as the operating system and browser. This data is collected on a regular basis to help us determine the number of app users and identify performance issues associated with different app versions, operating systems, and browsers. When you use the weather app, we use your location to provide you with relevant weather content.

We also collect data about how you interact with MSN content, such as usage frequency and articles viewed, to provide you with relevant content. MSN provides an enhanced experience when you sign in with your Microsoft account, including allowing you to customize your interests and favorites. We use your location to provide you with relevant content such as local weather and news. You can manage personalization through MSN and Bing settings, as well as through settings in other Microsoft services that include MSN services. We also use the data we collect to provide you with advertisements that may be of interest to you. You can opt out of interest-based advertising through the advertising links within MSN services, or by visiting the Microsoft opt-out page.

Previous versions of MSN Money allow you to access personal finance information from third-party financial institutions. MSN Money only displays this information and does not store it on our servers. Your sign-in credentials used to access your financial information from third parties are encrypted on your device and are not sent to Microsoft. These financial institutions, as well as any other third-party services you access through MSN services, are subject to their own terms and privacy policies.

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Windows Mixed Reality

Windows Mixed Reality allows you to enable a virtual reality experience that immerses you in apps and games. Mixed Reality uses a compatible headset’s camera, microphone, and infrared sensors to enable motions and voice to be used to control gameplay and to navigate apps and games.

Microsoft collects diagnostic data to solve problems and to keep Mixed Reality running on Windows up to date, secure, and operating properly. Diagnostic data also helps us improve Mixed Reality and related Microsoft products and services depending on the diagnostic data settings you’ve chosen for your device. Learn more about Windows diagnostic data.

Mixed Reality also processes and collects data specifically related to the Mixed Reality experiences, such as:

Mixed Reality maps distances between your body's joints to create a stick figure representation of you. If you are connected to the Internet, we collect those numeric values to enable and improve your experience.

Mixed Reality detects specific hand gestures intended to perform simple system interactions (such as menu navigation, pan/zoom, and scroll). This data is processed on your PC and is not stored.

The headset's microphones enable voice commands to control games, apps, or to enter search terms. Learn more about voice data collection.

Windows Mixed Reality can also be used for audio and video communications.

View Summary Learn more

Back to top

02 | Forms Security and Privacy

https://support.microsoft.com/en-us/forms/security-and-privacy-in-microsoft-forms

Webpage text snapshot | Retrieved 10 October 2026

Security and Privacy in Microsoft Forms

Applies To

Microsoft Forms

Get help with Copilot

Tell me about security and Privacy in Microsoft Forms. What if I can't send feedback about Microsoft forms? What is Data storage for Microsoft Forms?

Tip

Learn more about Microsoft Forms or get started right away and create a survey, quiz, or poll. Want more advanced branding, question types, and data analysis? Try Dynamics 365 Customer Voice.

Is Microsoft Forms compliant?

Microsoft Forms is compliant in the following ways:

HIPAA and BAA compliant.

GDPR compliance requirements met as of May 2018. Please refer to Microsoft 365 Data Subject Requests for the GDPR for more information.

What about privacy? Are FERPA and BAA protections in place?

Microsoft Forms meets FERPA and BAA protection standards.

Is Microsoft Forms data encrypted at rest and in transit?

Yes, Microsoft Forms is encrypted both at rest and in transit. To learn more about encryption in Office 365, search for Microsoft Office 365 Compliance Offerings at the Microsoft Service Trust Portal.

See Also

Frequently asked questions about Microsoft Forms

Turn off or turn on Microsoft Forms

03 | Forms Data Storage

https://support.microsoft.com/en-us/forms/data-storage-for-microsoft-forms

Webpage text snapshot | Retrieved 10 October 2026

Data storage for Microsoft Forms

Applies To

Microsoft Forms

Tip

Learn more about Microsoft Forms or get started right away and create a survey, quiz, or poll. Want more advanced branding, question types, and data analysis? Try Dynamics 365 Customer Voice.

With Microsoft Forms, you can create surveys, quizzes, and polls, and easily see results as they come in. When you create a form, you can invite others to respond to it using any web browser, even on mobile devices. As results are submitted, you can use built-in analytics to evaluate responses. Form data, such as quiz results, can easily be exported to Excel for additional analysis or grading.

Where data is stored for Microsoft Forms

Tenant's Default Geography Forms Default Data Storage Location Comments

European Union (EU) or European Free Trade Association (EFTA) Countries/Regions Macro Region Geography 4 - European Union/EFTA

European Countries/Regions that are Non-EU / Non-EFTA Macro Region Geography 1 - Europe

Australia United States For tenants who provisioned Forms on or prior to 2022-10-12

Australia Australia For new tenants, and tenants provisioning Forms after 2022-10-12

All other locations United States

See Also

Frequently asked questions about Microsoft Forms

04 | Forms GDPR Information

https://support.microsoft.com/en-us/forms/faq/gdpr-information

Webpage text snapshot | Retrieved 10 October 2026

GDPR information

Applies To

Microsoft Forms

How do I use the in-app functionality in Microsoft Forms to find, access, export, and delete personal data?

To find data generated by these applications, you or the data owner must use in-product functionality or features to find data that may be relevant to a DSR. Product and service usage data follows a controlled lifecycle designed to comply with GDPR data subject requests. Learn more.

Is Microsoft Forms supported in eDiscovery?

Yes, Microsoft Forms is supported in Electronic Discovery or eDiscovery in Microsoft 365 (only in environments with eDiscovery support). You can use the keyword search of either a form title or user to search for Forms content in eDiscovery.

Note

Only Forms content created after January 2019 is available for search in eDiscovery.

The results of the forms you search for will be returned as .json files attached to emails, while the results of form responses you search for will be returned as individual .csv files attached to emails. Learn more about exporting content search results.

Where can I find more information about GDPR?

For more information about GDPR and how Microsoft 365 is helping to protect your data, please visit the following:

Data Protection Impact Assessments: Guidance for Data Controllers Using Microsoft 365

Data subject requests for the GDPR

EU GDPR law and polices

GDPR Compliance Center

GDPR Compliance Documentation for Regulators and Customers

GDPR Accountability Readiness Checklist

GDPR Data Breach Notification

GDPR Data Protection Impact Assessments

GDPR Data Subject Requests

Organizational Privacy Statement Now Can Be Surfaced with Microsoft Forms

06 | Microsoft Products and Services DPA download page

https://www.microsoft.com/licensing/docs/view/Microsoft-Products-and-Services-Data-Protection-Addendum-DPA

Webpage text snapshot | Retrieved 10 October 2026

Licensing Resources and Documents

Search for a specific licensing resource or browse by category using the links below.

Search

Microsoft Products and Services Data Protection Addendum (DPA)

When you subscribe to a Product under the terms of the Product Terms site, the data processing and security terms are defined in Microsoft Online Services Data Protection Addendum (DPA). The DPA is an addendum to the Product Terms site (and formerly OST). The current and archived editions of the DPA are available for download.

Download the most recent version (English) (May 2026):

Microsoft Product and Services Data Protection Addendum (WW)

Download

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Asset Types All Asset types Microsoft Product and Services DPA

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Year

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05 | Microsoft Products and Services Data Protection Addendum - May 2026

https://www.microsoft.com/licensing/docs/documents/download/MicrosoftProductandServicesDPA(WW)(English)(May2026)(CR).docx

This original downloadable document is appended after the text snapshot sections. An individual copy is saved in the Original documents subfolder.

Microsoft Products and Services Data Protection Addendum

Last updated May 22, 2026

Published in English on May 22, 2026. Translations will be published by Microsoft when available. These commitments are binding on Microsoft as of May 22, 2026.

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Summary of Changes

05/22/2026 – Added clarification of subprocessors that support artificial intelligence functionality in the Notice and Controls on use of Subprocessors section.

Introduction

The parties agree that this Microsoft Products and Services Data Protection Addendum ("DPA") sets forth their obligations with respect to the processing and security of Customer Data, Professional Services Data, and Personal Data in connection with the Products and Services. The DPA is incorporated by reference into the Product Terms and other Microsoft agreements. The parties also agree that, unless a separate Professional Services agreement exists, this DPA

governs the processing and security of Professional Services Data. Separate terms, including different privacy and security terms, govern Customer's use of Non-Microsoft Products.

In the event of any conflict or inconsistency between the DPA Terms and any other terms in Customer's volume licensing agreement or other applicable agreements in connection with the Products and Services ("Customer's agreement"), the DPA Terms shall prevail. The provisions of the DPA Terms supersede any conflicting provisions of the Microsoft Privacy Statement that otherwise may apply to processing of Customer Data, Professional Services Data, or Personal Data, as defined herein.

Microsoft makes the commitments in this DPA to all Customers with an existing Customer's agreement. These commitments are binding on Microsoft with regard to Customer regardless of (1) the Product Terms that are otherwise applicable to any given Product subscription or license, or (2) any other agreement that references the Product Terms.

Applicable DPA Terms and Updates

Limits on Updates

When Customer renews or purchases a new subscription to a Product or enters into a work order for a Professional Service, the then-current DPA Terms will apply and will not change during Customer's subscription for that Product or term for that Professional Service. When Customer obtains a perpetual license to Software, the then-current DPA Terms will apply (following the same provision for determining the applicable then-current Product Terms for that Software in Customer's agreement) and will not change during Customer's license for that Software.

New Features, Supplements, or Related Software

Notwithstanding the foregoing limits on updates, when Microsoft introduces features, offerings, supplements or related software that are new (i.e., that were not previously included with the Products or Services), Microsoft may provide terms or make updates to the DPA that apply to Customer's use of those new features, offerings, supplements or related software. If those terms include any material adverse changes to the DPA Terms, Microsoft will provide Customer a choice to use the new features, offerings, supplements, or related software, without loss of existing functionality of a generally available Product or Professional Service. If Customer does not install or use the new features, offerings, supplements, or related software, the corresponding new terms will not apply.

Government Regulation and Requirements

Notwithstanding the foregoing limits on updates, Microsoft may modify or terminate a Product or Professional Service in any country or jurisdiction where there is any current or future government requirement or obligation that (1) subjects Microsoft to any regulation or requirement not generally applicable to businesses operating there, (2) presents a hardship for Microsoft to continue operating the Product or offering the Professional Service without modification, and/or (3) causes Microsoft to believe the DPA Terms or the Product or Professional Service may conflict with any such requirement or obligation.

Electronic Notices

Microsoft may provide Customer with information and notices about Products and Services electronically, including via email, through the portal for an Online Service, or through a web site that Microsoft identifies. Notice is given as of the date it is made available by Microsoft.

Prior Versions

The DPA Terms provide terms for Products and Services that are currently available. For earlier versions of the DPA Terms, Customer may refer to https://aka.ms/licensingdocs or contact its reseller or Microsoft Account Manager.

Definitions

Capitalized terms used but not defined in this DPA will have the meanings provided in Customer's agreement. The following defined terms are used in this DPA:

"Customer Data" means all data, including all text, sound, video, or image files, and software, that are provided to Microsoft by, or on behalf of, Customer through use of the Online Service. Customer Data does not include Professional Services Data.

"Data Protection Requirements" means the GDPR, Local EU/EEA Data Protection Laws, and any applicable laws, regulations, and other legal requirements relating to (a) privacy and data security; and (b) the use, collection, retention, storage, security, disclosure, transfer, disposal, and other processing of any Personal Data.

"DPA Terms" means the terms in the DPA and any Product-specific terms in the Product Terms that specifically supplement or modify the privacy and security terms in the DPA for a specific Product (or feature of a Product). In the event of any conflict or inconsistency between the DPA

and such Product-specific terms, the Product-specific terms shall prevail as to the applicable Product (or feature of that Product).

"EU Customer" means a Customer that has a European Economic Area ("EEA") billing address.

"EU Data Act" means Regulation (EU) 2023/2854 of the European Parliament and Council of 13 December 2023 on harmonised rules on fair access to and use of data and amending Regulation (EU) 2020/1828 (Data Act).

"EU Data Act Service" means an Online Service licensed to an EU Customer, excluding an Online Service for which the EU Customer has elected to store Customer Data outside of the EEA.

"Exportable Data and Digital Assets" (EDDA) means Customer Data. For clarity, EDDA does not include Microsoft trade secret(s) or intellectual property, or data that could compromise the security or integrity of the Online Services.

"GDPR" means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation).

"Local EU/EEA Data Protection Laws" means any subordinate legislation and regulation implementing the GDPR.

"GDPR Terms" means the terms in Attachment 1, under which Microsoft makes binding commitments regarding its processing of Personal Data as required by Article 28 of the GDPR.

"Personal Data" means any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

"Preview Data" means Customer Data and Personal Data provided to Microsoft by, or on behalf of, Customer through use of a Preview or generated through Customer's use of a Preview.

"Product" has the meaning provided in the volume license agreement. For ease of reference, "Product" includes Online Services and Software, each as defined in the volume license agreement.

"Products and Services" means Products and Professional Services. Product and Professional Service availability may vary by region and applicability of this DPA to specific Products and Professional Services is subject to the limitations in the Scope section in this DPA.

"Professional Services" means the following services: (a) Microsoft's consulting services, consisting of planning, advice, guidance, data migration, deployment and solution/software development services provided under a Microsoft Enterprise Services Work Order or, when agreed to in the Project Description, under a Cloud Workload Acceleration Agreement that incorporates this DPA by reference; and (b) technical support services provided by Microsoft that help customers identify and resolve issues affecting Products, including technical support provided as part of Microsoft Unified Support or Premier Support Services, and any other commercial technical support services. The Professional Services do not include the Products or, for purposes of the DPA only, Supplemental Professional Services.

"Professional Services Data" means all data, including all text, sound, video, image files or software, that are provided to Microsoft, by or on behalf of a Customer (or that Customer authorizes Microsoft to obtain from a Product) or otherwise obtained or processed by or on behalf of Microsoft through an engagement with Microsoft to obtain Professional Services.

"2021 Standard Contractual Clauses" means the standard data protection clauses (processor-to-processor module) between Microsoft Ireland Operations Limited and Microsoft Corporation for the transfer of personal data from processors in the EEA to processors established in third countries which do not ensure an adequate level of data protection, as described in Article 46 of the GDPR and approved by the European Commission in decision 2021/914/EC, dated 4 June 2021.

"Subprocessor" means other processors used by Microsoft to process Customer Data, Professional Services Data, and Personal Data, as described in Article 28 of the GDPR.

"Supplemental Professional Services" means support requests escalated from support to a Product engineering team for resolution and other consulting and support from Microsoft provided in connection with Products or a volume license agreement that are not included in the definition of Professional Services.

"Switching" means an EU Customer's one-time transfer of EDDA out of an EU Data Act Service to a non-Microsoft cloud service provider identified by the EU Customer and whose information EU Customer provides to Microsoft, or to the EU Customer's on-premises ICT environment, when the EU Customer is terminating their subscription and ending their use of the EU Data Act Service.

Lower case terms used but not defined in this DPA, such as "personal data breach", "processing", "controller", "processor", "profiling", "personal data", and "data subject" will have the same meaning as set forth in Article 4 of the GDPR, irrespective of whether GDPR applies.

General Terms

Compliance with Laws

Microsoft will comply with all laws and regulations applicable to its providing the Products and Services, including security breach notification law and Data Protection Requirements. However, Microsoft is not responsible for compliance with any laws or regulations applicable to Customer or Customer's industry that are not generally applicable to information technology service providers. Microsoft does not determine whether Customer's data includes information subject to any specific law or regulation. All Security Incidents are subject to the Security Incident Notification terms below.

Customer must comply with all laws and regulations applicable to its use of Products and Services, including laws related to biometric data, confidentiality of communications, and Data Protection Requirements. Customer is responsible for determining whether the Products and Services are appropriate for storage and processing of information subject to any specific law or regulation and for using the Products and Services in a manner consistent with Customer's legal and regulatory obligations. Customer is responsible for responding to any request from a third party regarding Customer's use of Products and Services, such as a request to take down content under the U.S. Digital Millennium Copyright Act or other applicable laws.

Data Protection Terms

Scope

The DPA Terms apply to all Products and Services except as described in this section.

The DPA Terms will not apply to any Products or Professional Services specifically identified as excluded, or to the extent identified as excluded, in the Product Terms or applicable work order, which are governed by the privacy and security terms in the applicable Product-specific or work order specific terms.

For clarity, the DPA Terms apply only to the processing of data in environments controlled by Microsoft and Microsoft's subprocessors. This includes data sent to Microsoft by Products and

Services but does not include data that remains on Customer's premises or in any Customer selected third party operating environments.

For Supplemental Professional Services, Microsoft only makes the commitments in the Supplemental Professional Services section below.

Nature of Data Processing; Ownership

Microsoft will use and otherwise process Customer Data, Professional Services Data, and Personal Data only as described and subject to the limitations provided below (a) to provide Customer the Products and Services in accordance with Customer's documented instructions and (b) for business operations incident to providing the Products and Services to Customer. As between the parties, Customer retains all right, title and interest in and to Customer Data and Professional Services Data. Microsoft acquires no rights in Customer Data or Professional Services Data, other than the rights Customer grants to Microsoft in this section. This paragraph does not affect Microsoft's rights in software or services Microsoft licenses to Customer.

Processing to Provide Customer the Products and Services

For purposes of this DPA, "to provide" a Product consists of:

- Delivering functional capabilities as licensed, configured, and used by Customer and its users, including providing personalized user experiences;
- Troubleshooting (preventing, detecting, and repairing problems); and
- Keeping Products up to date and performant, and enhancing user productivity, reliability, efficacy, quality, and security.

For purposes of this DPA, "to provide" Professional Services consists of:

- Delivering the Professional Services, including providing technical support, professional planning, advice, guidance, data migration, deployment, and solution/software development services.
- Troubleshooting (preventing, detecting, investigating, mitigating, and repairing problems, including Security Incidents and problems identified in the Professional Services or relevant Product(s) during delivery of Professional Services); and
- Enhancing delivery, efficacy, quality, and security of Professional Services and the underlying Product(s) based on issues identified while providing Professional Services, including fixing software defects and otherwise keeping Products and Services up to date and performant.

In each case, providing the Products and Services is conducted in view of security obligations under Data Protection Requirements.

When providing Products and Services, Microsoft will not use or otherwise process Customer Data, Professional Services Data, or Personal Data for: (a) user profiling, (b) advertising or similar commercial purposes, or (c) market research aimed at creating new functionalities, services, or products or any other purpose, unless such use or processing is in accordance with Customer's documented instructions.

Processing for Business Operations Incident to Providing the Products and Services to Customer

For purposes of this DPA, "business operations" means the processing operations authorized by customer in this section.

Customer authorizes Microsoft:

- to create aggregated statistical, non-personal data from data containing pseudonymized identifiers (such as usage logs containing unique, pseudonymized identifiers); and
- to calculate statistics related to Customer Data or Professional Services Data

in each case without accessing or analyzing the content of Customer Data or Professional Services Data and limited to achieving the purposes below, each as incident to providing the Products and Services to Customer.

Those purposes are:

- billing and account management;
- compensation such as calculating employee commissions and partner incentives;
- internal reporting and business modeling, such as forecasting, revenue, capacity planning, and product strategy; and
- financial reporting.

When processing for these business operations, Microsoft will apply principles of data minimization and will not use or otherwise process Customer Data, Professional Services Data, or Personal Data for: (a) user profiling, (b) advertising or similar commercial purposes, or (c) any other purpose, other than for the purposes set out in this section. In addition, as with all processing under this DPA, processing for business operations remains subject to Microsoft's confidentiality obligations and commitments under Disclosure of Processed Data.

Disclosure of Processed Data

Microsoft will not disclose or provide access to any Processed Data except: (1) as Customer directs; (2) as described in this DPA; or (3) as required by law. For purposes of this section, "Processed Data" means: (a) Customer Data; (b) Professional Services Data; (c) Personal Data; and (d) any other data processed by Microsoft in connection with the Products and Services that is Customer's confidential information under Customer's agreement. All processing of Processed Data is subject to Microsoft's obligation of confidentiality under Customer's agreement.

Microsoft will not disclose or provide access to any Processed Data to law enforcement unless required by law. If law enforcement contacts Microsoft with a demand for Processed Data, Microsoft will attempt to redirect the law enforcement agency to request that data directly from Customer. If compelled to disclose or provide access to any Processed Data to law enforcement, Microsoft will promptly notify Customer and provide a copy of the demand unless legally prohibited from doing so.

Upon receipt of any other third-party request for Processed Data, Microsoft will promptly notify Customer unless prohibited by law. Microsoft will reject the request unless required by law to comply. If the request is valid, Microsoft will attempt to redirect the third party to request the data directly from Customer.

Microsoft will only disclose or provide access to any Processed Data as required by law provided that the laws and practices respect the essence of the fundamental rights and freedoms and do not exceed what is necessary and proportionate in a democratic society and, as applicable, to safeguard one of the objectives listed in Article 23(1) of GDPR.

Microsoft will not provide any third party: (a) direct, indirect, blanket, or unfettered access to Processed Data; (b) platform encryption keys used to secure Processed Data or the ability to break such encryption; or (c) access to Processed Data if Microsoft is aware that the data is to be used for purposes other than those stated in the third party's request.

In support of the above, Microsoft may provide Customer's basic contact information to the third party.

Processing of Personal Data; GDPR

All Personal Data processed by Microsoft in connection with providing the Products and Services is obtained as part of either (a) Customer Data, (b) Professional Services Data, or (c) data generated, derived or collected by Microsoft, including data sent to Microsoft as a result of a Customer's use of service-based capabilities or obtained by Microsoft from locally installed

software. Personal Data provided to Microsoft by, or on behalf of, Customer through use of the Online Service is also Customer Data. Personal Data provided to Microsoft by, or on behalf of, Customer through use of the Professional Services is also Professional Services Data. Pseudonymized identifiers may be included in data processed by Microsoft in connection with providing the Products and are also Personal Data. Any Personal Data pseudonymized, or de-identified but not anonymized, or Personal Data derived from Personal Data is also Personal Data.

To the extent Microsoft is a processor or subprocessor of Personal Data subject to the GDPR, the GDPR Terms in Attachment 1 govern, and the language in the sub-section ("Processing of Personal Data; GDPR") shall be deemed supplemental:

Processor and Controller Roles and Responsibilities

Customer and Microsoft agree that Customer is the controller of Personal Data and Microsoft is the processor of such data, except (a) when Customer acts as a processor of Personal Data, in which case Microsoft is a subprocessor; or (b) as stated otherwise in the Product-specific terms or this DPA. When Microsoft acts as the processor or subprocessor of Personal Data, it will process Personal Data only on documented instructions from Customer. Customer agrees that Customer's agreement (including the DPA Terms and any applicable updates), along with the product documentation and Customer's use and configuration of features in the Products, are Customer's complete documented instructions to Microsoft for the processing of Personal Data, or the Professional Services documentation and Customer's use of the Professional Services. Information on use and configuration of the Products can be found at https://docs.microsoft.com (or a successor location) or other agreement incorporating this DPA. Any additional or alternate instructions must be agreed to according to the process for amending Customer's agreement. In any instance where the GDPR applies and Customer is a processor, Customer warrants to Microsoft that Customer's instructions, including appointment of Microsoft as a processor or subprocessor, have been authorized by the relevant controller.

To the extent Microsoft uses or otherwise processes Personal Data subject to the GDPR for business operations incident to providing the Products and Services to Customer, Microsoft will comply with the obligations of an independent data controller under GDPR for such use. Microsoft is accepting the added responsibilities of a data "controller" under GDPR for such processing to: (a) act consistent with regulatory requirements, to the extent required under GDPR; and (b) provide increased transparency to Customers and confirm Microsoft's accountability for such processing. Microsoft employs safeguards to protect Customer Data, Professional Services Data, and Personal Data in such processing, including those identified in this DPA and those contemplated in Article 6(4) of the GDPR. With respect to processing of

Personal Data under this paragraph, Microsoft makes the commitments set forth in the Additional Safeguards section; for those purposes, (i) any Microsoft disclosure of Personal Data, as described in the Additional Safeguards section, that has been transferred in connection with business operations is deemed a "Relevant Disclosure" and (ii) the commitments in the Additional Safeguards section apply to such Personal Data.

Processing Details

The parties acknowledge and agree that:

- **Subject Matter.** The subject-matter of the processing is limited to Personal Data within the scope of the section of this DPA entitled "Nature of Data Processing; Ownership" above and the GDPR.
- **Duration of the Processing.** The duration of the processing shall be in accordance with Customer instructions and the terms of the DPA.
- **Nature and Purpose of the Processing.** The nature and purpose of the processing shall be to provide the Products and Services pursuant to Customer's agreement and for business operations incident to providing the Products and Services to Customer (as further described in the section of this DPA entitled "Nature of Data Processing; Ownership" above).
- **Categories of Data.** The types of Personal Data processed by Microsoft when providing the Products and Services include: (i) Personal Data that Customer elects to include in Customer Data and Professional Services Data; and (ii) those expressly identified in Article 4 of the GDPR that may be generated, derived or collected by Microsoft, including data sent to Microsoft as a result of a Customer's use of service-based capabilities or obtained by Microsoft from locally installed software. The types of Personal Data that Customer elects to include in Customer Data and Professional Services Data may be any categories of Personal Data identified in records maintained by Customer acting as controller pursuant to Article 30 of the GDPR, including the categories of Personal Data set forth in Appendix B.
- **Data Subjects.** The categories of data subjects are Customer's representatives and end users, such as employees, contractors, collaborators, and customers, and may include any other categories of data subjects as identified in records maintained by Customer acting as controller pursuant to Article 30 of the GDPR, including the categories of data subjects set forth in Appendix B.

Data Subject Rights; Assistance with Requests

Microsoft will make available to Customer, in a manner consistent with the functionality of the Products and Services and Microsoft's role as a processor of Personal Data of data subjects, the

ability to fulfill data subject requests to exercise their rights under the GDPR. If Microsoft receives a request from Customer's data subject to exercise one or more of its rights under the GDPR in connection with the Products and Services for which Microsoft is a data processor or subprocessor, Microsoft will redirect the data subject to make its request directly to Customer. Customer will be responsible for responding to any such request including, where necessary, by using the functionality of the Products and Services. Microsoft shall comply with reasonable requests by Customer to assist with Customer's response to such a data subject request.

Records of Processing Activities

To the extent the GDPR requires Microsoft to collect and maintain records of certain information relating to Customer, Customer will, where requested, supply such information to Microsoft and keep it accurate and up-to-date. Microsoft may make any such information available to the supervisory authority if required by the GDPR.

Data Security

Security Practices and Policies

Microsoft will implement and maintain appropriate technical and organizational measures to protect Customer Data, Professional Services Data, and Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored or otherwise processed. Those measures shall be set forth in a Microsoft Security Policy. Microsoft will make that policy available to Customer, along with other information reasonably requested by Customer regarding Microsoft security practices and policies.

In addition, those measures shall comply with the requirements set forth in ISO 27001, ISO 27002, and ISO 27018. A description of the security controls for these requirements is available to Customers.

Each Core Online Service also complies with the control standards and frameworks shown in the table in the Product Terms. Each Core Online Service and Professional Service implements and maintains the security measures set forth in Appendix A for the protection of Customer Data and Professional Services Data.

Microsoft implements and maintains the security measures set forth in Annex II of the 2021 Standard Contractual Clauses for the protection of Personal Data within the scope of the GDPR.

Microsoft may add industry or government standards at any time. Microsoft will not eliminate ISO 27001, ISO 27002, ISO 27018 or any standard or framework in the table for Core Online

Services in the Product Terms, unless it is no longer used in the industry and it is replaced with a successor (if any).

Data Encryption

Customer Data and Professional Services Data (each including any Personal Data therein) in transit over public networks between Customer and Microsoft, or between Microsoft data centers, is encrypted by default.

Microsoft also encrypts Customer Data stored at rest in Online Services and Professional Services Data stored at rest. In the case of Online Services on which Customer or a third-party acting on Customer's behalf may build applications (e.g., certain Azure Services), encryption of data stored in such applications may be employed at the discretion of Customer, using either capabilities provided by Microsoft or obtained by Customer from third parties.

Data Access

Microsoft employs least privilege access mechanisms to control access to Customer Data and Professional Services Data (including any Personal Data therein). Role-based access controls are employed to ensure that access to Customer Data and Professional Services Data required for service operations is for an appropriate purpose and approved with management oversight. For Core Online Services and Professional Services, Microsoft maintains Access Control mechanisms described in the table entitled "Security Measures" in Appendix A; and there is no standing access by Microsoft personnel to Customer Data, and any required access is for a limited time.

Customer Responsibilities

Customer is solely responsible for making an independent determination as to whether the technical and organizational measures for Products and Services meet Customer's requirements, including any of its security obligations under applicable Data Protection Requirements. Customer acknowledges and agrees that (taking into account the state of the art, the costs of implementation, and the nature, scope, context and purposes of the processing of its Personal Data as well as the risks to individuals) the security practices and policies implemented and maintained by Microsoft provide a level of security appropriate to the risk with respect to its Personal Data. Customer is responsible for implementing and maintaining privacy protections and security measures for components that Customer provides or controls (such as devices enrolled with Microsoft Intune or within a Microsoft Azure customer's virtual machine or application).

Auditing Compliance

Microsoft will conduct audits of the security of the computers, computing environment, and physical data centers that it uses in processing Customer Data, Professional Service Data, and Personal Data, as follows:

- Where a standard or framework provides for audits, an audit of such control standard or framework will be initiated at least annually.
- Each audit will be performed according to the standards and rules of the regulatory or accreditation body for each applicable control standard or framework.
- Each audit will be performed by qualified, independent, third party security auditors at Microsoft's selection and expense.

Each audit will result in the generation of an audit report ("Microsoft Audit Report"), which Microsoft will make available at https://servicetrust.microsoft.com/ or another location identified by Microsoft. The Microsoft Audit Report will be Microsoft's Confidential Information and will clearly disclose any material findings by the auditor. Microsoft will promptly remediate issues raised in any Microsoft Audit Report to the satisfaction of the auditor. If Customer requests, Microsoft will provide Customer with each Microsoft Audit Report. The Microsoft Audit Report will be subject to non-disclosure and distribution limitations of Microsoft and the auditor.

To the extent Customer's audit requirements under the Data Protection Requirements cannot reasonably be satisfied through audit reports, documentation or compliance information Microsoft makes generally available to its customers, Microsoft will promptly respond to Customer's additional audit instructions. Before the commencement of an audit, Customer and Microsoft will mutually agree upon the scope, timing, duration, control and evidence requirements, and fees for the audit, provided that this requirement to agree will not permit Microsoft to unreasonably delay performance of the audit. To the extent needed to perform the audit, Microsoft will make the processing systems, facilities and supporting documentation relevant to the processing of Customer Data, Professional Services Data, and Personal Data by Microsoft, its Affiliates, and its Subprocessors available. Such an audit will be conducted by an independent, accredited third-party audit firm, during regular business hours, with reasonable advance notice to Microsoft, and subject to reasonable confidentiality procedures. Neither Customer nor the auditor shall have access to any data from Microsoft's other customers or to Microsoft systems or facilities not involved in providing the applicable Products and Services. Customer is responsible for all costs and fees related to such audit, including all reasonable costs and fees for any and all time Microsoft expends for any such audit, in addition to the rates for services performed by Microsoft. If the audit report generated as a result of Customer's audit

includes any finding of material non-compliance, Customer shall share such audit report with Microsoft and Microsoft shall promptly cure any material non-compliance.

Nothing in this section of the DPA varies or modifies the GDPR Terms or affects any supervisory authority's or data subject's rights under the Data Protection Requirements. Microsoft Corporation is an intended third-party beneficiary of this section.

Security Incident Notification

If Microsoft becomes aware of a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Customer Data, Professional Services Data, or Personal Data while processed by Microsoft (each a "Security Incident"), Microsoft will promptly and without undue delay (1) notify Customer of the Security Incident; (2) investigate the Security Incident and provide Customer with detailed information about the Security Incident; (3) take reasonable steps to mitigate the effects and to minimize any damage resulting from the Security Incident.

Notification(s) of Security Incidents will be delivered to Customer by any means Microsoft selects, including via email. It is Customer's sole responsibility to ensure Customer maintains accurate contact information with Microsoft for each applicable Product and Professional Service. Customer is solely responsible for complying with its obligations under incident notification laws applicable to Customer and fulfilling any third-party notification obligations related to any Security Incident.

Microsoft shall make reasonable efforts to assist Customer in fulfilling Customer's obligation under GDPR Article 33 or other applicable law or regulation to notify the relevant supervisory authority and data subjects about such Security Incident.

Microsoft's notification of or response to a Security Incident under this section is not an acknowledgement by Microsoft of any fault or liability with respect to the Security Incident.

Customer must notify Microsoft promptly about any possible misuse of its accounts or authentication credentials or any security incident related to the Products and Services.

Data Transfers and Location

Data Transfers

Customer Data, Professional Services Data, and Personal Data that Microsoft processes on Customer's behalf may not be transferred to, or stored and processed in a geographic location except in accordance with the DPA Terms and the safeguards provided below in this section.

Taking into account such safeguards, Customer appoints Microsoft to transfer Customer Data, Professional Services Data, and Personal Data to the United States or any other country in which Microsoft or its Subprocessors operate and to store and process Customer Data, and Personal Data to provide the Products, except as described elsewhere in the DPA Terms.

All transfers of Customer Data, Professional Services Data, and Personal Data out of the European Union, European Economic Area, United Kingdom, and Switzerland to provide the Products and Services are subject to the terms of the 2021 Standard Contractual Clauses implemented by Microsoft. In addition, transfers from the United Kingdom are subject to the terms of the IDTA implemented by Microsoft. For purposes of this DPA, the "IDTA" means the International data transfer addendum to the European Commission's standard contractual clauses for international data transfers issued by the UK Information Commissioner's Office under S119A(1) of the UK Data Protection Act 2018. Microsoft will abide by the requirements of European Economic Area, United Kingdom, and Swiss data protection law regarding the collection, use, transfer, retention, and other processing of Personal Data from the European Economic Area, United Kingdom, and Switzerland. All transfers of Personal Data to a third country or an international organization will be subject to appropriate safeguards as described in Article 46 of the GDPR and such transfers and safeguards will be documented according to Article 30(2) of the GDPR.

In addition, Microsoft is certified to the EU-U.S. and Swiss-U.S. Data Privacy Frameworks, the UK Extension to the EU-U.S. Data Privacy Framework and the commitments they entail. Microsoft agrees to notify Customer if it makes a determination that it can no longer meet its obligation to provide the same level of protection as is required by the principles of the Data Privacy Frameworks.

Location of Customer Data

For the Core Online Services, Microsoft will store Customer Data at rest within certain major geographic areas (each, a Geo) as set forth in the Product Terms.

For EU Data Boundary Services, Microsoft will store and process Customer Data, Personal Data, and store Professional Services Data at rest within the European Union and the European Free Trade Association (EFTA) as set forth in the Product Terms.

Microsoft does not control or limit the regions from which Customer or Customer's end users may access or move Customer Data.

Data Retention and Deletion

At all times during the term of Customer's subscription or the applicable Professional Services engagement, Customer will have the ability to access, extract and delete Customer Data stored in each Online Service and Professional Services Data.

Except for free trials and LinkedIn services, Microsoft will retain Customer Data that remains stored in Online Services in a limited function account for 90 days after expiration or termination of Customer's subscription so that Customer may extract the data. After the 90-day retention period ends, Microsoft will disable Customer's account and delete the Customer Data and Personal Data stored in Online Services within an additional 90 days, unless authorized under this DPA to retain such data.

For Personal Data in connection with the Software and for Professional Services Data, Microsoft will delete all copies after the business purposes for which the data was collected or transferred have been fulfilled or earlier upon Customer's request, unless authorized under this DPA to retain such data.

The Online Service may not support retention or extraction of software provided by Customer. Microsoft has no liability for the deletion of Customer Data, Professional Services Data, or Personal Data as described in this section.

EU Data Act

Switching is permitted at any time at no additional cost beyond the fees and other amounts otherwise due pursuant to EU Customer's agreement. EU Customer may access, export, and delete EDDA at any time, including accessing and exporting EDDA up to 90 days after subscription termination, as set forth in the Data Retention and Deletion provision. EU Customer decides when to start exporting EDDA and on what timeline. More than 30 days may be required for actual extraction and export of EDDA by EU Customer depending on the customer's specific configuration, quantity of data, the Switching destination, and other circumstances outside of Microsoft's control. EU Customer should complete Switching prior to termination of the EU Data Act Service, which EU Customer may do with 60 days' notice to Microsoft and payment of any amount still owed pursuant to EU Customer's agreement. Microsoft will provide reasonable assistance for Switching and will act with due care as set forth in the Data Security and other sections of the DPA and under Customer's agreement in providing the EU Data Act Services during Switching and in parallel use. An EU Customer may obtain a reduction in data egress fees associated with Switching and in parallel use as provided under the law. These EU Data Act terms do not apply to Previews.

Supporting materials on data export and methods and information related to Microsoft ICT infrastructure used to provide EU Data Act Services and how Microsoft responds to government data access requests can be found in the Product Terms.

Processor Confidentiality Commitment

Microsoft will ensure that its personnel engaged in the processing of Customer Data, Professional Services Data, and Personal Data (i) will process such data only on instructions from Customer or as described in this DPA, and (ii) will be obligated to maintain the confidentiality and security of such data even after their engagement ends. Microsoft shall provide periodic and mandatory data privacy and security training and awareness to its employees with access to Customer Data, Professional Services Data, and Personal Data in accordance with applicable Data Protection Requirements and industry standards.

Notice and Controls on use of Subprocessors

Microsoft may hire Subprocessors to provide certain limited or ancillary services on its behalf. Customer consents to this engagement and to Microsoft Affiliates as Subprocessors. The above authorizations will constitute Customer's prior written consent to the subcontracting by Microsoft of the processing of Customer Data, Professional Services Data, and Personal Data if such consent is required under the Standard Contractual Clauses or the GDPR Terms.

Microsoft is responsible for its Subprocessors' compliance with Microsoft's obligations in this DPA. Microsoft makes available information about Subprocessors on a Microsoft website. When engaging any Subprocessor, Microsoft will ensure via a written contract that the Subprocessor may access and use Customer Data, Professional Services Data, or Personal Data only to deliver the services Microsoft has retained them to provide and is prohibited from using Customer Data, Professional Services Data, or Personal Data for any other purpose. Microsoft will ensure that Subprocessors are bound by written agreements that require them to provide at least the level of data protection required of Microsoft by the DPA, including the limitations on disclosure of Processed Data. Microsoft agrees to oversee the Subprocessors to ensure that these contractual obligations are met.

From time to time, Microsoft may engage new Subprocessors. Microsoft will give Customer notice and, as applicable, update the website and provide Customer with a mechanism to obtain notice of that update of any new Subprocessor at least 6 months in advance of providing that Subprocessor with access to Customer Data or for subprocessors that support artificial intelligence functionality, 30 days' notice with the ability to disable use of that subprocessor until at least 6 months after notice. Additionally, Microsoft will give Customer notice and, as

applicable, update the website and provide Customer with a mechanism to obtain notice of that update of any new Subprocessor at least 30 days in advance of providing that Subprocessor with access to Professional Services Data or Personal Data other than that which is contained in Customer Data. If Microsoft engages a new Subprocessor for a new Product or Professional Service that processes Customer Data, Professional Services Data, or Personal Data, Microsoft will give Customer notice prior to availability of that Product or Professional Service.

If Customer does not approve of a new Subprocessor for an Online Service or Professional Services, then Customer may terminate any subscription for the affected Online Service or the applicable Statements of Service for the applicable Professional Service, respectively, without penalty or termination fee by providing, before the end of the relevant notice period, written notice of termination. If Customer does not approve of a new Subprocessor for Software, and Customer cannot reasonably avoid use of the Subprocessor by restricting Microsoft from processing data as set forth in the documentation or this DPA, then Customer may terminate any license for the affected software product without penalty by providing, before the end of the relevant notice period, written notice of termination. Customer may also include an explanation of the grounds for non-approval together with the termination notice, in order to permit Microsoft to re-evaluate any such new Subprocessor based on the applicable concerns. If the affected Product is part of a suite (or similar single purchase of services), then any termination will apply to the entire suite. After termination, Microsoft will remove payment obligations for any subscriptions or other applicable unpaid work for the terminated Products or Services from subsequent invoices to Customer or its reseller.

Previews

Previews may employ lesser or different privacy and security measures than those typically present in the Products and Services. Unless otherwise noted, Customer should not use Previews to process Personal Data or other data that is subject to legal or regulatory compliance requirements. Except for Previews that allow Personal Data Processing, for Products, the following terms in this DPA do not apply to Previews: Processing of Personal Data; GDPR, Data Security, and HIPAA Business Associate. For Professional Services, offerings designated as Previews or Limited Release only meet the terms of the Supplemental Professional Services.

For Previews that allow Personal Data processing, all terms in this DPA apply subject to following:

- Preview Data may be transferred to, and stored and processed in, the United States or any other country in which Microsoft or its Subprocessors operate. Accordingly, Location

of Customer Data does not apply to Previews insofar as it would restrict the countries where Microsoft can transfer, store, or process Preview Data.

- Previews may not retain Preview Data beyond the duration of a Preview. When a Preview ends or Customer otherwise ceases participation in a Preview, Microsoft may delete Preview Data, even if the Preview is subsequently made generally commercially available. Accordingly, Data Retention and Deletion does not apply to Previews insofar as it would restrict Microsoft's right to delete Preview Data.

Previews may be subject to additional terms provided separately as part of those Previews.

Educational Institutions

If Customer is an educational agency or institution to which regulations under the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g (FERPA), apply, Microsoft acknowledges that for the purposes of the DPA, Microsoft is a "school official" with "legitimate educational interests" in the Customer Data and Professional Services Data, as those terms have been defined under FERPA and its implementing regulations, and Microsoft agrees to abide by the limitations and requirements imposed by 34 CFR 99.33(a) on school officials.

Customer understands that Microsoft may possess limited or no contact information for Customer's students and students' parents. Consequently, Customer will be responsible for obtaining any parental consent for any end user's use of the Products and Services that may be required by applicable law and to convey notification on behalf of Microsoft to students (or, with respect to a student under 18 years of age and not in attendance at a postsecondary institution, to the student's parent) of any judicial order or lawfully-issued subpoena requiring the disclosure of Customer Data and Professional Services Data in Microsoft's possession as may be required under applicable law.

CJIS Customer Agreement

Microsoft provides certain government cloud services ("Covered Services") in accordance with the FBI Criminal Justice Information Services ("CJIS") Security Policy ("CJIS Policy"). The CJIS Policy governs the use and transmission of criminal justice information. All Microsoft CJIS Covered Services shall be governed by the terms and conditions in the CJIS Management Agreement.

HIPAA Business Associate

If Customer is a "covered entity" or a "business associate" and includes "protected health information" in Customer Data or Professional Services Data, as those terms are defined under

the Health Insurance Portability and Accountability Act of 1996, as amended, and the regulations promulgated thereunder (collectively, "HIPAA"), execution of Customer's agreement includes execution of the HIPAA Business Associate Agreement ("BAA").The full text of the BAA identifies the Online Services or Professional Services to which it applies and is available at http://aka.ms/BAA. Customer may opt out of the BAA by sending the following information to Microsoft in a written notice (under the terms of the Customer's agreement):

- the full legal name of the Customer and any Affiliate that is opting out; and
- if Customer has multiple agreements, Customer's agreement to which the opt out applies.

Telecommunication Data

To the extent Microsoft is processing traffic, content and other Personal Data in the provision of Products and Services that qualify as telecommunication services under applicable law, specific statutory obligations may apply. Microsoft will comply with all telecommunication specific laws and regulations applicable to its providing the Products and Services, including security breach notification, Data Protection Requirements, and telecommunication secrecy. Customer is responsible for obtaining any appropriate consent from end users in connection with use of Products and Services that qualify as telecommunication services.

California Consumer Privacy Act (CCPA)

If Microsoft is processing Personal Data within the scope of the CCPA, Microsoft makes the following additional commitments to Customer. Microsoft will process Customer Data, Professional Services Data, and Personal Data on behalf of Customer and, not retain, use, or disclose that data for any purpose other than for the purposes set out in the DPA Terms and as permitted under the CCPA, including under any "sale" exemption. In no event will Microsoft sell any such data. These CCPA terms do not limit or reduce any data protection commitments Microsoft makes to Customer in the DPA Terms, Product Terms, or other agreement between Microsoft and Customer.

Biometric Data

If Customer uses Products and Services to process Biometric Data, Customer is responsible for: (i) providing notice to data subjects, including with respect to retention periods and destruction; (ii) obtaining consent from data subjects; and (iii) deleting the Biometric Data, all as appropriate and required under applicable Data Protection Requirements. Microsoft will process that Biometric Data following Customer's documented instructions (as described in the "Processor and Controller Roles and Responsibilities" section above) and protect that Biometric Data in

accordance with the data security and protection terms under this DPA. For purposes of this section, "Biometric Data" will have the meaning set forth in Article 4 of the GDPR and, if applicable, equivalent terms in other Data Protection Requirements.

Supplemental Professional Services

When used in the sections listed below, the defined term "Professional Services" includes Supplemental Professional Services, and the defined term "Professional Services Data" includes data obtained for Supplemental Professional Services.

For Supplemental Professional Services, the following sections of the DPA apply in the same manner as they apply to Professional Services: "Introduction", "Compliance with Laws", "Nature of Processing; Ownership", "Disclosure of Processed Data", "Processing of Personal Data; GDPR", the first paragraph of "Security Practices and Policies", "Customer Responsibilities", "Security Incident Notification", "Data Transfer" (including the terms regarding the 2021 Standard Contractual Clauses), the third paragraph of "Data Retention and Deletion", "Processor Confidentiality Commitment", "Notice and Controls on use of Subprocessors", "HIPAA Business Associate" (to the extent applicable in the BAA), "California Consumer Privacy Act (CCPA)", "Biometric Data", "How to Contact Microsoft", "Appendix B – Data Subjects and Categories of Personal Data", and "Appendix C – Additional Safeguards Addendum".

How to Contact Microsoft

If Customer believes that Microsoft is not adhering to its privacy or security commitments, Customer may contact customer support or use Microsoft's Privacy web form, located at http://go.microsoft.com/?linkid=9846224. Microsoft's mailing address is:

Microsoft Enterprise Service Privacy
Microsoft Corporation
One Microsoft Way
Redmond, Washington 98052 USA

Microsoft Ireland Operations Limited is Microsoft's data protection representative for the European Economic Area and Switzerland. The privacy representative of Microsoft Ireland Operations Limited can be reached at the following address:

Microsoft Ireland Operations, Ltd.
Attn: Data Protection
One Microsoft Place
South County Business Park
Leopardstown

Dublin 18, D18 P521, Ireland

Appendix A – Security Measures

Microsoft has implemented and will maintain for Customer Data in the Core Online Services and Professional Services Data the following security measures, which in conjunction with the security commitments in this DPA (including the GDPR Terms), are Microsoft's only responsibility with respect to the security of that data.

Domain	Practices
Organization of Information Security	**Security Ownership.** Microsoft has appointed one or more security officers responsible for coordinating and monitoring the security rules and procedures. **Security Roles and Responsibilities.** Microsoft personnel with access to Customer Data or Professional Services Data are subject to confidentiality obligations. **Risk Management Program.** Microsoft performed a risk assessment before processing the Customer Data or launching the Online Services service and before processing Professional Service Data or launching the Professional Services. Microsoft retains its security documents pursuant to its retention requirements after they are no longer in effect.
Asset Management	**Asset Inventory.** Microsoft maintains an inventory of all media on which Customer Data or Professional Services Data is stored. Access to the inventories of such media is restricted to Microsoft personnel authorized in writing to have such access. **Asset Handling** • Microsoft classifies Customer Data and Professional Services Data to help identify it and to allow for access to it to be appropriately restricted. • Microsoft imposes restrictions on printing Customer Data and Professional Services Data and has procedures for disposing of printed materials that contain such data. • Microsoft personnel must obtain Microsoft authorization prior to storing Customer Data or Professional Services Data on portable devices, remotely accessing such data, or processing such data outside Microsoft's facilities.

Domain	Practices
Human Resources Security	**Security Training.** Microsoft informs its personnel about relevant security procedures and their respective roles. Microsoft also informs its personnel of possible consequences of breaching the security rules and procedures. Microsoft will only use anonymous data in training.
Physical and Environmental Security	**Physical Access to Facilities.** Microsoft limits access to facilities where information systems that process Customer Data or Professional Services Data are located to identified authorized individuals. **Physical Access to Components.** Microsoft maintains records of the incoming and outgoing media containing Customer Data or Professional Services Data, including the kind of media, the authorized sender/recipients, date and time, the number of media and the types of such data they contain. **Protection from Disruptions.** Microsoft uses a variety of industry standard systems to protect against loss of data due to power supply failure or line interference. **Component Disposal.** Microsoft uses industry standard processes to delete Customer Data and Professional Services Data when it is no longer needed.
Communications and Operations Management	**Operational Policy.** Microsoft maintains security documents describing its security measures and the relevant procedures and responsibilities of its personnel who have access to Customer Data or Professional Services Data. **Data Recovery Procedures** • On an ongoing basis, but in no case less frequently than once a week (unless no updates have occurred during that period), Microsoft maintains multiple copies of Customer Data and Professional Services Data from which such data can be recovered. • Microsoft stores copies of Customer Data and Professional Services Data and data recovery procedures in a different place from where the primary computer equipment processing the Customer Data and Professional Services Data are located. • Microsoft has specific procedures in place governing access to copies of Customer Data and Professional Services Data. • Microsoft reviews data recovery procedures at least every six months, except for data recovery procedures for Professional

Domain	Practices
	Services and for Azure Government Services, which are reviewed every twelve months. • Microsoft logs data restoration efforts, including the person responsible, the description of the restored data and where applicable, the person responsible and which data (if any) had to be input manually in the data recovery process. • Malicious Software. Microsoft has anti-malware controls to help avoid malicious software gaining unauthorized access to Customer Data and Professional Services Data, including malicious software originating from public networks. **Data Beyond Boundaries** • Microsoft encrypts, or enables Customer to encrypt, Customer Data and Professional Services Data that is transmitted over public networks. • Microsoft restricts access to Customer Data and Professional Services Data in media leaving its facilities. **Event Logging.** Microsoft logs, or enables Customer to log, access and use of information systems containing Customer Data or Professional Services Data, registering the access ID, time, authorization granted or denied, and relevant activity.
Access Control	**Access Policy.** Microsoft maintains a record of security privileges of individuals having access to Customer Data or Professional Services Data. **Access Authorization** • Microsoft maintains and updates a record of personnel authorized to access Microsoft systems that contain Customer Data or Professional Services Data. • Microsoft deactivates authentication credentials that have not been used for a period of time not to exceed six months. • Microsoft identifies those personnel who may grant, alter or cancel authorized access to data and resources. • Microsoft ensures that where more than one individual has access to systems containing Customer Data or Professional Services Data, the individuals have separate identifiers/log-ins. **Least Privilege**

Domain	Practices
	• Technical support personnel are only permitted to have access to Customer Data and Professional Services Data when needed. • Microsoft restricts access to Customer Data and Professional Services Data to only those individuals who require such access to perform their job function. **Integrity and Confidentiality** • Microsoft instructs Microsoft personnel to disable administrative sessions when leaving premises Microsoft controls or when computers are otherwise left unattended. • Microsoft stores passwords in a way that makes them unintelligible while they are in force. **Authentication** • Microsoft uses industry standard practices to identify and authenticate users who attempt to access information systems. • Where authentication mechanisms are based on passwords, Microsoft requires that the passwords are renewed regularly. • Where authentication mechanisms are based on passwords, Microsoft requires the password to be at least eight characters long. • Microsoft ensures that de-activated or expired identifiers are not granted to other individuals. • Microsoft monitors, or enables Customer to monitor, repeated attempts to gain access to the information system using an invalid password. • Microsoft maintains industry standard procedures to deactivate passwords that have been corrupted or inadvertently disclosed. • Microsoft uses industry standard password protection practices, including practices designed to maintain the confidentiality and integrity of passwords when they are assigned and distributed, and during storage. **Network Design.** Microsoft has controls to avoid individuals assuming access rights they have not been assigned to gain access to Customer Data or Professional Services Data they are not authorized to access.
Information Security Incident Management	**Incident Response Process** • Microsoft maintains a record of security breaches with a description of the breach, the time period, the consequences of the

Domain	Practices
	breach, the name of the reporter, and to whom the breach was reported, and the procedure for recovering data. • For each security breach that is a Security Incident, notification by Microsoft (as described in the "Security Incident Notification" section above) will be made without undue delay and, in any event, within 72 hours. • Microsoft tracks, or enables Customer to track, disclosures of Customer Data and Professional Services Data, including what data has been disclosed, to whom, and at what time. **Service Monitoring.** Microsoft security personnel verify logs at least every six months to propose remediation efforts if necessary.
Business Continuity Management	• Microsoft maintains emergency and contingency plans for the facilities in which Microsoft information systems that process Customer Data or Professional Services Data are located. • Microsoft's redundant storage and its procedures for recovering data are designed to attempt to reconstruct Customer Data and Professional Services Data in its original or last-replicated state from before the time it was lost or destroyed.

Appendix B – Data Subjects and Categories of Personal Data

Data subjects: Data subjects include the Customer's representatives and end-users including employees, contractors, collaborators, and customers of the Customer. Data subjects may also include individuals attempting to communicate or transfer personal information to users of the services provided by Microsoft. Microsoft acknowledges that, depending on Customer's use of the Products and Services, Customer may elect to include personal data from any of the following types of data subjects in the personal data:

- Employees, contractors and temporary workers (current, former, prospective) of Customer;
- Dependents of the above;
- Customer's collaborators/contact persons (natural persons) or employees, contractors or temporary workers of legal entity collaborators/contact persons (current, prospective, former);
- Users (e.g., customers, clients, patients, visitors, etc.) and other data subjects that are users of Customer's services;
- Partners, stakeholders or individuals who actively collaborate, communicate or otherwise interact with employees of the Customer and/or use communication tools such as apps and websites provided by the Customer;
- Stakeholders or individuals who passively interact with Customer (e.g., because they are the subject of an investigation, research or mentioned in documents or correspondence from or to the Customer);
- Minors; or
- Professionals with professional privilege (e.g., doctors, lawyers, notaries, religious workers, etc.).

Categories of data: The personal data that is included in e-mail, documents and other data in an electronic form in the context of the Products and Services. Microsoft acknowledges that, depending on Customer's use of the Products and Services, Customer may elect to include personal data from any of the following categories in the personal data:

- Basic personal data (for example place of birth, street name and house number (address), postal code, city of residence, country of residence, mobile phone number, first name, last

name, initials, email address, gender, date of birth), including basic personal data about family members and children;
- Authentication data (for example user name, password or PIN code, security question, audit trail);
- Contact information (for example addresses, email, phone numbers, social media identifiers; emergency contact details);
- Unique identification numbers and signatures (for example Social Security number, bank account number, passport and ID card number, driver's license number and vehicle registration data, IP addresses, employee number, student number, patient number, signature, unique identifier in tracking cookies or similar technology);
- Pseudonymous identifiers;
- Financial and insurance information (for example insurance number, bank account name and number, credit card name and number, invoice number, income, type of assurance, payment behavior, creditworthiness);
- Commercial Information (for example history of purchases, special offers, subscription information, payment history);
- Biometric Information (for example DNA, fingerprints and iris scans);
- Location data (for example, Cell ID, geo-location network data, location by start call/end of the call. Location data derived from use of wifi access points);
- Photos, video and audio;
- Internet activity (for example browsing history, search history, reading, television viewing, radio listening activities);
- Device identification (for example IMEI-number, SIM card number, MAC address);
- Profiling (for example based on observed criminal or anti-social behavior or pseudonymous profiles based on visited URLs, click streams, browsing logs, IP-addresses, domains, apps installed, or profiles based on marketing preferences);
- HR and recruitment data (for example declaration of employment status, recruitment information (such as curriculum vitae, employment history, education history details), job and position data, including worked hours, assessments and salary, work permit details, availability, terms of employment, tax details, payment details, insurance details and location and organizations);
- Education data (for example education history, current education, grades and results, highest degree achieved, learning disability);
- Citizenship and residency information (for example citizenship, naturalization status, marital status, nationality, immigration status, passport data, details of residency or work permit);

- Information processed for the performance of a task carried out in the public interest or in the exercise of an official authority;
- Special categories of data (for example racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, data concerning a natural person's sex life or sexual orientation, or data relating to criminal convictions or offences); or
- Any other personal data identified in Article 4 of the GDPR.

Appendix C – Additional Safeguards Addendum

By this Additional Safeguards Addendum to the DPA (this "Addendum"), Microsoft provides additional safeguards to Customer for the processing of personal data, within the scope of the GDPR, by Microsoft on behalf of Customer and additional redress to the data subjects to whom that personal data relates.

This Addendum supplements and is made part of, but is not in variation or modification of, the DPA.

1. **Challenges to Orders.** In the event Microsoft receives an order from any third party for compelled disclosure of any personal data processed under this DPA, Microsoft shall:

    a. use every reasonable effort to redirect the third party to request data directly from Customer;
    b. promptly notify Customer, unless prohibited under the law applicable to the requesting third party, and, if prohibited from notifying Customer, use all lawful efforts to obtain the right to waive the prohibition in order to communicate as much information to Customer as soon as possible; and
    c. use all lawful efforts to challenge the order for disclosure on the basis of any legal deficiencies under the laws of the requesting party or any relevant conflicts with applicable law of the European Union or applicable Member State law.

If, after the steps described in a. through c. above, Microsoft or any of its affiliates remains compelled to disclose personal data, Microsoft will disclose only the minimum amount of that data necessary to satisfy the order for compelled disclosure.

For purpose of this section, lawful efforts do not include actions that would result in civil or criminal penalty such as contempt of court under the laws of the relevant jurisdiction.

2. **Indemnification of Data Subjects.** Subject to Sections 3 and 4, Microsoft shall indemnify a data subject for any material or non-material damage to the data subject caused by Microsoft's disclosure of personal data of the data subject that has been transferred in response to an order from a non-EU/EEA government body or law enforcement agency in violation of Microsoft's obligations under Chapter V of the GDPR (a "Relevant Disclosure"). Notwithstanding the foregoing, Microsoft shall have no obligation to indemnify the data subject under this Section 2 to the extent the data subject has already received compensation for the same damage, whether from Microsoft or otherwise.

3. **Conditions of Indemnification.** Indemnification under Section 2 is conditional upon the data subject establishing, to Microsoft's reasonable satisfaction, that:

    a. Microsoft engaged in a Relevant Disclosure;
    b. the Relevant Disclosure was the basis of an official proceeding by the non-EU/EEA government body or law enforcement agency against the data subject; and
    c. the Relevant Disclosure directly caused the data subject to suffer material or non-material damage.

The data subject bears the burden of proof with respect to conditions a. though c.

Notwithstanding the foregoing, Microsoft shall have no obligation to indemnify the data subject under Section 2 if Microsoft establishes that the Relevant Disclosure did not violate its obligations under Chapter V of the GDPR.

4. **Scope of Damages.** Indemnification under Section 2 is limited to material and non material damages as provided in the GDPR and excludes consequential damages and all other damages not resulting from Microsoft's infringement of the GDPR.

5. **Exercise of Rights.** Rights granted to data subjects under this Addendum may be enforced by the data subject against Microsoft irrespective of any restriction in Clauses 3 or 6 of the Standard Contractual Clauses. The data subject may only bring a claim under this Addendum on an individual basis, and not part of a class, collective, group or representative action. Rights granted to data subjects under this Addendum are personal to the data subject and may not be assigned.

6. **Notice of Change.** Microsoft agrees and warrants that it has no reason to believe that the legislation applicable to it or its sub-processors, including in any country to which personal data is transferred either by itself or through a sub-processor, prevents it from fulfilling the instructions received from the Customer and its obligations under this Addendum or the 2021 Standard Contractual Clauses and that in the event of a change in this legislation which is likely to have a substantial adverse effect on the warranties and obligations provided by this Addendum or the Standard Contractual Clauses, it will promptly notify the change to Customer as soon as it is aware, in which case Customer is entitled to suspend the transfer of data and/or terminate the contract.

Appendix D – Challenges to Order or Binding Legal Obligation Suspending Online Services

By this Appendix, Microsoft provides the following commitments to National, Federal, and Regional Government Customer entities of the European Union ("EU") Member States, as well as EU accession countries, members of the European Free Trade Association, the United Kingdom, Monaco, the Vatican, and the European Commission ("Protected Government Customer").

1. In the event that Microsoft receives an order or is otherwise subject to a binding legal obligation from any government, agency, commission, or quasi-governmental body requiring Microsoft to suspend or cease the provision, in whole or in part, of Online Services (including, but not limited to, the provision of Microsoft Azure Services, Microsoft Dynamics 365 Services, or Office 365 Services) to the Protected Government Customer – Microsoft, on behalf of itself and its Affiliates, shall:

    a. use available means to secure the voluntary withdrawal, revocation, or rescission of such order; and
    b. use all lawful efforts to challenge the order in the courts of the country whose government issued the order on the basis of any legal deficiencies under the laws of the ordering party or any relevant conflicts with applicable law of the European Union or applicable law of the countries listed above.

    Microsoft will seek permanent and interim injunctive relief if needed to ensure the continuous and uninterrupted provision of the relevant Online Services pending the full and final adjudication of lawful efforts to challenge the order or other binding legal obligation referred to above.

2. Rights granted to Customer under this provision are personal to the Protected Government Customer and may not be assigned.

Attachment 1 – European Union General Data Protection Regulation Terms

Microsoft makes the commitments in these GDPR Terms, to all customers effective May 25, 2018. These commitments are binding upon Microsoft with regard to Customer regardless of (1) the version of the Product Terms and DPA that is otherwise applicable to any given Product subscription or license, or (2) any other agreement that references this attachment.

For purposes of these GDPR Terms, Customer and Microsoft agree that Customer is the controller of Personal Data and Microsoft is the processor of such data, except when Customer acts as a processor of Personal Data, in which case Microsoft is a subprocessor. These GDPR Terms apply to the processing of Personal Data, within the scope of the GDPR, by Microsoft on behalf of Customer. These GDPR Terms do not limit or reduce any data protection commitments Microsoft makes to Customer in the Product Terms or other agreement between Microsoft and Customer. These GDPR Terms do not apply where Microsoft is a controller of Personal Data.

Relevant GDPR Obligations: Articles 5, 28, 32, and 33

1. Microsoft supports Customer's accountability obligations via this DPA and the product documentation provided to Customer, and will continue to do so during the term of the term of Customer's subscription or the applicable Professional Services engagement pursuant to subsection 3(h) below. (Article 5(2))
2. Microsoft shall not engage another processor without prior specific or general written authorisation of Customer. In the case of general written authorisation, Microsoft shall inform Customer of any intended changes concerning the addition or replacement of other processors, thereby giving Customer the opportunity to object to such changes. (Article 28(2))
3. Processing by Microsoft shall be governed by these GDPR Terms under European Union (hereafter "Union") or Member State law and are binding on Microsoft with regard to Customer. The subject-matter and duration of the processing, the nature and purpose of the processing, the type of Personal Data, the categories of data subjects and the obligations and rights of the Customer are set forth in the Customer's licensing agreement, including these GDPR Terms. In particular, Microsoft shall:
    a. process the Personal Data only on documented instructions from Customer, including with regard to transfers of Personal Data to a third country or an international organisation, unless required to do so by Union or Member State law to which

Microsoft is subject; in such a case, Microsoft shall inform Customer of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

b. ensure that persons authorised to process the Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
c. take all measures required pursuant to Article 32 of the GDPR;
d. respect the conditions referred to in paragraphs 2 and 4 for engaging another processor;
e. taking into account the nature of the processing, assist Customer by appropriate technical and organisational measures, insofar as this is possible, for the fulfilment of the Customer's obligation to respond to requests for exercising the data subject's rights laid down in Chapter III of the GDPR;
f. assist Customer in ensuring compliance with the obligations pursuant to Articles 32 to 36 of the GDPR, taking into account the nature of processing and the information available to Microsoft;
g. at the choice of Customer, delete or return all the Personal Data to Customer after the end of the provision of services relating to processing, and delete existing copies unless Union or Member State law requires storage of the Personal Data;
h. make available to Customer all information necessary to demonstrate compliance with the obligations laid down in Article 28 of the GDPR and allow for and contribute to audits, including inspections, conducted by Customer or another auditor mandated by Customer.

Microsoft shall immediately inform Customer if, in its opinion, an instruction infringes the GDPR or other Union or Member State data protection provisions. (Article 28(3))

4. Where Microsoft engages another processor for carrying out specific processing activities on behalf of Customer, the same data protection obligations as set out in these GDPR Terms shall be imposed on that other processor by way of a contract or other legal act under Union or Member State law, in particular providing sufficient guarantees to implement appropriate technical and organisational measures in such a manner that the processing will meet the requirements of the GDPR. Where that other processor fails to fulfil its data protection obligations, Microsoft shall remain fully liable to the Customer for the performance of that other processor's obligations. (Article 28(4))
5. Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of processing as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Customer and Microsoft shall implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, including inter alia as appropriate:

a. the pseudonymisation and encryption of Personal Data;
b. the ability to ensure the ongoing confidentiality, integrity, availability and resilience of processing systems and services;
c. the ability to restore the availability and access to Personal Data in a timely manner in the event of a physical or technical incident; and
d. a process for regularly testing, assessing and evaluating the effectiveness of technical and organisational measures for ensuring the security of the processing. (Article 32(1))

6. In assessing the appropriate level of security, account shall be taken of the risks that are presented by processing, in particular from accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to Personal Data transmitted, stored or otherwise processed. (Article 32(2))
7. Customer and Microsoft shall take steps to ensure that any natural person acting under the authority of Customer or Microsoft who has access to Personal Data does not process them except on instructions from Customer, unless he or she is required to do so by Union or Member State law. (Article 32(4))
8. Microsoft shall notify Customer without undue delay after becoming aware of a Personal Data breach. (Article 33(2)). Such notification will include that information a processor must provide to a controller under Article 33(3) to the extent such information is reasonably available to Microsoft.